General Development Provisions



3 General Development Provisions

3.1 Site Analysis and Locality

The key to good design outcomes is firstly understanding the context of the site. Site analysis is used to assess how future dwellings will relate to the immediate surroundings and to each other to produce a design that will minimise negative impacts on adjoining developments and the neighbourhood.

This section provides guidance on undertaking a site analysis, which establishes the context of the site; demonstrates constraints and opportunities; and considers built and natural elements of the surrounding locality.

3.1.1 Site Analysis Plan

A site analysis will typically include both a written statement and a plan which identifies contextual, built, and natural elements of the environment. The level of detail required for a site analysis plan and explanatory statement depends on the scale and nature of the proposed development.

Objective		**Control**	
O1.	To identify the prevailing existing conditions of an area within which a development site is located.	**C1.**	Development Applications are to include a Site Analysis which includes both a sketch/diagrammatic Site Analysis Plan and a written component.
O2.	To ensure site analysis plans and statements identify key site features, opportunities, and constraints, such as topography, views, landmarks, trees, vegetation structures, drainage, services, access, orientation and microclimate.	**C2.**	An example of a Site Analysis Plan is provided in **Figure 2**.
O3.	To identify the relationship between a development and its surrounds.	**C3.**	The Site Analysis Plan is to be drawn to a scale of either 1:100 or 1:200 and must include the following with respect to the subject site: a. the legal description of the site, including the lot and DP number b. site dimensions and site area c. spot levels, contours, and north point d. existing easements e. existing vegetation, including the height, and spread of established trees, as well as identifying any protected vegetation/biodiversity f. location of existing buildings and other structures g. significant noise sources (including traffic and aircraft noise) h. significant views to and from the site i. pedestrian and vehicular access j. identification of filled areas k. location of fences, boundaries, retaining walls and any other notable features l. prevailing winds for buildings 6 storeys and over
O4.	To ensure all new developments are well integrated with adjoining development and the wider street by responding to urban from, topography and landscape, view corridors and the local street and pedestrian networks.		

Objective		Control	
			m. overshadowing to the site
		C4.	For surrounding land, the Site Analysis Plan should show: a. the location, height, and use of buildings (including doors and windows), private open spaces, and out-buildings on adjoining properties b. items of heritage significance and heritage conservation areas c. characteristics of any public open spaces d. location and height of walls built to the site's boundary e. views and solar access enjoyed by adjacent residents f. major trees on adjacent properties, particularly those within 9 metres of the site g. street frontage features such as poles, street trees, kerb crossovers, bus stops and other services h. adjacent or nearby parkland, bushland and wetlands; including potential wildlife corridors i. topography of surrounding land j. location of neighbouring solar roof panels (if any) k. The location of any nearby industrial uses.
		C5.	Applicants are to demonstrate as a part of their Development Application how the Site Analysis has informed the design outcomes at the site. This should be identified within the Statement of Environmental Effects.



Figure 2: Example of a site analysis plan

3.1.2 Interface with Public Domain

This Section includes provisions to ensure that development makes a positive contribution to the public domain.

Objective		Control	
O1.	To ensure that all ground level elements of buildings visible from the streets and parks make a positive contribution to the public domain.	**C1.**	Buildings are to be designed to: a. have a clearly defined entry point; and b. address the street, side street, rear laneway or any adjacent parks and/or public spaces
O2.	To design building entrances that provide a clear entry to the development that will assist in visitor orientation.		

Objective		Control	
O3.	To ensure public domain elements that contribute to the streetscape are provided as part of future development.	**C2.**	The visual and physical connection between the building frontage and the public domain must be considered in all development applications to ensure that the interface at ground level promotes a high level of pedestrian amenity and equitable access.
O4.	To encourage longer visitation of public places to maximise passive surveillance opportunities.		
O5.	To co-locate pedestrian, cycling and vehicular routes, where possible, to maximise activity and passive surveillance.	**C3.**	For mixed use development which contains residential dwellings, the principal usable part of outdoor private open space must not be located on the street frontage, unless it is on the first floor or above.
		C4.	Public domain improvement works such as footpath paving, reconstruction of kerb and gutter, landscaping, street trees, amenity area lighting and furniture may be required at the developer's expense.
		C5.	Comfortable public places with high-quality public furniture, good shade and interesting outlooks within the public domain and open space shall be provided.
		C6.	Walking and cycling paths are to be an adequate width for both to pedestrians and cyclists and promote: a. connectivity b. convenience c. comfort d. enable clear sight lines.
		C7.	Pedestrian and cycling paths must comply with Australian Standard 1428.
		C8.	Developments are to be designed so that required services and infrastructure (e.g. hydrants) that interface with the public domain are considered and integrated into the built form design at development assessment stage.

3.1.3 Crime Prevention through Environmental Design

Crime Prevention through Environmental Design (CPTED) is a crime prevention strategy that focuses on planning and design of cities, neighbourhoods, and buildings. It aims to reduce opportunities for crime by using design and place management principles in new development.

Objective		Control	
O1.	To ensure development results in safer urban environments within the Bayside LGA, minimising opportunities for criminal activities and anti-social behaviour, and improving community safety.	**C1.**	CPTED principles are to be addressed in all development applications where there is the potential to minimise risk and improve safety.
O2.	To ensure CPTED principles are considered as part of the development process.	**C2.**	Larger development applications (as outlined below) are to be supported by a Safer by Design Assessment Report: a. Residential flat buildings and multi dwelling housing (20 or more dwellings). b. mixed use developments (with 20 or more dwellings) c. New or upgraded commercial/retail development (major work) d. New industrial complex (i.e. 10 industrial units) e. New or upgraded schools (major work) f. Large sports/community facilities g. Club/hotels (i.e. extended hours, gaming rooms) h. Service stations/convenience stores i. Hospitals; or j. Any other development which the Council considers needs to be reviewed by the Police in the interests of community safety.
O3.	To maximise natural surveillance to public spaces and streets by increasing the level of activity for nearby buildings and streets.	**C3.**	CPTED principles that are to be integrated as part of new development include, but are not limited to the following: a. incorporate and/or enhance opportunities for effective natural surveillance b. deliver clear sight lines between public and private places c. install effective lighting d. include appropriate landscaping of public areas e. minimise opportunities for crime through suitable access control, such as audio or video intercom systems to building lobbies or restricted swipe card access to common areas and car parks. f. incorporate design elements that contribute to a sense of community ownership of public spaces g. define transitions between public and private spaces as a method of territorial reinforcement. Methods

Objective		Control	
			other than gates, fences and enclosures are encouraged. h. increase the possibility of detection, challenge and apprehension of persons engaged in crime i. provide non-slip pavement surfaces to public pedestrian areas and communal accessways j. for buildings adjoining laneways and through block connections, activate these spaces at ground level and provide casual surveillance k. avoid secluded and hidden areas that could encourage criminal and anti-social behaviour. l. ensure clear wayfinding measures are incorporated into large scale developments, such as signage and numbering. m. ensure fences and walls do not interfere or reduce the visibility and natural surveillance to and from public areas, streets and private entrances. n. Ensure landscape planting and vegetation do not impede views to communal areas, building entries, or public streets and spaces, o. Avoid long blank walls and deep insets.
		C4.	Public domain and open space are to be visible from neighbouring buildings, surrounding streets and infrastructure (i.e. schools, library, etc.).
		C5.	Solid fences are strongly discouraged for new development or subdivisions backing onto public domains and open spaces.
		C6.	Public facilities (i.e. ATMs, bicycle storage, public toilets and telephones) are to be highly visible from public areas. Where possible, these facilities are to be located adjacent to uses or activities with extended trading hours such as restaurants, cafés and convenience stores.

3.1.4 Active Street Frontages

This Part applies to land identified as “Active street frontage” on the Active Street Frontages Map in the Bayside LEP 2021, as well as other centres zoned for business or mixed use purposes across the LGA.

Objective		Control	
O1.	To ensure that active street frontages present as pedestrian oriented and are of high-quality design.	**C1.**	Where active street frontages are required, development is to: a. identify landscaping, street paving and furniture etc along the active street frontage b. orientate and program active uses on the ground floor to maximise the visual amenity for outdoor seating opportunities c. provide a minimum width of 2 metres on a public footpath that is clear of any obstructions or structures for pedestrian access
O2.	To provide for continuity in design and outcomes for active street frontages.	**C2.**	On other sites within centres where no Active Street Frontage is required under BLEP 2021, active uses are to be provided (for example, retail and business premises) at ground level facing the street. These should maximise operable and glazed shop frontages, entries for all uses, active office uses such as reception and any other activities which provide pedestrian interest and activation.
O3.	To ensure safe design principles are incorporated in the design of active street frontages in the LGA.	**C3.**	Where outdoor dining is proposed to occupy the Council footpath, the applicant must obtain development consent, in addition to a lease agreement with Council.
O4.	To promote pedestrian activity and vibrancy.	**C4.**	The ground floor entries to all uses are to generally have same finished floor level as the adjacent footpath to facilitate direct access from the street.
		C5.	If the active street frontage adjoins a Heritage Item the setback, design and scale of the active street frontage must complement the Heritage Item.
		C6.	Active frontages are to maintain the existing fine grain subdivision pattern where appropriate.
		C7.	The design of active street frontages are to include a minimum 80% transparent glazing.
		C8.	The design of active street frontages must not incorporate security roller door and window bars.
		C9.	Active frontages are to contribute to the vitality of streets and night time activation by maximising entries / display windows to shops / food and drink premises.

3.1.5 Views

The Bayside LGA forms the backdrop to Botany Bay and the foreshores of the Cooks River. The ridgelines and higher points within the municipality were amongst the earliest parts of the LGA to be developed. Typically, prominent buildings such as churches and grand mansions, were located on these high points and today they still form distinctive landmarks. More recent development at Brighton Le Sands and Wolli Creek has seen the creation of new landmark buildings on the shores of the Botany Bay and Cooks River.

There are many significant natural features, heritage items and buildings in the LGA that contribute to its identity. The preservation, and wherever possible, enhancement of public views of these assets helps to maintain legibility and allows an interpretation of the area's landscape and cultural features.

"View sharing" concerns the equitable distribution of views between properties. View sharing also needs to be considered in site planning and building design.

Objective		Control	
O1.	To protect significant view corridors including to and from: a. Botany Bay b. Sydney CBD c. Local landmarks d. Heritage Items e. The Cooks River f. Other items that contribute to a sense of place or character, which may include natural and constructed.	**C1 .**	Development must consider any significant vistas or views to, from and across the site including those which contribute to the character, identity, or sense of place of the site.
		C2.	Development must retain existing views to Botany Bay, from within the site and from adjoining and adjacent sites, and where possible enhance views through site planning and building design.
O2.	To encourage view sharing as a means of ensuring equitable access to views from private property.	**C3.**	Development on highly visible sites, such as ridgelines, must be carefully designed so that it complements the character of the area and its skyline.
O3.	To provide additional views and vistas from streets and other public spaces where opportunities arise.	**C4.**	View corridors to landmarks and significant heritage items must be protected where possible. Development Applications may need to be supported by photo montages of the proposed development to illustrate the impact on views.
		C5.	Roof forms on the low side of streets are well articulated to allow public views and add interest to the scenic outlook. Large, flat expansive roofs with vents, air conditioning units and similar structures are inappropriate.
		C6.	Building forms and setbacks permit views from public streets and open spaces. In particular, views from public open spaces to the bay and district are preserved.

3.2 Design Excellence

This section contains objectives and provisions to guide design excellence and fine grain urban form in significant development. All buildings contribute to the urban and public domain character of Bayside Council and it is important that design excellence is a key consideration in the assessment of development applications.

The following DCP provisions complement Clause 6.10 of the Bayside LEP 2021. and must be read in conjunction with the Draft Government Architect's Design Excellence Competition Guidelines, 2018.

Bayside Council contains a number of urban renewal areas and large development sites. Within these areas it is important that development achieves high design quality standards and design variety. The following objectives and provisions aim to achieve design excellence through the application of the following provisions.

Objective		**Control**	
General			
O1.	Ensure development individually and collectively contributes to the architectural and overall urban design quality of the local government area.	**C1.**	Development is to give consideration to the principles of design excellence as outlined within Clause 6.10 of *Bayside Local Environmental Plan 2021* and within Council's Design Excellence Guidelines. The Guidelines can be located: https://www.bayside.nsw.gov.au/services/development-construction/planning-our-city/bayside-design-excellence-guidelines.
Design Competitions			
O2.	Ensure high quality and varied design through the use of competitive design processes for large and prominent developments.	**C2.**	Where a competitive design process must be undertaken as identified in the Bayside LEP 2021, it must be undertaken in accordance with the Design Excellence Guidelines as referenced in Clause 6.10 of the LEP and Bayside Council's Design Excellence Guidelines. The Guidelines can be located: https://www.bayside.nsw.gov.au/services/development-construction/planning-our-city/bayside-design-excellence-guidelines.
O3.	Encourage variety in architectural design and character across large developments to provide a fine grain which enriches and enlivens Bayside Council's public realm.	**C3.**	Where a competitive design process is required, it is to be undertaken before the detailed Development Application is submitted.
O4.	Ensure development individually and collectively demonstrates the principles of ecologically sustainable development through exhibition of exceptional sustainable design measures and mitigation of any environmental impacts such as urban heat island effect, overshadowing, wind, air quality and reflectivity.	**C4.**	Any Development Application to which Clause 6.10 of the LEP applies, must be accompanied by a Design Excellence Report, including the following information: a. Site, context, form and design excellence analysis; b. Public domain layout including levels, uses, access, circulation and dedications; c. Statement outlining how the proposal achieves the requirements of Clause 6.10(4) of the Bayside LEP 2021 and is consistent with Bayside Council's Design Excellence Guidelines;

Objective		Control	
			d. Overshadowing and view analysis; e. Ecologically sustainable development strategies and benchmark commitments - including connection to green infrastructure and biodiversity and landscape commitments; and, where relevant, a f. Staging plan.
		C5.	Development is to incorporate the following sustainability measures (in addition to the requirements of **Section 3.3** of this DCP): a. Provision of Solar Photovoltaic Cells on the rooftop designed to maximise the coverage of the non-trafficable roof space. b. Provision for Electric Vehicle (EV) charging within the parking facility. c. Maximisation of non-potable stormwater re-use. d. Zoned and sensor-controlled lighting and air conditioning. e. Use of LEDs and other low energy flicker free lighting resources. f. Use of water saving appliances above and beyond BASIX requirements. g. Provide ample recycling storage rooms. h. Extensive use of deep soil landscaping and planters on interior/exterior of the buildings including provision of green walls, green roofs where possible etc. i. Provide separate circuiting for temporary power to minimal stair and corridor lighting. j. Consideration for adoption of sustainable building materials such as timber and the use of blast slag, fly ash or other pozzolan admixtures in concrete to minimise cement and reduce embodied carbon. k. Mitigation of any environmental impacts such as urban heat island effect, overshadowing, wind, air quality and reflectivity.

3.3 Energy and Environmental Sustainability

Overview

This Part sets out objectives and controls to provide a framework for the application of ecologically sustainable development principles in the design, construction, and operation of buildings across the Bayside LGA.

Bayside Council encourages energy and water efficient buildings. Energy efficient buildings require less energy for construction and maintenance, heating and cooling, lighting, and ventilation. A building's operating energy can be conserved through passive heating and cooling features such as insulation, double-glazing, thermal mass, shading, and natural ventilation.

A building's embodied energy can be reduced by constructing it from locally sourced and/or recycled materials, and by making it easy to dismantle and recycle in its turn. Large buildings can also conserve

energy by installing cogeneration units, which use the waste heat from electricity generation. Solar hot water heaters on roof tops can offset demand for electricity and gas by using sunlight to heat water.

Principles

The design of buildings should follow the general principles of 'green building design' to reduce consumption of non-renewable energy sources and thereby:

- use energy efficiently
- minimise the use on non-renewable energy
- reduce the peak demand on energy supply systems
- reduce greenhouse gas emissions
- reduce the use of potable water
- make buildings more comfortable for occupants all year round
- reduce energy bills and the lifecycle cost of energy services.

Note: State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004 (BASIX) sets provisions that aim to reduce energy and water consumption for residential development. BASIX is designed to reduce the impacts of new housing on the environment by identifying the minimum standards that a development is to achieve. Details are at www.basix.nsw.gov.au.

The BASIX SEPP also mandates that a DCP cannot include provisions which require a development to exceed its minimum standards. However, where voluntarily proposed, Council encourages development to exceed minimum BASIX scores. Residential developments must meet the BASIX benchmarks as well as the requirements of the Part.

Section J of the Building Code of Australia contains mandatory requirements for the design of building envelopes and fixtures to minimise energy use and should also be referenced in conjunction with these controls.

3.3.1 General Controls

Objective		**Control**	
Energy and Water Efficiency – General			
O1.	Development: a. ensures that energy efficiency is a fundamental component of the design and construction of residential development. b. minimises consumption of resources including energy, water, waste and soil for the lifecycle of the building/development c. applies principles and processes that contribute to ecologically sustainable development (ESD) d. minimises green-house gas emissions	**C1.**	Areas of glazing are located to avoid energy loss and unwanted energy gain.
		C2.	Development provides appropriate sun protection during summer for glazed areas facing north, west and east, whilst allowing for penetration of winter sunlight (see **Figure 3**).
		C3.	Extensive areas of glazing that are unprotected from sun during summer are not permitted. Shading devices include eaves, awnings, balconies, pergolas, external louvers, and projecting sunshades. Unprotected tinted windows are not acceptable.
O2.	To reduce the potable water consumption of all new residential developments.		

Objective		Control	
		C4.	Lighting for streets, parks and any other public domain spaces provided as part of a development should use energy efficient lighting such as LED lighting.
		C5.	Ensure the location of windows, doors and internal layout of the building promotes air movement for cooling.
		C6.	For all developments where BASIX is not applicable, the following water efficiency design elements must be included and demonstrated on the plans: a. new or altered showerheads are to have a flow rate of no greater than 9 litres per minute or a 3 star or greater rating b. new or altered toilets are to have a flow rate no greater than 4 litres per average flush or a 3 star or greater rating c. new or altered taps must have a flow rate no greater than 9 litres per minute or 3 star or higher water rating

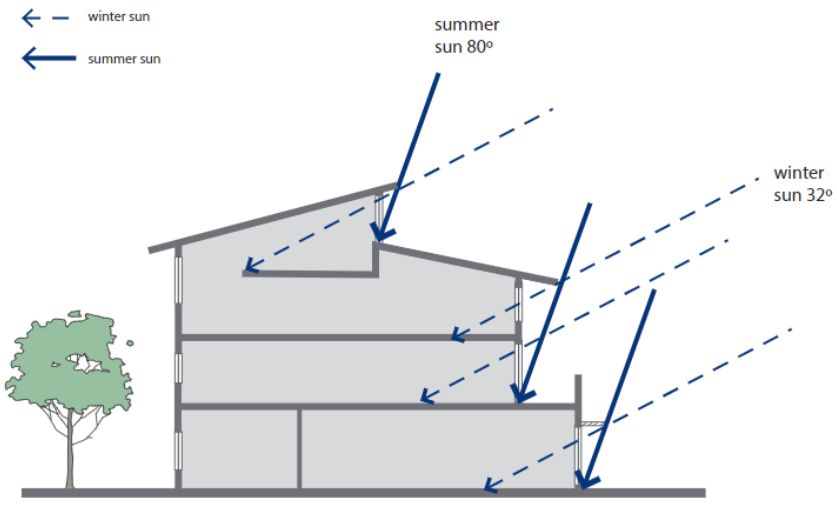


Figure 3: Example of application of shading devices

Energy and Water Efficiency – Non-residential development

Objective		Control	
O3.	Design and construction of non-residential development: a. incorporates energy efficiency as a fundamental component b. minimises adverse impacts on the environment, including preventing pollution of air, soil, and water	**C7.**	Development is to be designed and constructed to reduce the need for active heating and cooling by incorporating passive design measures including design, location and thermal properties of glazing, natural ventilation, appropriate use of thermal mass and external shading, including vegetation.
O4.	To design developments to improve water conservation and increase on-site storage of rainwater for reuse.	**C8.**	Rainwater tanks are to be installed for all non-residential developments, including major alterations and additions that have access to a roof form from which rainwater can be feasibly collected and plumbed to appropriate end uses.
		C9.	Development is to be designed and constructed to meet the rating systems shown in **Table 1**.

Development type	Energy	Water
Hotels (new hotels only)	Minimum 4.5-star NABERS rating or equivalent	Minimum 4-star NABERS rating or equivalent (new hotels only)
Office development over 1,000sqm NLA (including within mixed use schemes and significant alterations and additions valued at over $5m)	Base building to achieve a minimum 5-star NABERS rating or equivalent (140kgCO2e/sqm/year)	Base building to achieve minimum 4-star NABERS rating or equivalent (0.65kL of water use/sqm/year)
Shopping centres/retail development over 15,000sqm GLAR	Base building to achieve minimum 5-star NABERS rating or equivalent (100kgCO2e/sqm/year)	Base building to achieve minimum 4-star NABERS rating or equivalent (0.95kL/sqm/year)
Industrial development over 20,000sqm GFA	Minimum 5-star Green Star rating or equivalent	Minimum 5-star Green Star rating or equivalent

Table 1: Energy and Water Efficiency – Non-residential development

3.3.2 Natural daylight and ventilation (passive design)

Objective		Control	
General			
O1.	To maximise the benefits of passive solar design and minimise reliance on artificial lighting in residential development.	**C1.**	Buildings must comply with the following minimum ceiling heights to facilitate adequate natural lighting and ventilation:

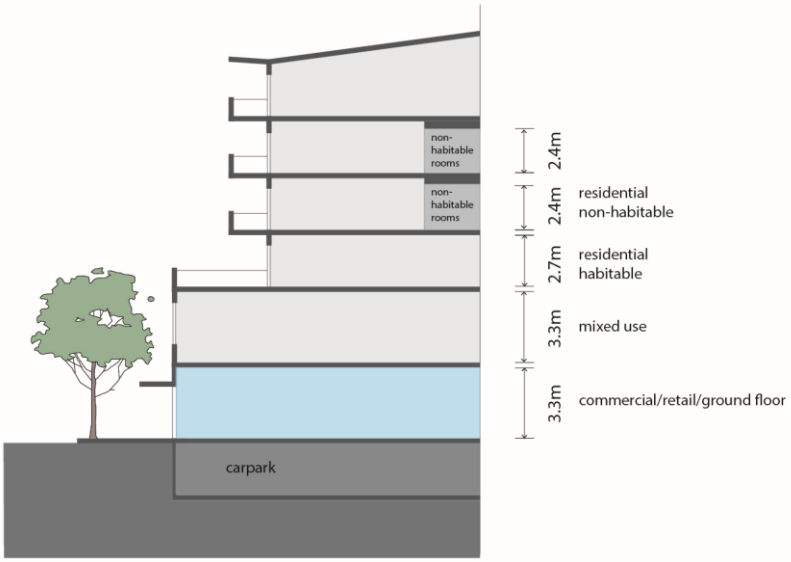
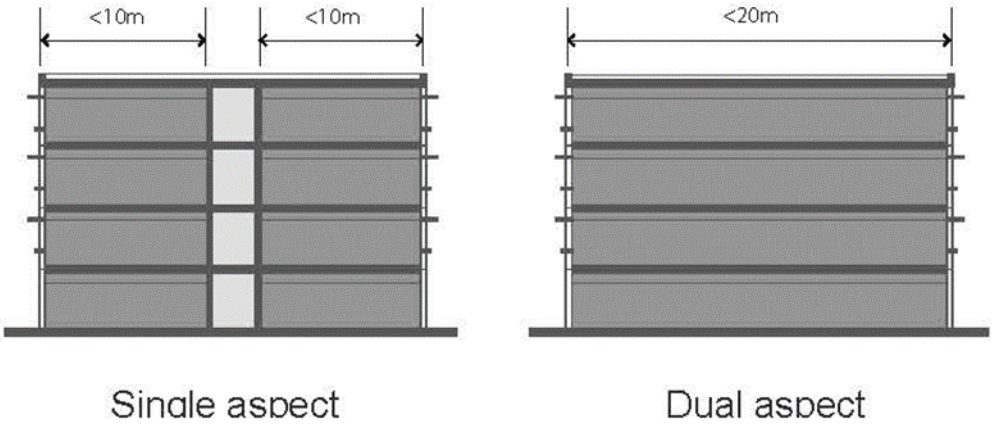
<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td></td><td></td><td>
<table>
<tr><th>Development Type</th><th>Habitable rooms</th><th>Non-Habitable rooms</th></tr>
<tr><td>Residential</td><td>2.7m</td><td rowspan="3">2.4m</td></tr>
<tr><td>Retail & commercial</td><td>3.3m</td></tr>
<tr><td>First floor & above of mixed-use building</td><td>3.3m</td></tr>
</table>
Table 2: Minimum Ceiling Heights
</td></tr>
<tr><td colspan="4">


Figure 4: Minimum ceiling heights (for clear space and provision of services, in addition to slabs)
</td></tr>
<tr><td></td><td></td><td>C2.</td><td>Buildings must be designed to maximise opportunities for cross flow ventilation by providing clear breeze paths and shallow building depths. The maximum internal plan depth of a residential apartment should be 18m from glass line to glass line. Developments that propose greater than 18m must demonstrate how satisfactory daylight and natural ventilation is achieved.</td></tr>
<tr><td></td><td></td><td>C3.</td><td>Windows that can open and which are designed to provide controlled air flow should be installed.</td></tr>
<tr><td></td><td></td><td>C4.</td><td>Buildings must have an adequate number of openings at each level to allow natural light</td></tr>
</table>

Objective		Control	
			and ventilation, including lift lobbies and entries.
		C5.	Office premises must be designed to receive natural light and ventilation. Office floor plates are to have a depth of no greater than 20m if dual aspect, or 10m if single aspect. Office spaces should be designed, through orientation and the inclusion of environmental control devices, to achieve maximum daylight without compromising the internal amenity through glare or heat gain from direct sunlight.
 **Figure 5: Office floorplate depths**			
		C6.	Each industrial unit within an industrial complex must have a reasonable size window at each level to allow natural light and ventilation.
		C7.	On deep sites, courtyards and light wells should be provided on the lower levels of mixed use and commercial buildings to achieve natural lighting of every level and cross ventilation and/or stack effect ventilation.

3.3.3 Reflectivity

Objective		Control	
O1.	To protect the amenity of the public domain from excessive glare and reflection.	**C1.**	A Reflectivity Report that analyses potential solar glare from the proposed building design may be required for tall buildings.

Objective		Control	
O2.	To reduce the risk of distractions to pilots of aircraft from lighting and light fixtures near Sydney Airport.	**C2.**	For buildings in the vicinity of arterial roads/major roads and Sydney Airport, proof of light reflectivity is required and is to demonstrate that light reflectivity does not exceed 20%.
		C3.	The placement, orientation and configuration of new buildings and facades must not result in glare that produces discomfort or endangers safety of pedestrians or motorists.
		C4.	Materials must be durable and can be easily cleaned and are graffiti resistant.
		C5.	National Airports Safeguarding Framework Guideline E – Managing Pilot Lighting Distraction should be referred to where relevant. This is available to view at: https://www.infrastructure.gov.au/infrastructure-transport-vehicles/aviation/aviation-safety/aviation-environmental-issues/national-airports-safeguarding-framework/national-airports-safeguarding-framework-principles-and-guidelines.

3.3.4 Rating Tools

3.3.4.1 NABERS

The National Australian Built Environment Rating Scheme (NABERS) is a national rating system that measures the environmental performance of Australian buildings, tenancies and homes and is managed by the Office of Environment and Heritage.

The NABERS scheme covers offices and commercial tenancies, selected hotels, shopping centres and homes. The scheme is being developed for hospitals, schools and data centres. The key environmental categories covered under NABERS include:

- Energy use and greenhouse emissions;
- Water use;
- Waste; and
- Indoor environment.

The NABERS scheme is voluntary; however, Federal Legislation will require building owners selling or leasing commercial office space greater than 2,000m^2 to disclose their NABERS rating through a Building Energy Efficiency Certificate (BEEC).

3.3.4.2 Green Star

Green Star is a national, voluntary environmental rating system run by the Green Building Council of Australia, which evaluates the environmental design and construction of buildings and communities.

Green Star rating tools are currently available for a variety of sectors. Businesses and organisations are encouraged to have buildings rated under the Green Star system to help reduce the environmental

impact of buildings, improve occupant health and productivity, and achieve real cost savings and showcase innovation in sustainable building practices.

3.3.5 Energy Assessment

Objective		Control	
O1.	To apply principles and processes that contribute to ecologically sustainable development which reduces impacts on the environment.	**C1.**	A report on energy and water efficiency is to be submitted with a development application for any building works with a construction cost of $1,000,000 or more. The report must address how the principles of this DCP Part have been incorporated which should include but not necessarily be limited to: a. Whether the building has achieved a NABERS or Green Star rating. b. Passive solar design principles used to avoid the need for additional heating and cooling. c. How energy efficiency has been incorporated into the design in general, such as the incorporation of building articulation to allow daylight into ground and first floor levels. d. Justification of hot water systems selection. e. Overshadowing of adjoining properties. f. Total anticipated energy consumption. g. Water efficient fixtures and water conservation measures. h. How demand for water and discharge of wastewater will be minimised. i. Incorporation of renewable energy types such as solar hot water heating. j. Use of recycled building materials and materials with low embodied carbon. k. Use of materials that are non-polluting in manufacture, use and in disposal. l. Use of roof lights and vents to internal service rooms at roof top level to minimise reliance on artificial light and ventilation. m. Use of advanced air conditioning systems and new technologies such as chilled beam air conditioning and waste heat recovery systems for larger buildings. n. Incorporate water conservation measures as referred to in this DCP.

3.4 Heritage

3.4.1 Heritage overview - General

Our history, both Indigenous and non-Indigenous is important. Heritage items can include Aboriginal places and objects, buildings, monuments, gardens, bridges, cultural landscapes, parks, archaeological sites, shipwrecks, relics, bridges, streets, industrial structures, and heritage conservation areas. Heritage listings can also apply to single buildings or individual places (heritage items), groups of buildings listed together as a group heritage item, or precincts and suburbs (heritage conservation areas).

The heritage items of Bayside are significant in the course and pattern of Bayside's history and have heritage value to the people of the Bayside Local Government Area (LGA). Local heritage items in the LGA contribute to the community's sense of place and identity and form important links to the past that are protected and conserved for future generations. Heritage conservation does not prevent change, rather it contributes to the rich tapestry of the history and stories that have shaped the places, and people across the Bayside LGA.

The Bayside LSPS reinforces the strategic important of heritage in the future planning of the LGA to ensure that the design of the public domain and built environment respects, protects and enhances the distinctive character, important scenic and cultural landscapes and reinforces the unique stories and diverse histories of communities across Bayside LGA.

Land to which this Part Applies

This Part of the Bayside DCP is to be used to guide proposed development or works to heritage items and within heritage conservation areas and works proposed within their vicinity. It incorporates overarching objectives and detailed provisions which aim to ensure the conservation of heritage in the Bayside LGA, whilst allowing appropriate change to occur. Specifically, it applies to:

- Land that is listed as a heritage item
- Land that forms part of a group heritage listing
- Properties that are located within heritage conservation areas
- Properties that are in the vicinity of heritage items and heritage conservation areas.

Development Application Documentation

Where a proposal seeks to undertake works to a heritage item, on land adjacent to a heritage item or in the vicinity of a heritage item, or within a heritage conservation area, a heritage management document is required to be submitted for consideration, in accordance with Clause 5.10 of the Bayside Local Environmental Plan 2020.

The extent of information required in a heritage management document will depend on the heritage significance of the property, the contribution of the property to a heritage conservation area (if relevant), and the nature and scope of the development proposed. Council may require any of the following heritage management documents:

- **A Heritage Impact Statement (HIS)** (sometimes known as a Statement of Heritage Impact): is required for work to heritage items and work to properties within heritage conservation areas. The type of HIS required depends on the scope of works proposed. Some minor works, such as internal works or repair, will only require a short HIS that can be written by the property owner or architect/designer. If the proposed works will have an impact on significant fabric or alter the structure of the building, the HIS should be prepared by a suitably qualified heritage consultant.

  Heritage Impact Statements should address the following:

  - Historical development of the site

  - Description of the item and its setting (e.g. garden, fences, ancillary buildings, etc)
  - Contribution to the streetscape: height, scale, mass, setback, fenestration, architectural style and period
  - Heritage significance (use heritage manual criteria and state heritage inventory datasheet)
  - Effects of the proposal on the heritage significance of the place and its setting
  - Design options and rationale for the preferred option
  - Relevant conservation principles in accordance with the Burra Charter (where appropriate).

  For more information, refer to the information sheet 'Statements of Heritage Impact' on Council's website. Guidance on preparing Heritage Impact Statements is also available at www.heritage.nsw.gov.au. Council's heritage advisor and planning staff can help prior to lodging your application.

- **A Heritage Assessment (HA)**: may be required by Council where a proposal may affect the heritage values of a place that is not identified as a heritage item within the LEP but may have heritage value. A HA should be prepared by a suitably qualitied heritage consultant.
- **A Schedule of Conservation Works (SoCW)**: may be required by Council as a condition of development consent, if a proposal is submitted for a heritage place in need of repair or maintenance. Refer to Clause 5.10.10 of the LEP.
- **A Conservation Management Plan (CMP)**: is rarely required for residential development. A CMP is only required for places that are considered to have a high level of heritage significance. This will usually be a place of state heritage significance (that is, a place on the State Heritage Register [SHR] or identified in the LEP as a place of state significance), or a heritage item owned by Council.
- **A Conservation Management Strategy (CMS)**: is an alternative to a CMP and provides a broad overview of conservation approaches that apply to the heritage item, and guidance for the management of its heritage values. A CMS may be required for local heritage items, or as an interim document pending the preparation of a full CMP for state heritage items. The CMS should contain a Schedule of Conservation Works describing the conservation and maintenance works proposed to be undertaken to the item.
- **A Heritage Landscape Plan**: may be required if the property has significance for its landscape values, including Parks and significant private gardens. A qualified consultant should be engaged to prepare the Heritage Landscape Plan, when it is required.

Heritage management documents should be prepared in accordance with the following documents and best practice guidelines:

- NSW Heritage Manual (NSW Heritage Office 1996)
- Assessing Heritage Significance (NSW Heritage Office 2001)
- Assessing Significance for Historical Archaeological Sites and Relics (NSW Heritage Branch 2009)
- the relevant principles and guidelines of the Australia ICOMOS Burra Charter, 2013 (the Burra Charter).

Bayside Council acknowledges the principles and practices recommended by the Burra Charter in the conservation of items of cultural heritage, which have informed the preparation of this section of the DCP. The Burra Charter provides guidance for the conservation and management of places of cultural significance (cultural heritage places). The Charter sets a standard of practice for those who provide advice, make decisions about, or undertake works to places of cultural significance, including owners, managers, and custodians.

When preparing a development application, the principles of the Burra Charter should be applied. In the event of any inconsistencies between the Burra Charter and the DCP, the DCP will prevail.

This part has been compiled having regard to the following relevant Acts and documents:

- Heritage Act 1977 (NSW) (the Heritage Act)
- National Parks and Wildlife Act 1974 (NSW) (the NPW Act)
- Environmental Planning and Assessment Act 1979 (NSW) (the EPA Act)
- Bayside Local Environmental Plan 2020
- Environment Protection and Biodiversity Conservation Act 1999 (Cwlth) (the EPBC Act)
- The Government Architect of NSW Design Guide for Heritage
- Bayside Heritage Study 2019
- The Burra Charter.

3.4.2 Aboriginal cultural heritage

For the purpose of this DCP Aboriginal heritage is referred to generally as Aboriginal heritage places.

Aboriginal heritage places may include Heritage Items or Aboriginal places of heritage significance that are listed in the Bayside LEP Heritage Schedule, and/or may be listed on the State government Aboriginal Heritage Information Management System (AHIMS). In Bayside, Aboriginal heritage places that have already been recorded include ancient campsites where Aboriginal people lived, burial places, trees scarred by Aboriginal people, historical Aboriginal camps, historic buildings where Aboriginal people lived or worked, factories and industrial areas that employed Aboriginal people in more recent times, and a range of other places that have cultural or historical associations for Aboriginal people.

Based on archaeological and historical records and Aboriginal community knowledge there are areas which have the potential to contain unrecorded Aboriginal heritage places. These areas of potential have been defined as an 'Area of Aboriginal heritage sensitivity' and are being mapped on the Aboriginal Heritage Sensitivity maps which will be included the future Aboriginal Heritage Management Strategy. Objectives and controls relating to Areas of Aboriginal heritage sensitivity are to be released with the Aboriginal Heritage Management Strategy.

Development consent requirements

Development consent is required for an activity that will impact an Aboriginal object or Aboriginal place of heritage significance, and Council must consider the effect of the proposed activity on heritage significance.

Objective		**Control**	
O1. **O2.**	Respect and value Aboriginal heritage, culture and places in the Bayside LGA. Ensure that new development protects, conserves, and considers that significance of Aboriginal heritage.	**C1.**	Where a development proposal affects an Aboriginal heritage place an Aboriginal heritage assessment report must be submitted with the development application. The report shall: a. be undertaken by a suitably qualified Aboriginal heritage consultant b. contain evidence of Aboriginal community consultation with the

Objective		Control	
			relevant Local Aboriginal Land Council(s) c. include evidence of a site inspection d. consider ways in which harm to known or potential Aboriginal objects can be avoided in relation to the proposed activity and outline the steps to be followed to ensure this e. identify further requirements in situations where harm cannot be avoided, such as archaeological test excavation and application for an Aboriginal Heritage Impact Permit f. provide recommendations for identifying and dealing with unexpected finds

3.4.3 Archaeological management

The heritage and archaeology of Bayside Council is diverse and includes evidence of early contact between Aboriginal and non-Aboriginal people, nineteenth-century European settlement, continuous and ongoing cultivation of land for market gardens since the 1850s, and several items of public works infrastructure of state significance. Archaeological sites are important physical resources which may provide significant information about the past that is not available from other historical sources. This section clarifies how these resources are to be managed.

Under the EPA Act, Council provides management provisions for heritage through the LEP and this DCP. Beyond the requirements of the provisions contained within the Bayside LEP, the Heritage Act affords automatic statutory protection to 'relics' which form part of archaeological deposits. The Heritage Act defines a 'relic' as any deposit, object, or material evidence that: (a) relates to the settlement of the area that comprises New South Wales, not being Aboriginal settlement, and (b) is of state or local heritage significance.

Some areas within Bayside Council have more potential to contain archaeological deposits than others. If a proposed development is located on land listed as having state or local heritage significance in the Bayside LEP an assessment may be required before the application can proceed. The assessment will grade the potential for and significance of potential archaeological deposits and will identify further management requirements, including the need for excavation permits.

As the exact location of some historical archaeological sites may be unknown, controls and policies need to be in place to identify, retain and conserve these sites where possible. Under the Heritage Act there is also an obligation to stop work and contact the Heritage Office if relics are unexpectedly disturbed or uncovered.

The types of place or items studied by historical archaeologists include:

- Archaeological sites: below ground evidence including building foundations, occupation deposits, features and artefacts and above ground evidence, including buildings, works, industrial structures and relics that are intact or ruined.
- Cultural landscapes: areas of land that display evidence of human activity, occupation or significance to a historic group or entity.

- Maritime sites: shipwrecks, deposits, and structures in the water or within the tidal zone

Objective		Control	
O1.	Ensure the protection and conservation of archaeological or potential archaeological sites.	**C1.**	Where it can be reasonably expected that archaeological relics may exist on a property, investigations are to be undertaken to determine the archaeological significance of that site prior to the issue of development consent.
O2.	Ensure the appropriate management and conversation of an archaeological site and relics once its significance has been established.	**C2.**	Where investigations show the site is of archaeological significance, a Heritage Assessment report is to be prepared by a suitably qualified heritage consultant. Depending on the nature of the archaeological significance, this may take the form of: a. Historical Archaeological Assessment b. Heritage Impact Assessment c. Conservation Management Plan
		C3.	Where a proposed development may impact a known or potential archaeological site, excavation permits may be required before works can proceed.
		C4.	Disturbance of below ground relics should be minimised. On sites with state significance, relics may need to be conserved in situ.
		C5.	Design and location of new works should not detract from the inherent significance of the site.
		C6.	Council may impose conditions of consent to ensure any unexpected discovery of archaeological relics ensures these relics are investigated and, where appropriate, preserved.

3.4.4 European Heritage Items

Bayside's heritage is identified through the provisions of the Bayside Local Environmental Plan 2021 (LEP). Planning controls seek to maintain and enhance the identity of the area by protecting heritage listed places and encouraging development that respects the scale and character of the significant heritage fabric.
There is considerable diversity in the architectural styles and periods of development across the LGA. Heritage listed buildings can originate from one of the following periods of development within the local area:

- Victorian (up to 1895–1900)
- Federation (between c1900 and 1915)
- Interwar (between WWI and WWII)
- Post-war (WWII to the 1960s)
- Mid-century (1960s to 1980s)

Objective		Control	
General			
O1.	Maintain the heritage significance and integrity of heritage items and group heritage items.	**C1.**	Any development application for works to a heritage item must be accompanied by a Heritage Impact Statement as required by the Bayside Local Environmental Plan 2020.
O2.	Ensure new work is sympathetic and provides for the long-term conservation of the heritage item.	**C2.**	Development of a heritage item must: a. protect the setting of the heritage item b. retain the significant internal and external fabric and recycle, re-purpose and re-use fabric and building elements c. avoid 'facadism' by retaining all significant elements of the building including the structure, floor, roof, floor and wall framing, fittings and finishes, fabric and materials (including the interior when it is of significance) d. remove unsympathetic elements where they are directly affected by the development. e. reinstatement of missing building elements and details is encouraged but should be based on evidence and not conjecture. f. use materials, finishes and colours that are appropriate to the architecture, style and age of the heritage item g. reflect the dimensions, pattern and style of original window and door openings when creating new openings h. maintain and repair the building in order to keep the heritage item in good condition
O3	New development to support ongoing care, maintenance, use and re- use of heritage items.		
		C3.	The design and siting of new work must complement the form, orientation, scale and architectural style of the heritage item.
		C4.	Encourage heritage items to be used for purposes that are appropriate to their heritage significance.
		C5.	Adequate open space must be provided around the heritage item to maintain significant or historic public domain views to and from the heritage item.
		C6.	Original or significant landscape features that are associated with the heritage item

Objective		Control	
			and/or contribute to the setting must be retained. Where it can be demonstrated that changes to significant elements of a heritage item are unavoidable, they must be reversible where possible.
		C7.	Development of a heritage item must seek to reconstruct missing architectural detailing where possible, including gables, joinery details, front verandas or bays. Verandas on the front and sides of a heritage item shall not be infilled.
		C8.	Development of buildings which form part of group heritage items must ensure that the integrity of the group is retained. Alterations and additions should be located at the rear and designed such that the significant scale, form, features, and materials of the group are retained.
Alterations and Additions			
O4.	Ensure that important elements and features of a heritage item are not obscured or destroyed by alterations and additions.	**C9.**	Alterations and additions must not adversely impact the significance of a heritage item and, where possible and appropriate, locate additions and alterations in the footprint of previous additions on the site and minimise their visibility and prominence from the street.
O5.	Ensure alterations and additions to heritage listed commercial buildings are designed to minimise the impact on the heritage significance of the item.	**C10.**	Maintain the integrity of the building form (including the roof form and profile) so that the original building is retained and can be clearly discerned, particularly when viewed from the public domain.
		C11.	The height of an addition must not project above the main ridgeline of the heritage item.
		C12.	Changes at the rear of heritage items are generally supported where new work does not impact on the heritage significance of the heritage item or alter its scale. Additions should be designed to be submissive in scale to the original building.
		C13.	Original shopfronts and awnings must be retained and must not be covered by solid roller doors or security screens.
		C14.	Existing open first floor balconies shall not be enclosed.
		C15.	Original painted signs on walls shall not be painted over or damaged.

Objective		Control	
		C16.	New commercial signage shall be sympathetic to the proportion and colour scheme of the façade. Neon signage, rooftop signage, signage to first floor facades and signage painted onto face brickwork is not permitted.
		C17.	Rear extensions shall not be visible from the street and dormer and roof windows are not permitted on roofs visible from the street.
		C18.	Where possible, locate ancillary infrastructure on other non-significant structures, such as existing non-significant garages, to minimise intervention in significant fabric.
Design and Materiality			
O6.	Materials, details and finishes that contribute to the significance of heritage items must not be removed or obscured.	**C19.**	Retain and conserve original materials and details. Original materials of heritage items must not be replaced with different materials.
O7.	Retain original features, proportion of walls and openings that contribute to the aesthetic quality and/or significance of a heritage item.	**C20.**	The original roof cladding of a heritage item (slate, tiles or corrugated iron) must not be changed if it is in good repair. Replacement of roof cladding must use the same materials as the original roof.
		C21.	The front façade of a heritage item is not to be rendered or painted unless paint is the original finish.
		C22.	External colour schemes must be sympathetic to the heritage item and based on historic research and paint scrapings (where appropriate).
		C23.	Original door and window openings are to be retained and repaired. If non-original doors or windows are to be replaced the new doors or windows must match the proportions and materials of the original.
		C24.	Extensive areas of glazing visible from the public domain are not permitted unless this was a feature of the original design of the building.
		C25.	New skylights, air conditioners, solar panels, skylights and other infrastructure are to be located on roof planes facing away from the street and must not be visible from the public domain.
Landscaping			

Objective		Control	
O8.	Retain and protect heritage listed landscapes and garden elements that contribute to the significance of heritage items.	**C26.**	A Heritage Landscape Plan may be required for development that impacts heritage-listed gardens.
		C27.	Established trees that contribute to the significance of the heritage item shall not be removed unless it can be established by an arborist that the health of the tree is such that it requires removal. Where such trees are removed, they should be replaced with trees of the same species.
		C28.	Original or early garden layouts that contribute to the significance of the heritage item are to be retained. Garden elements that are original shall not be removed, including trees, plants, paths, decorative features, walls and fencing.
		C29.	Original fences shall be repaired and retained and original face brick or stone fences must not be painted or rendered.
		C30.	New fencing and gates must be of a style that is consistent with the style of the dwelling.
		C31.	New fencing forward of the building line (i.e. front boundary fencing) shall be between 700–1200mm in height, unless justification can be provided to establish a greater height (e.g. if the property is located along a major road; the original fencing was of a greater height).
		C32.	Driveways are to be designed as concrete or brick strips with grass or gravel in between. Hard landscaping is to be minimised.
Parking and Garages			
O9.	Minimise the visual intrusion of new structures that accommodate vehicles.	**C33.**	Garages and carports are to be located at the rear or at a minimum of 3 metres behind the front building line of the existing house. If there are significant side windows the garage or car port must be set back behind these.
		C34.	Where a property has access to a rear lane, vehicle accommodation is to be located adjacent to the laneway with vehicle access from the laneway.
		C35.	Garages must be sympathetic and recessive to the front building line and proportionally less than the remaining front façade. They should be integrated with or

Objective		Control	
			hidden from the overall design of the building in terms of height, form, materials, detailing and colour. Roller doors are not permitted, garage doors are to be tilt or panel lift doors.
Interiors			
O10.	Ensure that significant interior layouts and elements of heritage items are retained and conserved. **Note**: Building interiors often have heritage significance. This does not mean that interiors cannot be upgraded or changed; however, where a building's interior or parts of that interior have heritage value, the heritage listing seeks to retain and incorporate those values into proposals. If changes to the principal rooms of a heritage item are proposed, this is to be addressed within the HIS. Council may request current photographs of the interiors of the heritage item as part of a HIS to assist in understanding the heritage significance of an interior.	**C36.** **C37.** **C38.**	Minimise change to significant internal room layouts and finishes. Allow for reversibility of internal changes to significant areas where possible. Retain significant building entrances, hallways and foyers and internal features such as cornices, ornamentation, fireplaces, original flooring, plasterwork etc. Locate changes away from main rooms that have intact or significant internal features. New openings in internal walls must retain the structural integrity of the building and should retain significant ceilings and cornices. The ability to interpret original wall positions and room proportions is desirable.
Integration of Heritage Items and Change of Use			
O11.	Heritage significance is the foundation of design development and future use.	**C39.** **C40.**	The history of uses of a building is to be interpreted on the site in the form of interpretation panels, artefact, and photographic displays, in situ retention of machinery and/or artistic interpretation. Where a heritage item is proposed to be integrated into new development of larger scale, a Conservation Management Plan must be prepared that includes guidelines for the appropriate use and development of the place, and detailed policies for its conservation. The design of the proposal should include appropriate measure to: a. ensure the heritage significance of the item is conserved b. document how the proposal achieves the conservation of the item's heritage significance c. retain a suitable setting for the heritage item that enables the continued appreciation and integrity of the heritage item

Objective		Control	
			d. ensure that repair and stabilisation treatments to heritage items identified in the conservation and design process are to be carried out to promote the conservation of the item e. ensure that interventions do not adversely impact on the significant fabric and construction of the heritage item.
		C41.	Any proposal for a change of use, including the adaptive re-use of a heritage item, should demonstrate the following: a. that the new use minimises alteration of significant fabric and detailing, and incorporates the existing fabric into the development proposal b. that the impact of alterations to the external form and fabric and interior spaces minimise impact and retain the integrity of the heritage item c. that the significant original use of the item is interpreted d. that the original signs and building names are retained in situ that the impacts from the introduction of new services into the interior and the exterior of the heritage item are minimised
Subdivision and Amalgamation			
O12.	Ensure that subdivision and amalgamation of land involving a heritage item maintains an appropriate visual and physical curtilage for the conservation of the significance of the heritage item, including its setting and views to and from the item.	**C42.**	Original subdivision boundaries and patterns should be interpreted in the site layout, building form, setbacks, and landscape design.
		C43.	Lot boundary changes shall not occur when the lot boundaries form part of the significance of the heritage item.
		C44.	Lot boundary changes to heritage items shall involve the retention of significant features such as trees, gardens and outbuildings associated with the heritage item.
		C45.	Lot boundary changes to large allotments shall ensure that all significant elements associated with the heritage item are retained.
Demolition of Heritage Items			

Objective		Control	
O13.	Retain all heritage items within the Bayside LGA.	**C46.**	Heritage items must not be demolished.
		C47.	Despite the above, Council may consider the demolition of a heritage item, but only where an applicant can satisfactorily demonstrate why it is not reasonable to conserve the heritage item taking into consideration: a. the heritage significance of the property b. the structural condition of the building c. that alternative options to demolition have been considered with reasons provided as to why the alternatives are not acceptable.
		C48.	Applications for demolition of a heritage item must be accompanied by a proposal for a replacement development.

3.4.5 Development adjoining or in close proximity to Heritage Items

Objective		Control	
O1.	Ensure that development in the vicinity of a heritage item or heritage conservation area is designed and located such that the significance and setting of the heritage item or HCA is conserved.	**C1.**	New development in the vicinity of heritage items or heritage conservation areas must respect the significance of the heritage item, its built character and architectural significance with regard to the following: a. building envelope b. proportions c. setbacks d. scale e. material and colours
		C2.	Development in the vicinity of a heritage item or heritage conservation area must demonstrate that it: a. retains adequate space around the heritage item to enable its interpretation b. conserves significant landscape features including horticultural features, trees, rocky outcrops and outbuildings c. enables archaeological sites to be conserved in accordance with relevant approvals

Objective		Control	
			d. retains significant public domain views and lines of sight to the heritage item

3.4.6 Development in Heritage Conservation Areas

This section applies to properties that are located within Heritage Conservation Areas (HCAs). HCAs are listed within Schedule 5 of the Bayside LEP and identified on the Bayside LEP Heritage Maps.

HCAs can be streetscapes, suburbs, areas, and precincts that are recognised by a community for their distinctive historic character. They often evidence a particular historical period of development and an architectural style, generally have a high proportion of original buildings, and provide a cohesive sense of place and character which is valued by the community. Their significance is often a function of the subdivision and street pattern, and buildings that share common periods of development, historical associations, materials, form, and scale. Heritage conservation areas are afforded similar statutory protections within LEPs as individual heritage buildings.

This section provides controls to ensure that new work is sympathetic to the heritage significance and the character of the conservation area.

Buildings within HCAs are classified as contributory, neutral or uncharacteristic. Building classifications are identified on the maps accompanying each HCA.

- Contributory buildings generally originate from the significant era of development of the HCA and display the key characteristics of the area through their architectural style and typology, scale, form, features and materials.
- Neutral buildings usually originate from the original era of development but have been much altered, although the alterations can usually be reversed. Contemporary buildings that respond to the significant scale and character of the HCA can also be neutral.
- Uncharacteristic buildings are usually buildings from a later era that are inconsistent with the scale and form of characteristic development.

Some properties in HCAs will also be listed as individual heritage items; such places may be particularly fine examples of their type or may have significance for their association with a person or group of people, distinguishing them from the other places in the HCA.

This part of the DCP should be applied in addition to the specific controls for heritage items. In the event of any inconsistency the controls in **Part 3.4.4** take precedence for heritage items. This part also provides general controls for Heritage Conservation Areas, specific controls that relate to each individual Heritage Conservation Area can be found in **Section 7.**

Objective		Control	
General			
O1. **O2.**	Contributory buildings are retained, and their positive contribution to the area or streetscape maintained and enhanced. Encourage removal of unsympathetic alterations and additions to neutral	**C1.**	The scale, form and character of contributory buildings and principal or significant street frontage is to be retained, as viewed from the public domain with alterations and additions located where are not visible from the street.

Objective		Control	
	buildings to improve the context and visual impact of neutral buildings.	**C2.**	Development to contributory buildings shall: a. respect significant original or characteristic built form b. retain original scale and form as viewed from the public domain c. respect significant traditional or characteristic subdivision patterns d. retain significant original fabric as seen from the street e. retain, and where possible reinstate, significant original features and building elements that contribute to the character of the street, including original balconies and verandas, fences, chimneys, joinery and similar fabric f. Remove previous unsympathetic alterations and additions g. Use appropriate materials, finishes and colours h. Respect the pattern, style and dimensions of original windows and doors
		C3.	Additional storeys above the original building are not permitted. Additions shall be clearly separated from the host building and should not be visible from the street. Rear pavilions are the preferred method of extending a contributory building.
		C4.	Development to neutral buildings shall: a. Remove previous unsympathetic alterations and additions, including inappropriate building elements b. Respect the original building in terms of form, bulk and scale, as well as that of the prevailing character of the street c. Minimise the removal of significant features and building elements d. Use materials finishes and colours characteristic to the HCA. e. Provide a more positive contribution to the significance and character of the HCA
Alteration and Additions			
O3.	Alterations and additions be designed to complement the special qualities of the HCA, the significance of the character	**C5.**	Alterations and Additions will not have a detrimental impact on the character or significance of the HCA.

Objective		Control	
	and streetscape and conserve the scale and context of the contributory buildings.	**C6.**	Additions are to preserve significant aspects of the HCA such as scale, roofscape, building form, external materials, details and bulk. Additions shall be designed and located such that they are not visible from the street.
		C7.	Neutral buildings are to be sensitively altered to be more characteristic of the area. A contemporary or contrasting form may be used where such additions are not visible from the street to distinguish original and new work. Pavilion additions and rear additions are encouraged.
		C8.	Additional storey additions that change the scale of the host building are not permitted.
		C9.	Additions should be located at the rear.
		C10.	The roof form and pitch of additions must complement that of the host building and be sympathetic to the detailing of the host building. Where visible from the street, roof forms are to respond to the local context, in terms of form, scale, pitch and material.
		C11.	Roof conversions may occur where the roof form can accommodate rooms wholly within the existing roof form. Characteristic roof forms shall not be altered and dormers are not permitted to the front elevation of the host building.
		C12.	In semi-detached houses and contiguous groups of terrace houses, additions and alterations are not to impact on the symmetry of the host building.
Design and Materiality			
O4.	Ensure the retention of original materials and details to converse the character of the contributory item and HCA.	**C13.**	Original details and materials are to be retained where possible and traditional building elements including windows, doors, hardware, chimneys, verandas, wall surfaces and other characteristic features of the building, are to be retained and repaired. Repair and replace joinery in profiles to match the original detail.
O5.	New materials and details compliment the local character, scale and context of the contributory item and HCA.	**C14.**	New materials, colours and details must reflect the historical character of the conservation area, where visible from the street.
		C15.	External colour schemes should be complementary to the heritage

Objective		Control	
			conservation area, based on research, and have regard of the setting.
		C16.	Exposed surfaces such as brickwork, stone, tiles and shingles must not be painted or rendered.
Landscaping			
O6.	Ensure front gardens, original fencing and wall features are part of the streetscape, where appropriate to the character of the conservation area.	**C17.**	Traditionally designed gardens that enhance the appearance of historic houses and the streetscape are encouraged.
		C18.	Retain, repair, and reinstate original and traditional fences and retaining walls. Later fences where they reflect traditional fence design are to be retained and missing fences reconstructed to their original design based on documentary evidence.
		C19.	Front fences are to be between 700–1200mm high measured from ground level, except where the existing historic fences demonstrate an alternative prevailing height. Higher fences are only permitted along major roads.
		C20.	Original or early garden layouts that contribute to the significance of the conservation area should not be altered and original surviving garden elements such as gates, paths, edging tiles, brick kerbing and similar fabric must be retained.
		C21.	Driveways are to be designed as concrete or brick strips with grass or gravel in between. Hard landscaping is to be minimised. Full width concrete driveways are not supported.
Parking and Garages			
O7.	Minimise the visual intrusion of new structures that accommodate vehicles.	**C22.**	Garages and carports are to be located at the rear or behind the front building line of the existing house to allow the original form of the host building to remain clearly visible.
		C23.	Where a property has access to a rear lane, vehicle accommodation is to be located adjacent to the laneway with vehicle access from the laneway.
		C24.	Significant historic kerbing is to be retained and new crossovers must relocate existing brick and stone kerbing.
Infill Development			

Objective		Control	
O8.	Infill development shall be consistent with characteristic development in the HCA in terms of height, bulk, scale, setback, materials, and character.	**C25.**	New development within heritage conservation areas shall be designed to positively respond to the significance of the HCA, be consistent in scale, bulk and form with characteristic development maintain the setting and the character of the area. **Note**: A preferred approach is to design new buildings in a contemporary manner, which is sympathetic to the surrounding area.
		C26.	New development must be sited to reflect the front and side setbacks and predominant orientation of the HCA and the established pattern of setbacks within a street or precinct. **Note**: Where there is a variation in the front setbacks within a street, the prevalent pattern of setback along the entire length of the street should be used to determine the appropriate front setback.
		C27.	Infill development must incorporate the use of materials and details that are compatible with, yet do not directly copy, those of contributory buildings in the streetscape and colours used should be recessive (i.e. not prominent) so that they do not visually dominate the HCA.
		C28.	The roof form and roofing materials of new development should be consistent with characteristic development within the HCA.
		C29.	New landscaping is to be compatible with the character of surrounding heritage buildings and be designed to minimise the visual appearance of new development to reduce its impact on the heritage item or HCA.
Subdivision or Amalgamation in Heritage Conversation Areas			
O9.	Ensure that subdivision and amalgamation of land in a HCA is commensurate with the heritage significance of the area, and conserves the important characteristics of the subdivision pattern and allotment layout, streetscape character and notable features.	**C30.**	All development proposals should demonstrate how they have interpreted the original subdivision pattern within the HCA.
		C31.	Lot boundary changes are not supported where the development pattern or early subdivision is integral to the heritage significance of the HCA.
		C32.	Lot boundary changes within HCAs should retain significant features such as buildings,

Objective		Control	
			archaeology, trees, gardens, and outbuildings associated with the pattern of development of that area.
		C33.	Amalgamation of sites within HCAs must allow for the ongoing interpretation of the original subdivision through building form and landscape design.
Demolition of buildings within Heritage Conversation Areas			
O10.	Ensure that all buildings and elements that contribute to the significance and character of a HCA are retained.	**C34.**	Buildings that are identified as contributory items within an HCA must not be demolished.
O11.	Encourage the replacement of uncharacteristic buildings with buildings that respond better to the significance and character of the HCA.	**C35.**	Buildings that are identified as neutral items within an HCA should be retained where possible.
		C36.	Despite C34 and C35, Council may consider demolition of a contributory or neutral item, but only when the applicant can satisfactorily demonstrate that: a. the building does not contribute to the significance of the HCA b. all reasonable alternatives to demolition have been considered c. the building is structurally incapable of retention and adaptation d. the replacement building is compatible with characteristic development in terms of height, bulk, scale, form, setbacks and character
		C37.	Council will consider the demolition of uncharacteristic items when the applicant can demonstrate that the replacement building will be designed to respond to characteristic height, bulk, scale, form and character such that it will allow the site to be reclassified as ‘neutral’.
Retail Streetscapes in Heritage Conservation Areas			
O12.	Ensure that the special public domain character of retail shopping streetscapes is retained and conserved.	**C38.**	New lots must be orientated at 90 degrees to the street alignment.
		C39.	Re-subdivision must be consistent with the traditional pattern in the area and will be assessed by Council using a merit-based approach.
		C40.	The existing setbacks must be retained and matched by new development (generally meaning buildings shall be built to the front and side boundaries).

Objective		Control	
		C41.	Additions and alterations must retain the prevailing building height of the streetscape when viewed from the street.
		C42.	Significant original roof forms, where visible from the street, must be retained. Removal of original parapets shall not be permitted.
		C43.	Dormer and roof windows are not permitted on roofs visible from the street.
		C44.	New commercial signage shall be sympathetic to the proportion and colour scheme of the façade. Neon signage, rooftop signage, signage to first floor facades and signage painted onto face brickwork is not permitted.
		C45.	Original painted signs on walls shall not be painted over or damaged.
		C46.	Existing open first floor balconies shall not be enclosed.
		C47.	Original shopfronts and awnings must be retained and must not be covered by solid roller doors or security screens.

3.5 Transport, Parking and Access

This section provides controls for aspects of a development relating to movement, access, and parking provision of and for vehicles. The provisions aim to satisfy the parking demand likely to be generated by the development whilst discouraging unnecessary car use and encouraging other modes of transport.

Development shall facilitate and encourage greater pedestrian, bicycle, and public transport usage to improve local amenity, minimise pollution and the use of non-renewable resources. Parking areas, garages and driveways must be carefully designed so that they do not detract from the appearance of the development and the surrounding streetscape. For technical requirements and required documentation for the layout and design of parking and access within a development refer to Bayside Technical Specification - Traffic, Parking and Access.

3.5.1 Design of the Parking Facility

Objective		Control	
O1.	To minimise the visual appearance of on-site parking areas on the streetscape.	**C1.**	Off-street parking facilities, including carports, are generally not permitted within the front setback due to the impact on streetscape and landscape character. Driveways/hardstands and carports encroaching into the minimum front boundary setback may be considered for single dwelling houses in circumstances where:
O2.	To securely distinguish parking areas for different users of a development.		
O3.	To ensure adequate ingress and egress to the site and parking facilities.		

Objective		Control	
O4.	To ensure the safe and efficient circulation and manoeuvring of vehicles and minimise the potential of pedestrian and vehicle conflict in the on-site parking areas.		a. the hardstand or carport is to serve a single dwelling house (not permitted for any other form of residential development); b. there is no opportunity to provide off street parking from a rear lane, side street, or behind the required front setback; c. the hardstand or carport is for a single vehicle and is no larger than 3m in width, 6m in length and 3m in height if a flat roof, or 3.6m if a pitched roof; d. the design is sympathetic to the host dwelling and the existing streetscape, in regard to materials, scale, form, roof style and the predominant setbacks of similar structures; e. the carport does not include enclosing walls, or a solid panel or roller shutter door; f. gates do not encroach upon public land during operation and a minimum length of 5.5m is available so that a parked vehicle does not overhang the front boundary; and g. all other requirements of this DCP are met, including landscaping requirements.
		C2.	For mixed use development, residential on-site parking areas are to be clearly separated from parking areas associated with other uses by installation of a security roller door or boom gate.
		C3.	The design/width of the access driveway shall minimise the loss of on-street parking and be as per with Bayside Technical Specification - Traffic, Parking and Access.
		C4.	Off-street parking facilities are to be designed in accordance with current Australian Standards (AS2890 parking series).
		C5.	Tandem or stacked parking shall comply with the following: a. a maximum of two (2) spaces will be permitted for each tandem/stacked parking arrangement.

Objective		Control	
			b. each tandem or stacked parking arrangement shall be allocated to the same residential/commercial unit and not be used for visitor parking c. shuffling of stacked vehicles shall be carried out wholly within the premises d. stacked parking in excess of two vehicles may be appropriate where valet parking is provided, or parking is managed by a single operator.
Vehicular Access			
O5.	To ensure that on-site car parking, loading facilities and driveways do not dominate or detract from the appearance of the development and the local streetscape.	**C6.**	A maximum of one vehicular access point is permitted per property.
		C7.	Development shall avoid vehicular access points being located: a. in places with high traffic volumes, such as classified or arterial roads b. close to intersections as outlined in Section 3.2.3 of AS2890.1 c. where there is heavy or constant pedestrian movements along the footpath d. where vehicular access would interfere with or blocks the operations of bus stops, taxi ranks, loading zones or pedestrian crossings e. less than 0.5m from any power pole f. adjacent to or at the sag point of the street g. in places where sight distance requirements outlined in Section 3.2.4 of AS2890.1 cannot be complied with h. within the dripline/canopy of trees
O6.	The location and design of on-site parking areas, including vehicular entry points, are: a. safe and functional for all vehicles, pedestrians and other road users b. accessible to all vehicular movements generated by the development c. designed to minimise the loss of on-street parking d. designed to prevent potential queueing on a public road reserve		
O7.	To ensure that on-site parking areas do not interfere with traffic flow and safety in adjacent public roads or endanger pedestrian traffic on or off the site.		
O8.	Ensure that the safety of pedestrians in the public domain is preserved.	**C8.**	The following developments shall be designed with internal manoeuvring areas so that vehicles can enter and exit the site in a forward direction: a. Developments with four or more dwellings/car spaces b. Childcare centres & boarding houses c. Developments with vehicle access to/from a classified road d. Industrial & commercial development
O9.	To reduce the apparent scale and visibility of vehicular access points from the primary street.		
O10.	To allow for safe access and exiting of vehicles from a property.		
O11.	To provide sufficient driveway width for vehicles to safely access the property.		

Objective		Control	
			e. Developments with basement car parking accessed via a steep ramp f. Where council considers it necessary due to the site-specific circumstances
O12.	To allow for safe queueing of vehicles within car parking areas.	**C9.**	Adequate sightlines are to be provided for pedestrians on the footpath as per Australian Standards.
		C10.	Vehicular access is to be provided from a secondary street frontage or rear lane, where possible.
		C11.	The maximum driveway gradients for at least the first six (6) metres into the property shall be no greater than 1 in 20 or 5% (except for low density residential development).
		C12.	Access driveways/vehicular crossings are to be designed to accommodate the turning circle of the largest vehicle expected to use the service area without crossing the centreline of the road. Specific consideration is to be given to two-way simultaneous movements.
		C13.	The location of vehicle control points (e.g. roller doors / boom gates) are to allow sufficient queuing areas (minimum 1) within the site for entering vehicles.
Pedestrian Access			
O13.	To provide safe, legible, and convenient pedestrian access from car parking and other public areas.	**C14.**	Pedestrian entrances and access within a development must be legible and separated from vehicular access paths.
O14.	To delineate building entrances, pedestrian zones, or other specialised areas in car parking areas.	**C15.**	Car parks must provide a direct and safe pedestrian access to a building's entry and exit (well-lit and free of concealment opportunities).
		C16.	Pedestrian access routes between car parking and other public areas are to provide: a. co-ordinated signage b. lighting c. security d. direct paths of travel with stairs and disabled access ramps e. protected from vehicular aisles and manoeuvring areas by bollards f. for childcare centres, the parent drop off/pick up spaces are to be provided with a minimum 1.5m

Objective		Control	
			dedicated pedestrian link connecting to the child care centre entrance which does not protrude into, and is protected from, the vehicular manoeuvring areas g. for laneways, where possible provide a minimum 0.9m laneway setback for the extension of the public footpath covered by a right of footway easement.

3.5.2 Traffic Impact Assessment and Transport Plans

Objective		Control	
O1. **O2.**	Ensure that development considers traffic and parking impacts on the local and surrounding road networks. Ensure adequate traffic safety and management is considered in the design of the proposed new parking/access scheme.	**C1.**	A Traffic and Parking Impact Assessment Report is to be prepared and submitted for development: a. listed in Schedule 3 of State Environmental Planning Policy (Transport and Infrastructure) 2021 b. listed in **Table 3** below with a GFA in excess of 600m^2 c. where, in the opinion of Council, the proposed development is likely to generate significant traffic impacts
		C2.	The Traffic and Parking Impact Assessment Report is to be prepared by a qualified and experienced traffic engineer and prepared generally in accordance with the most recent version of the RTA "Guide to Traffic Generating Developments (2002") and AUSTROADS "Guide to Traffic Management, Part 12: Traffic Impacts of Development."
		C3.	Traffic and Parking Impact Assessments are to assess the design of the parking facility in regard to Australian Standards. Numerical parking provisions are also to be assessed.
		C4.	Swept path analysis is to be provided for manoeuvring of passenger, commercial and servicing (truck) vehicles within the development. The swept path diagrams shall be prepared by recognised software (e.g. Auto Track, Auto Turn or equivalent) in accordance with Australian standards and include a scale, dimension and legend.
		C5.	The Traffic and Parking Impact Assessment Report is to undertake a cumulative traffic impact assessment for 'all developments' in

Objective		Control	
			the area (including current and approved Development Applications). **Note**: Council will supply information on the current and approved DAs to be taken into consideration.
Sustainable Transport Management			
O3. **O4.**	Ensure that the demand for transport generated by development is managed in a sustainable manner. Encourage staff to make good use of public transport, cycling, walking and car sharing for commuting work-related journeys and hence reduce car based travel demand.	**C6.**	Commercial developments with more than 10 employees and a GFA greater than 1000m^2 are required to prepare a Workplace "Green" Travel Plan. It is to be prepared accordance with Bayside Technical Specification - Traffic, Parking & Access and generally incorporate the following: a. Encourage staff to use public transport, cycle and/or walk to the workplace; b. Adopt car sharing and/or car pool scheme; c. Provide priority parking for staff with car pool; d. Provide bike storage area and end-of-trip facilities in convenient locations and encourage the use of these facilities; e. Adopt an implementation Strategy and set success measures; f. Establish clear and time bound measurable targets, actions, measurements, and monitoring framework on the number of staff travelling to work by public transport, cycling and walking.
		C7.	Council may reduce the requirement for onsite parking provisions (up to 10% of total parking spaces required) for commercial and industrial developments when both Workplace "Green" Travel Plans and Transport Access Guides are provided.

3.5.3 On-site Car Parking Rates

Objective		Control	
O1.	To provide sufficient, convenient, and safe on-site car parking while encouraging alternative modes of transport, such as walking and cycling.	**C1.**	Development is to provide on-site car parking in accordance with the car parking rates outlined in **Table 3** below.
		C2.	Council may reduce car parking provision in certain circumstances, as follows:

Objective		Control	
O2.	To discourage excess parking in development close to public transport.		a. Peak Parking and traffic activity occurs during periods where surrounding parking demand is lowest b. Existing site and building constraints make provision of car parking impractical c. Located adjacent to high frequency public transport services and/or urban services d. Includes management regimes to minimise car use, such as Workplace "Green" Travel Plans or on-site car share schemes e. Provides a business or social service that benefits the local community and contributes to the vitality of the area f. Safety of motorists, pedestrians and cyclists is unduly compromised by the provision of car parking g. Development contributes to heritage conservation of the building and setting Any request for a reduced car parking provision is to be accompanied by a traffic and parking impact assessment report.
O3.	To limit the amount of excavation required for the purpose of car parking so that impacts to groundwater flows are minimised and the amount of landscaped area is maximised.	**C3.**	No additional parking is required for a change of use involving commercial uses on existing sites that are less than 100m2 GFA.
		C4.	A 20% reduction in the "non-residential" component of the parking requirement shall be applied to any development within the Rockdale Town Centre, Arncliffe/Banksia Town Centre and Wolli Creek Town Centre.
		C5.	Where a development involves a change of use or alterations/additions that would generate a greater car parking requirement than existing, additional parking is required to be provided equivalent to the difference between the two parking requirements. **Note:** Any historical deficiency in parking for the existing use can be applied as a credit to the parking calculation.
		C6.	In the case of substantial alterations and additions that effectively involve the virtual reconstruction of a building, the historical

Objective		Control	
			deficiency will not be permitted to be credited to the parking calculation.
		C7.	For alterations and additions to single dwellings, where the existing parking facilities on the site are not considered to be functional and designed as per Australian Standards, those areas will not be considered as existing parking spaces and as such, a historical shortfall will apply.
		C8.	Council may waive the requirement for on-site parking for single dwellings, where such provision (in the form or a garage, carport, or handstand area) would: a. adversely impacts on the existing streetscape b. adversely impacts a Heritage Item or Heritage Conservation Area c. be inconsistent with the Desired Future Character of the area
		C9.	Where a contribution has previously been made to Council towards the provision of car parking in respect of a particular property, such contribution is to be taken into account when assessing the parking requirement for any redevelopment of the land.
		C10.	The number of parking spaces for small cars (as defined in AS2890.1) is not to exceed 10% of the total car parking spaces.
Car Wash Bays			
O4.	To ensure car wash facilities are provided as part new multi-unit residential development.	**C11.**	For all multi-unit development with at least 5 dwellings, one (1) car wash bay is to be provided for every 60 dwellings or part thereof. The car wash bay can either be a dedicated space or shared with a visitor parking space. The dimensions of each car wash space are to be at least 3.5m wide and 5.4m long.
		C12.	Car wash bays are to be fully bunded and discharge only to the sewer in accordance with Sydney Water requirements. Each car wash bay is to be covered, appropriately signposted, have a cold-water tap (typically connected to the rainwater tank) and a waterproof power outlet.
Shared Parking Concession			

Objective		Control	
O5.	To outline requirements for shared parking schemes to provide for a more efficient and sustainable parking facility.	**C13.**	Shared parking concession for mixed use development may be considered, where: a. the applicant provides justification for all temporal parking demand assumptions applied within the Shared Parking Register; b. all residential parking is freely accessible to residents at all times and not used for any other use on the site; c. land uses and subsequent peak parking demand periods are included within the Shared Parking Register; d. the minimum parking requirement as per the Shared Parking Register is the absolute minimum and should not necessarily be the acceptable minimum provided on-site. Consideration must be taken into account for future changes of use within the development and conservative variations within the peak times. **Note**: The method of completing the shared parking register is outlined in Bayside Technical Specification - Traffic, Parking and Access.

Table 3: Car Parking Rates

The provision of parking to satisfy the rates in Table 3 below must not be at the expense of providing landscaped area in accordance with part 3.7.1 of this plan. This may require parking to be located within the building footprint, either inside the building or in a basement, to maximise the area of the site available for landscaping and tree planting.

Land use	Car Parking Rate
Residential	
Dwelling House / Dual Occupancy / Semi-detached	• 2 spaces per dwelling
Secondary Dwelling	• 1 space per dwelling
Multi Dwelling Housing	• 1 space per dwelling with 1 bedroom or less • 2 spaces per dwelling with 2 bedrooms or more • 1 visitor parking space per 5 dwellings.

Land use	Car Parking Rate
Residential Flat Buildings/ Shop-top Housing	• 1 space per dwelling with 1 bedroom or less • 2 spaces per dwelling with 2 bedrooms or more • 1 visitor parking space per 5 dwellings. For sites located within 800m of a railway station, the car parking rates are as stipulated in the RTA Guide to Traffic Generating Developments (version 2.2 dated October 2002) section 5.4.3 - Metropolitan Sub-Regional Centres.
Affordable housing, boarding houses, group homes, co-living housing, build-to-rent housing, and seniors housing	As per requirements stipulated in State Environmental Planning Policy (Housing) 2021
Commercial	
Commercial Premises (including business premises, office premises and retail premises)	1 space / 40 m² GFA
Commercial Premises (including business premises, office premises and retail premises) located within 800m of Mascot Train Station	1 space / 80 m² GFA
Amusement centres	1 space / 25m² GFA
Animal boarding and training establishment	1 space / 40m² GFA
Bulky good premises	Parking Assessment based on survey of similar developments is required, Otherwise, the following applies: • 1 space / 50m² GFA
Entertainment facilities	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / 2 employees; plus • 1 space / 10 seats; or • 1 space / 10m² GFA (including ancillary spaces such as kitchens, offices, foyers and the like), whichever is greater
Function centres	• 1 space / 2 employees; plus • 1 space / 10 seats; or • 1 space / 10m² GFA (including ancillary spaces such as kitchens, offices, foyers and the like), whichever is greater
Registered clubs	Parking Assessment based on survey of similar developments is required, otherwise the following applies: • 1 space / 2 employees; plus • 1 space / 5m² GFA
Restricted premises	1 space / 40m² GFA
Sex services Premises	1 space / person offering sex services, in addition to the number required for the residential accommodation.
Health consulting room	3 spaces / each surgery, consulting room or treatment room

Land use	Car Parking Rate
Industrial	
Depots	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / employee; plus 3 visitor parking spaces
Freight transport facilities	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / employee; plus • 3 visitor parking spaces; plus • 1 space / each commercial vehicle or trailer parking, holding, servicing or repair on the site
General industry	• 2 spaces; or • 1 space / 80m² GFA, whichever is greater; plus 1 space / 40m² GFA of ancillary office
Heavy industrial storage Establishment	• 2 spaces; or • 1 space / 80m² GFA, whichever is greater; plus 1 space / 40m² GFA of ancillary office
Heavy industry	• 2 spaces; or • 1 space / 80m² GFA, whichever is greater; plus 1 space / 40m² GFA of ancillary office
Light industry	• 2 spaces; or • 1 space / 65m² GFA, whichever is greater; plus 1 space / 40m² GFA of ancillary office
Self storage units	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 2 spaces; plus • 1 space / 80m² GFA
Service station	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / 200m² site area; plus • 1 space / 40m² GFA of convenience store
Storage premises	• 2 spaces; plus • 1 space / 80m² GFA
Transport depots	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / employee; plus • 3 visitor parking spaces; plus • 1 space / each commercial vehicle or trailer parking or servicing on the site
Truck depots	Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / employee; plus • 3 visitor parking spaces; plus • 1 space / each commercial vehicle or trailer parking or servicing on the site
Vehicle body repair workshops	• 1 space / 50m² GFA
Vehicle repair stations	• 1 space / 50m² GFA

Land use	Car Parking Rate
Warehouse or distribution centres	• 2 spaces; or • 1 space / 300m² GFA, whichever is greater; plus 1 space / 40m² GFA of ancillary office
Tourist and Visitor Accommodation	
Backpackers accommodation	• 1 space for manager; plus • 1 space / 2 employees; plus 1 space / 100 m² GFA; plus 1 space for mini-bus **Note:** Size of a mini-bus is defined equivalent to Small Rigid Vehicle (SRV) in AS2890.2
Hotel or motel accommodation	**Hotel Accommodation** • 1 space per 4 rooms; plus • 1 taxi pick-up and set-down space / 100 rooms; plus • 2 coach pick-up and set-down spaces; plus • An efficient shuttle bus service must be provided by the development between the Hotel, Sydney Airport and the City. The shuttle bus service is to run at hourly intervals between the operating hours of the Sydney Airport. **Note**: A porte-cochere is to be provided for taxi and coach pick up and set-down, designed to appropriately accommodate the vehicles and their swept paths. Size of a coach is defined equivalent to Heavy Rigid Vehicle (HRV) in AS2890.2. **Motel Accommodation** • 1 space for manager; plus 1 space / 2 employees; and • 1 space / bedroom
Bed and breakfast accommodation	1 space for resident owner or manager; plus 1 space / guest room
Serviced apartments	• 1 space / 2.5 units; plus • 1 space / 2 employees; plus • 1 taxi pick-up and set-down space / 300 rooms • An efficient shuttle bus service must be provided by the development between the Serviced Apartments, Sydney Airport and the City. The shuttle bus service is to run at hourly intervals between the operating hours of the Sydney Airport. **Note**: A Porte-cohere is to be provided for taxi pick up/set down, designed to appropriately accommodate the vehicles and their swept paths.
Infrastructure	
Child care centre	1 space / 2 employees; plus 1 pick-up and set-down space / 20 children
Community facilities	• 1 space / 10 seats; or • 1 space / 10m² GFA (including ancillary spaces such as offices, foyers and the like), whichever is greater

Land use	Car Parking Rate
Educational establishments	**Schools** Infants, Pre-schools and Primary Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / 2 employees; plus • 1 pick-up and set-down space / 50 students; plus 1 bus pick-up and set-down space Secondary Parking Assessment based on survey of similar developments is required. Otherwise, the following applies: • 1 space / 2 employees; plus • 1 space / 10 students (Year 12); plus • 1 pick-up and set-down space / 100 students; plus • 1 bus pick-up and set-down space **Note:** Size of a bus is defined equivalent to Heavy Rigid Vehicle (HRV) in AS2890.2 **Others** Parking Assessment based on survey of similar developments is required. However, as a minimum: • 1 space / 2 employees; plus • 1 space / 5 students
Emergency services facilities	• 1 space / 2 employees; plus • 1 space / each emergency vehicle parking on the site
Health consulting rooms	• 3 spaces / each surgery, consulting room or treatment room **Note:** minimum 1 accessible parking spaces for people with disabilities shall be provided
Hospitals	• 1 space / 3 beds; plus • 1 space / each health care professional/management staff; plus • 1 space / 2 other employees; plus • 1 ambulance bay **Note:** minimum 1 accessible parking spaces for people with disabilities shall be provided
Industrial training facilities	• 1 space / 2 employees; plus • 1 space / 10 visitors
Information and education facilities	• 1 space / 2 employees; plus • 1 space / 10 visitors
Medical centres	• 3 spaces / each surgery, consulting room or treatment room **Note**: minimum 1 accessible parking spaces for people with disabilities shall be provided
Passenger transport facilities	Parking Assessment based on survey of similar developments is required.

Land use	Car Parking Rate
Places of public worship	• 1 space / 10 seats; or • 1 space / 10m² GFA (including ancillary spaces such as offices, foyers and the like), whichever is greater
Public administration building	• 1 space / 40m² GFA
Respite day care centres	• 1 space for manager; plus • 1 space / 2 employees; plus 1 space for mini-bus
Recreation	
Recreation facilities (indoor)	**Squash court** • 3 spaces / court **Indoor swimming pool** • 1 space / 10m² pool area; plus 1 space / 2 employees **Gymnasium** Within 400m radius of railway station or 200m radius of a public bus stop (minimum frequent two bus routes): • 1 space / 25m² GFA Any other locations: • 1 space / 10m² GFA *(Note: A commercial gym for personal fitness is typically defined as a business premises, not a gymnasium)* **Bowling alley** • 3 space / alley **Dance Studio** • 1 space/ 25m² GFA **Others** • Parking Assessment based on survey of similar developments is required.
Recreation facilities (major)	Parking Assessment based on survey of similar developments is required.

Land use	Car Parking Rate
Recreation facilities (outdoor)	**Golf course** • 1 space / hole; plus • 1 space / 2 employees; plus • 1 space / 5m² GFA of club house **Tennis Court** • 3 spaces/ court **Lawn bowling green** • 30 spaces for first green; plus • 15 spaces / each additional green **Outdoor swimming pool** • 1 space / 10m² pool area; plus 1 space / 2 employees **Others** Parking Assessment based on survey of similar developments is required.

Notes:
- The numbers shall be rounded up to the nearest whole number before they are added together
- Where a parking rate has not been specified in the table, the RTA Guide to Traffic Generating Developments shall be used to calculate the parking requirements for the proposed development. Alternatively, a parking study may be used to determine the parking, subject to Council approval.

3.5.4 Bicycle and Motorcycle Parking

Objective		Control	
O1. **O2.**	To ensure adequate bicycle and motorcycle parking spaces are provided in development. To ensure bicycle and motorcycle parking is designed appropriately.	**C1.**	Bicycle & motorcycle parking must be provided on site as follows: **Multi Dwelling Housing/Residential Flat Buildings/Shop Top Housing/Serviced Apartments/Build-To-Rent Housing**: a. 1 bicycle space per dwelling (for residents) b. 1 bicycle space per 10 dwellings (for visitors) c. 1 motorcycle space per 15 car spaces **Commercial Premises (Business Premises, Office Premises, and Retail Premises):** a. 1 bicycle space per 150sqm GFA b. 1 bicycle space per 400sqm GFA provided for visitors c. 1 motorcycle space per 15 car spaces

Objective		Control	
			Boarding Houses and Co-Living Housing: a. 1 bicycle space per 1 private room or boarding room b. 1 motorcycle space per 5 private rooms or boarding rooms **Child Care Centres**: a. 1 bicycle space per 10 children **Tourist and Visitor Accommodation:** a. 1 bicycle space per 4 employees **For all other new development with a gross floor area greater than 600m²:** a. 1 bicycle space per 600sqm GFA b. 1 motorcycle space per 15 car spaces
		C2.	Bicycle parking facilities shall be designed in accordance with most recent edition of AS2890.3 and AUSTROADS. Motorcycle parking is to be designed as per AS2890.1.
		C3.	Bicycle parking for residents/staff of a building is to be in the form of individual bicycle lockers/cages or as bike racks within a well-lit secure room/structure monitored by security camera surveillance (security level A or B from table 1.1 of AS2890.3:2015).
		C4.	All visitor bicycle spaces shall be located at the entrance to the development and be designed as security level C from table 1.1 of AS2890.3:2015.
		C5.	Bicycle parking in basements is to be located on the uppermost level of the basement close to entry/exit points.
End of Trip Facilities			
O3.	To ensure non-residential development is provided with suitable end of trip facilities.	**C6.**	Non-residential development shall provide end of trip facilities on site as follows: a. 1 personal locker for each bike parking space b. 1 shower and change cubicle for every 10 bicycle spaces or part thereof c. 1 bicycle repair toolkit and pump d. Toilets, drying rooms, and hand washing facilities.
		C7.	End of trip facilities are to be located close to the bicycle parking area, close to entry

Objective		Control	
			and exit points and within an area of security camera surveillance.
		C8.	End of trip facilities are accessible for all staff.

3.5.5 Accessible parking

Objective		Control	
O1.	To ensure accessible parking spaces are provided in compliance with the requirements of the *Disability (Access to Premises – Building) Standards 2010*.	**C1.**	Accessible car parking spaces for people with a mobility impairment are to be included in the allocation of car parking for a development and provided in accordance with the rates specified in **Table 4** below.
		C2.	Accessible car spaces are to be allocated to the relevant adaptable units as part of any multi-dwelling or high-density residential development. Accessible car parking spaces allocated to adaptable dwelling units are to form part of the lot of the associated adaptable unit in the strata plan.
		C3.	Car parking facilities are to be designed to prioritise the location of accessible parking spaces so they are in close proximity to lifts and access points.

Table 4: Accessible Parking

Development Types	Accessible Parking
Residential apartment buildings, conversion of non- residential buildings into apartments, shop top housing, multi dwelling housing and live/work buildings (includes mixture of classes for those including commercial and industrial components).	Half of the adaptable dwellings provided in a development are required to have allocated accessible resident car parking, (e.g. 8 adaptable apartments requires a minimum of 4 accessible car parking spaces). The residential accessible spaces can be designed to comply with either AS4299 or AS2890.6. The visitor and commercial accessible car parking spaces must comply with AS2890.6.
Hotels, motels, serviced apartments and boarding houses containing guests/tenants' rooms. Hostels and backpackers' accommodation.	There is to be one accessible parking space for every accessible room or unit as specified by Table D3.1 of BCA Accessible parking spaces are to be designed as per AS2890.6.
Commercial and industrial developments (including office premises, business premises, retail premises, industry, and warehouses). Places of assembly (including cinemas or churches).	In a car parking area containing 5 or less vehicle spaces, one accessible car parking space shall be provided although not signposted and reserved only for people with disabilities.

Development Types	Accessible Parking
Public buildings (including council and government offices), health care buildings, educational establishments, childcare centres. Residential Care Facilities, Aquatic centres, public swimming pools, public open space and Facilities.	In a car parking area containing 6 or greater car parking spaces, one accessible car parking space will be provided for every 50 car parking spaces or part thereof. Car parks for retail and medical facilities shall instead provide 5% of car parking spaces as accessible. Accessible parking spaces are to be designed as per AS2890.6.

3.5.6 Loading Facilities

Objective		Control	
O1.	To ensure that adequate on-site loading facilities are provided for service vehicles.	**C1.**	The number of service bays are to be provided in accordance with **Table 5** below.
O2.	To avoid loading and unloading being undertaken in a public place, public streets, or any road related area.	**C2.**	Loading points are to be designed to: a. allocate sufficient areas for the efficient access, collection, and delivery of goods b. allow delivery vehicles to be able to access buildings safely and efficiently c. minimise the impacts of noise on building occupants, near neighbours and the local area d. not dominate or detract from the appearance of the development and the local streetscape e. not be positioned within the front landscape setback
		C3.	Service bays and loading docks for service vehicles, include access to these areas, are to be designed in accordance with AS2890.2 and AUSTROADS guidelines. Dimensions of loading bays shall be as per AS2890.2.
		C4.	Service bays are to be adequately screened from the street/public view and be located: a. near vehicle entry points and near lifts b. as far as practicable from adjoining sensitive land uses c. completely within the boundary of the site d. clear of parked vehicles and through traffic.
		C5.	Large format retail tenancies (e.g., greater than 1000m^2) are to justify that the loading

Objective		Control	
			dock and size of service vehicle can adequately accommodate the loading requirements of a supermarket.
		C6.	Loading bays are to be clearly designated and signposted for service vehicles only and are not to be used for other purposes such as storage of goods and equipment.
		C7.	Service vehicles are to be able to enter and exit the property in a method that does not compromise pedestrian safety.
		C8.	Loading and waste collection points shall be: a. located separately from public parking areas where possible b. designed and operated so that the vehicles can manoeuvre on site without interfering with buildings, parked vehicles, and landscaping
		C9.	A loading dock management plan is to be prepared for all development. This management plan shall also to address waste collection.

Table 5: Loading/Unloading Facilities

Land Use	Minimum Number of Loading Bays Required					
Commercial Premises (Business, Office & Retail)	GFA (sqm)	Van	SRV	MRV	HRV	AV
	0 - 199	1	-	-	-	-
	199 - 999	-	1	-	-	-
	1000 - 2999	1	-	1	-	-
	3000 - 4499	1	1	1	-	-
	4500 - 5999	2	1	1	-	-
	6000 - 8999	3	2	2	1	1
	9000 - 14999	5	3	3	1	1
	15000 – 26999	6	3	3	2	2
	27000 – 39999	8	3	4	3	2
	40000 and over	Subject to Study				
Residential flat buildings, Multi dwelling housing, shop top housing, boarding house	**10 dwellings or less** • 1 Van service bay **11 to 49 dwellings** • 1 SRV service bay **50 dwellings and above** • 1 MRV service bay; plus • 1 service bay (for MRV or larger) for every additional 100 dwellings					
Hotel or motel accommodation	**No. of rooms**	**Van**	**SRV**	**MRV**	**HRV**	
	0 – 199	2	1	1	-	
	200 – 399	2	1	1	1	
	400 – 599	3	1	2	1	
	600 and over	3	2	2	1	
Industrial	**< 8000 m² GFA** • 1 service bay (for MRV or larger) / 800 m² GFA **8000 m² GFA and above** • 10 service bays (for MRV or larger); plus • 1 service bay (for MRV or larger) / 1,000 m² GFA					
Note:	Van = B99 Vehicle (defined in AS2890.1) SRV = Small Rigid Vehicle (defined in AS2890.2) MRV = Medium Rigid Vehicle (defined in AS2890.2) HRV = Heavy Rigid Vehicle (defined in AS2890.2) AV = Articulated Vehicle (defined in AS2890.2) Where calculated provision of servicing bays numbers results in a fraction, the requirements shall be rounded up to the nearest whole number. For land uses not specifically listed, the number of service bays required is to be equivalent to its most comparable land use.					

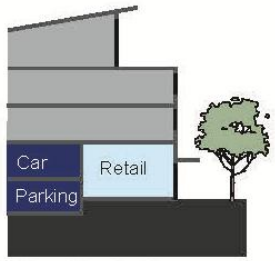
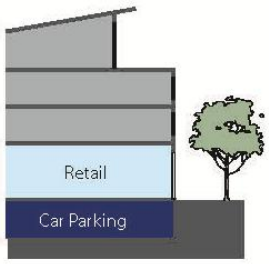
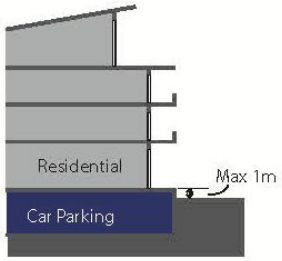
3.5.7 Waste collection

Objective		Control	
O1. **O2.**	Improve amenity by minimising the impact of waste collection activities/bin storage on the public domain. To ensure waste collection points:	**C1.**	Waste collection must be provided on-site within new building development (excluding development with less than 600m^2 GFA and multi-unit developments with 10 dwellings or less). This waste collection bay may be

Objective		Control	
	a. allocate sufficient areas for the efficient access, storage and collection of waste and recycling b. allow collection vehicles to be able to access buildings to remove waste safely and efficiently c. minimise the impacts of noise and odour from waste and recycling handling on building occupants, near neighbours and the local area d. do not dominate or detract from the appearance of the development and the local streetscape		shared with another loading/unloading space. Access must be designed to accommodate a Council garbage truck, or any vehicles used by private waste contractors (SRV minimum).
O3.	Waste management and recycling processes adopted by residential facilities are guided by the *Better practice guide for resource recovery in residential developments (EPA, 2019)*.	**C2.**	The waste collection point is to be designed to: a. allow waste loading operations to occur on a level surface away from parking areas, turning areas, aisles, internal roadways and ramps b. provide sufficient side, rear and vertical clearance to allow for the waste collection activity to be undertaken (e.g. the lifting arc for automated bin lifters requires clearance to remain clear of any walls or ceilings and all service ducts, pipes and the like). c. comply with Bayside Technical Specification - Traffic, Parking and Access.
		C3.	Waste rooms are to be located as close as possible to the waste collection point. Where this cannot be provided for and waste rooms are spread out across the basement of a development, a method to internally transport waste to the collection point is to be provided.
		C4.	Where collection vehicles are required to enter inside a building, the design of the building shall provide for: a. a minimum vertical clearance of 4.5 metres for MRV vehicles and 3.5m headroom clearance for SRV vehicles (clear of all service ducts, pipes etc) b. collection vehicles to enter and exit the premises in a forward direction c. the driveway width and gradient to be as per AS2890.2.

3.5.8 Basement Parking

Objective		Control	
O1.	To design basement layouts that aim to: a. maximise pedestrian safety b. create high quality ground level relationships between the building and the public domain.	**C1.**	Basement car parking is preferred for large scale residential and commercial development.
O2.	To improve safety for pedestrians within the public domain.	**C2.**	For single dwelling development with basement parking spaces, the basement shall be designed to enable forward entry and exit from each space to ensure sightlines and pedestrian safety is maintained.
O3.	To allow flexible car parking arrangements to improve efficiencies in space for car parking.		
O4.	To maximise the use of natural light and ventilation in basement parking areas.	**C3.**	Ventilation grills and screening devices of car park openings are to be integrated into the overall façade and landscape design of the development.
O5.	To ensure stacked parking is appropriately managed.		
O6.	To minimise and ameliorate the effect of car parks at the ground level.	**C4.**	Natural light and ventilation must be introduced into semi-basement parking, where possible.
		C5.	Basement parking areas are to be: a. adequately ventilated, preferably through natural ventilation and provided with daylight where feasible b. located within the building footprint to maximise opportunities for deep soil planting c. located fully below natural ground level d. Where site conditions mean that locating the basement fully below natural ground level is unachievable, the maximum basement elevation above natural ground level is to be 1m at any point on the site, or in flood prone areas, to the minimum floor level required by Council e. designed for safe and convenient pedestrian movement and to include separate pedestrian access points to the building that are clearly defined and easily negotiated
		C6.	Above ground parking areas are to be: a. Sleeved with active uses/ retail/lobbies/residential units etc. b. Have sufficient floor to ceiling heights that allow the area to be adapted into other uses.

Objective		Control	
	 Parking with active frontage to the street  Parking is located underground and within the building footprint  Half basement parking to residential development elevates dwellings above the street and allows some natural light and ventilation to the basement. This may be suitable for flood prone sites **Figure 6: Example basement parking areas**		
Car Parking Areas – CPTED			
O7.	To maximise the natural surveillance and visibility to and from car parking areas.	**C7.**	Dense vegetation, solid fences, and unnecessary structures along the perimeter of the car parking area is not permitted.
O8.	To ensure the design and siting of car parking does not reduce pedestrian and cyclist amenity and safety within the car park or in the street.	**C8.**	Parking spaces shall be designed to provide effective sightlines from moving cars, and between parked cars to enhance pedestrian safety.
O9.	To ensure pedestrian access to car parking areas is safe, convenient, and direct.	**C9.**	Entry to basement parking areas will be through security access via the main building. This access will be fitted with a
O10.	To minimise the opportunities for concealment within car park areas.		

Objective		Control	
			one-way door from the foyer into the basement.
		C10.	Access to car parks from common areas are to be secured by lockable doors.
		C11.	For multi-storey car parking, stairwells are to be open or see through to enable informal surveillance to be provided to and from the public areas.
		C12.	Car parking pedestrian entry and exit points shall be located on the street level to maximise pedestrian flow and natural surveillance from active uses on the ground floor.
		C13.	The number of pedestrian entry and exit points for multi-storey car parks are to be minimised.
		C14.	For residential developments, accesses to car parks from common areas are to be secured by lockable doors.

3.5.9 New and Emerging Transport and Parking Facilities

Objective		Control	
O1. **O2.**	Large scale development is to consider new and emerging transport opportunities. Development is to reduce the demand for private motor vehicle parking and use.	**C1.** **C2.**	Above ground carparks for large developments shall have a layout and design that is capable of being adapted in the future into alternative, non-vehicle parking uses such as storage, commercial uses, community uses etc. Mechanical parking facilities (car stackers, turntables, car lifts and fully automatic mechanical car parks etc.) will be assessed on merit. A traffic report will be required to be provided assessing compliance with AS2890 parking series along with manufacturer's specifications addressing how the mechanical facility will be implemented on site.
Car Share Schemes			
03.	Establish requirements for car share schemes to reduce the demand for car parking.	**C3.** **C4.** **C5.**	Residential development with more than 25 dwellings and commercial premises with a GFA greater than 1000m^2 are to provide on-site carparking for car share at the following rates: • 1 car share space for every 50 car spaces within the development. • Developments located within 800m of a train station are to provide car share spaces at 1 per 25 car parking spaces. The car share space(s) within a residential development can either replace a visitor car parking space or be provided in addition to the required car parking provision. Council may also consider a car share space in lieu of some resident parking (to replace up to 5 car parking spaces) supported by a traffic and parking study. This parking offset can be used once only. Where provided, car share parking spaces are to be: a. located together b. clearly designated by signs as being for car share scheme use. c. to be retained as common property by the Owners Corporation of the site and not to be sold or leased to an individual owner or occupier d. Publicly accessible at all times, adequately lit, line marked, sign posted and located off street.

Objective		Control	
			e. The car share space must be dedicated solely for the use as a car share space and be made available to car share operators without a fee.
Electric Vehicle (EV) Charging			
O4.	To ensure new buildings provide the infrastructure to support the increased ownership of electric vehicles.	**C6.**	All multi-unit residential car parking spaces must be 'EV-Ready'. An 'EV-Ready' car space requires the provision of a backbone cable tray and a dedicated spare circuit within an EV Distribution Board enabling future installation of a smart EV charger and cabling to the EV Distribution Board.
		C7.	At least 20% of non-residential car parking spaces in development with a total GFA greater than 1000m2 shall be 'EV-Equipped'. An 'EV-Equipped' car space is a car space equipped with EV fast charger that is ready to use on completion of the development. These may be payment operated systems. At minimum, the charger(s) will need to be 'Level 2' fast charging charger – three-phase with 11-22kW power or greater as defined by NSW Electric and Hybrid Vehicle Plan.
		C8.	EV Distribution Board(s) shall be of provided of sufficient size to allow connection of all car spaces 'EV-Ready' and 'EV Equipped'. EV Distribution board(s) shall be located so that no 'EV-Ready' car space will require a cable run greater than 55m from the parking bay to an EV distribution board. Development shall provide cable trays sufficient to accommodate the electric circuitry to each 'EV-Ready' and 'EV Equipped' car spaces.
		C9.	EV Distribution Boards are to be dedicated to EV charging and capable of supplying not less than 50% of EV connections at full power at any one time during off-peak periods, to minimise impacts to maximum demand loads. To deliver this, an EV Load Management System and an active suitably sized connection to the main switchboard is required.
		C10.	EV Load Management System is to be capable of: a. Reading real time current and energy from the EV chargers under

Objective		Control	
			management via ethernet connection; b. Determining, based on known installation parameters and real time data, the appropriate behaviour of each EV charger to minimise building peak power demand whilst ensuring electric vehicles connected are fully recharged; c. Scale for residents to engage an EV Load Management provider to provide additional smart chargers to residential car spots over time. Further details are within Bayside Technical Specification - Traffic, Parking and Access.

3.5.10 Materials, Colours, Lighting, Landscaping, and Signposting

Objective		Control	
Materials, Colours and Signposting			
O1.	To visually alleviate the massing and expanses of hard pavement to improve amenity and pedestrian safety.	**C1.**	A variety of alternative paving materials and colours are to be incorporated into large parking areas. A design scheme including, but not limited to, colour schemes, surface/wall/column finishes, mid rails/skirting boards is to be provided by an interior designer.
O2.	To provide a durable and safe ground surface in car parking areas.	**C2.**	Ground surfaces that are publicly accessible are to be: a. slip-resistant b. traversable by wheelchairs c. indicate changes of grade by use of materials which provide a visual and tactile contrast
O3.	To ensure parking bays are clearly identifiable.	**C3.**	Car parking areas are to be adequately finished with fully sealed surfaces, internal drainage systems, line markings, appropriate kerbing, paved aisle dividers and/or wheel stops.
		C4.	The pavement in internal circulation roadways, aisles, parking areas, turning circles, etc., are to be designed and constructed to withstand the specific wheel loadings of vehicles likely to use them.
		C5.	For parking facilities with separate ingress and egress points, these are to be clearly signposted.

Objective		Control	
		C6.	All parking bays are to be clearly designated, sign posted, and line marked. Signage and line marking shall comply with AS2890.1.
Landscaping			
O4.	To maximise opportunities for deep soil planting and landscaping.	**C7.**	Appropriate landscaping responding to site conditions and surrounding context, particularly the transition between public and private spaces is to be provided on-site. **Note**: the landscaping part of this DCP provides guidance on these requirements.
		C8.	Outdoor parking areas should be landscaped to provide shade, to improve the visual amenity of large, all-weather surfaces and to provide a buffer to neighbouring properties and may incorporate integrated water cycle management measures. Where possible, permeable paving is to be used for car parking areas to increase opportunity for deep soil landscaping.
Lighting			
O5.	To ensure adequate lighting is provided in the on-site parking areas.	**C9.**	Adequate lighting is to be provided if the parking facility will be used at night or is within a basement. Particular consideration is needed for places where liquor is sold.
O6.	To manage potential amenity impacts on surrounding properties from light spillage.	**C10.**	The design of lighting is to be in accordance with relevant Australian Standards (AS4282 & AS1158).
		C11.	Where residential or other sensitive properties closely abut large on-site parking areas, consideration is to be given to the management of glare and light spillage into adjacent properties.

3.6 Social Amenity, Accessibility and Adaptable Design

Planning for the population growth in Bayside must be responsive to the diversity of the Bayside community and appropriate for their diverse needs. By improving the social amenity, access to the built environment for people with a disability there are wider community benefits because of the increased opportunities for people with a disability to participate.

Creating safe, accessible, and functional housing, public spaces and buildings for a diverse demography including the elderly, families with children, and people with permanent or temporary disabilities will create a more inclusive and accessible city that provides non-discriminatory, equitable and dignified access for all residents, workers, and visitors.

The Bayside LSPS Planning Priority 7 is to provide choice in housing to meet the needs of the community, which includes increasing the amount of housing that is universally designed and Liveable Communities is a focus area of the Bayside Disability Inclusion Action Plan.

3.6.1 Accessibility

Bayside should be a place that is inclusive and accessible for everyone. People who design, build, own, manage, lease, operate, regulate, and use premises have responsibilities and rights under the Disability Discrimination Act, 1992 (DDA). The DDA is a Commonwealth Act which seeks to eliminate bias against people with disabilities and protect their rights.

The DDA states that failure to provide equal access is unlawful, unless to do so would impose an unjustifiable hardship. The Building Code of Australia (BCA) and associated Australian Standards set technical requirements regarding the accessibility of buildings.

It is noted that the Building Code of Australia (BCA) and Disability Discrimination Act (DDA) must be complied with on their own terms, and that, compliance with the BCA alone does not automatically signify compliance with the DDA and vice versa. Applicants must demonstrate compliance with both standards, in addition to the controls outlined in this Section of the DCP.

Objective		**Control**	
O1.	To ensure that all people within Bayside can participate in community life and easily access all public spaces and premises, services and facilities provided.	**C1.**	The siting, design, and construction of premises available to the public are to ensure an appropriate level of accessibility, so that all people can enter and use these premises.
O2.	Provide dignified and equitable access and facilities for all people to all new development and upgraded or intensified uses in existing buildings.	**C2.**	All development must comply with the following: all Australian Standards relevant to accessibility; the Building Code of Australia access requirements; and Disability Discrimination Act 1992. Complex developments where compliance is proposed through alternative solutions must be accompanied by an Access report prepared by a suitably qualified access professional.
O3.	Increase understanding of access issues for people with disability through investigation and implementation of best practice.		
O4.	Ensure that new developments meet the principle of 'dignified access', which is defined as not imposing less favourable conditions on a person with a disability in entering a premises or using facilities, which is less convenient, dignified or safe than the access provided for other members of the public.	**C3.**	Ensure all publicly accessible buildings provide a safe and continuous path of travel for people with impaired mobility.
		C4.	A high standard of women's facilities, amenities for parents in both women's and men's toilets and amenities for people with disability (i.e. lift and change facilities) in buildings available to the public.
		C5.	Where heritage impact is used as a reason for not providing equitable access in accordance with this Section, evidence is to be provided that no suitable alternatives for access are available.
		C6.	Required egress routes in residential development are to allow for safe escape

Objective		Control	
			for persons with a disability including, but not limited to, waiting space on landings within fire stairs and provision of accessible egress paths from ground floor apartments.
		C7.	Access for pedestrians and vehicles are to be separated.
		C8.	Where viable, ramping solutions are considered preferable to lift solutions due to the absence of machinery, which may affect accessibility should the machinery fail.
		C9.	Where a ramping solution not considered adequate, or considered excessive in terms of spatial requirements or cost, lift solutions must appropriately consider the following matters: a. Safety – consideration must be given to ensuring that lifts avoid conflict with stairs (for example, an inclinator located alongside a stairway, which in the event of mechanical failure may also block stair access), as well as the possibility that a wheelchair and accompanying carer may need to use the lift at the same time, with adequate space provided accordingly. b. Ease of use – lifts should be as simple to use as possible, being intuitively easy for a member of the public to understand, requiring minimal physical effort on the part of the user, and avoiding the need for an assistant or permanent staff member to operate. c. Reliability – where possible, machinery should be protected from the elements, and an adequate Plan of Management should be in place to manage maintenance and repair should a mechanical failure occur, ensuring that repair times are minimal and the machine parts included in the functioning of the lift are as simple and universally available as possible to ensure that staff and equipment can be sourced as close to the premises as possible to minimise delays. d. Comfort – lifts should be comfortable for occupants to use,

Objective		Control	
			minimizing exposure to the elements and ensuring that a visitor requiring its use is guaranteed the same level of dignified, equitable and safe access as a visitor who does not require its use. These requirements must be balanced against other constraints affecting the relevant subject site, including such matters as landscaping and the provision of car parking.
		C10.	It should also be recommended that accessibility solutions incorporate, where appropriate, landscape screening to minimise their visual impact.

3.6.2 Adaptable Dwellings and Universal Housing

Adaptable and universally designed dwellings are conventional dwellings that incorporates elements that are 'designed in' to meet people's changing mobility requirements over their lifetime and visitation by people with a disability. Typical features include level and relatively wide doorways, non slip surfaces, easy to use door handles, reachable power plugs, hobless shower recesses, and reinforced bathroom walls to facilitate grab rails.

In addition, flexible apartment design is also desirable to allow buildings to accommodate a diverse range of lifestyle needs such as different household structures, live/work housing arrangements and future changes in use.

This section applies to all development in Bayside for attached dwellings, multi dwelling housing, residential flat buildings, shop top housing and is encouraged for new dwelling houses, semidetached dwellings, and dual occupancy development. Design criteria for adaptable and liveable housing are set out in the relevant Australian Standards and *State Environmental Planning Policy 65- Design Quality of Residential Apartment Development*.

Objective		Control	
O1.	To increase the supply of adaptable and universal housing.	**C1.**	For all new dwelling house, semi-detached dwelling, and dual occupancy development should consider incorporating universal design measures.
O2.	Provide a reasonable proportion of residential units in multi-unit developments which are designed to be flexible and easily modified to cater for occupants with an existing or progress disability.	**C2.**	All new attached dwelling, multi dwelling and residential flat building development must incorporate the following universal design measures for all ground floor dwellings a. An accessible continuous path of travel from the street entrance and/or parking area to dwelling entrance. b. At least one level entrance into the dwelling.
O3.	Encourage to use the Universal Housing Guidelines which provide best practice examples of accessible design.		

Objective		Control	
O4.	To promote sustainable development by extending the usability of a dwelling to meet 'whole of life' needs of the community.		c. Internal doors and corridors widths that facilitate comfortable and unimpeded movement between spaces. d. A toilet on the ground (or entry) level that provides easy access. e. Reinforced walls around the toilet, shower and bath to support the safe installation of grab rails at a later date. f. A continuous handrail on one side of any stairway where there is a rise of more than one metre.
		C3.	A minimum 20% of total dwellings in new multi dwelling housing, shop top housing and residential flat buildings containing 10 or more dwellings must be adaptable dwellings and designed and constructed to a minimum Class C Certification under AS 4299 Adaptable Housing.
		C4.	Where the development does not provide for lifts, the adaptable dwellings are to be located on the ground floor of the development.
		C5.	Design for adaptable apartments should include, but not limited to: a. convenient access to communal and public areas b. high level of solar access c. minimal structural change and residential amenity loss when adapted d. larger car parking spaces for accessibility e. parking titled separately from apartments or shared car parking arrangements
		C6.	The design of adaptable dwellings must be integrated into the development with the use of consistent materials and finishes.
		C7.	Where proposed, all adaptable and universally designed dwellings must be clearly identified on the submitted DA plans.

3.6.3 Social Impact

Social impacts are the consequences that people experience when a project brings about change and can be uniquely social or intrinsically related to other environmental impacts. The intangible nature of many social impacts, and the complexity of identifying, mitigating, and managing them, means that a 'one size fits all' approach doesn't result in effective management of social impacts.

A social impact assessment (SIA) is an evaluation of the social consequences of a proposed decision or action (such as development proposals, plans, policies, and projects) on affected groups of people and

on their way of life, life chances, health, culture, and capacity to sustain these. The preparation of a Social Impact Assessment responds to the scale of the project and potential impacts and provide recommendations that will respond to the needs of affected communities and mitigate the likely social impacts throughout the lifecycle of the development proposal.

The social impacts of planned development activity are required to be addressed under Section 4.15 of the Environmental Planning and Assessment Act (1979). In addition to this, Community Impact Statements are required under Section 48 of the Liquor Act (2007).

Bayside Council has discretion to require the preparation of a Social Impact Assessment for any development that it considers will likely generate social impacts.

Objective		**Control**	
O1.	Ensure that development applications demonstrate the proposal and design has considered the social value, benefits and potential impacts resulting from development and can be adequately assessed and managed throughout the life of the development, from construction to operation.	**C1.**	The development types or activities that Council requires the preparation of a Social Impact Assessment is listed in table below
		C2.	In addition to those listed in the table below, Council may require the preparation of a Social Impact Assessment for any other development that it considers likely to generate social impacts
		C3.	Where a Social Impact Assessment is not required, social impacts are to be addressed in the Statement of Environmental Effects (SEE) accompanying a development application. At a minimum, the Statement of Environmental Effects is to consider: a. the potential social impacts; b. the scale of those impacts; c. the likely extent of those impacts including when and where they might occur; d. outcomes of any discussions with affected people or groups; and e. any measures to maximise the positive impacts and eliminate or minimise negative impacts'
		C4.	A SIA should be prepared by a suitably qualified social planner with training and/or extensive experience in the field of community needs analysis and community consultation.
		C5.	The preparation of a SIA should take into account the impact of a proposed development on people experiencing homelessness and/or sleeping rough, with consideration given to The Protocol for Homeless People in Public Places, available to view at: https://www.facs.nsw.gov.au/providers/working-with-us/programs/homelessness/specialist-services/partnerships/safe-in-public/protocol

Table 6: Development types of activities that require the preparation of a Social Impact Assessment

Type of Development	Scale (SIA threshold)
Residential flat building	> 100 units
Affordable Housing	> 20 units
Group Homes	All
Social Housing	All
Boarding Houses	>10 rooms
Extended Trading Hours, wholesale liquor sale, liquor outlets and licensed restaurants	All
Pubs (LEP definition); bottle shops, registered clubs, nightclub, Licence public entertainment venue	All
Places of Public Worship	>200 patrons or greater than 250sqm
Major Shopping Centres *Note: Council may also require an economic/retail assessment to understand the potential impacts to business and alignment to Council's centres and employment lands strategies.*	New or expanded by 20,000 sqm
Sex services premises and restricted premises	All
Health services facilities	New or major expansion
Recreation facility	Major
Educational establishments (including schools, TAFE and universities)	New or major expansion
- Major public utility undertaking - Passenger transport,	Regional

3.7 Landscaping, Private Open Space and Biodiversity

3.7.1 Landscaping

Landscaping includes all areas of the site that are not occupied by buildings and structures or primarily used for other purposes such as vehicle parking, access and manoeuvring and should predominantly be made up of grasses, plants and other landscape elements such as outcrops or pervious paving.

One of the purposes of landscape controls are to retain and increase canopy cover and drainage/water quality within the site and respond to biodiversity/drainage corridors on adjoining sites, while also supporting efforts for 'urban cooling' and responding to flood risks.

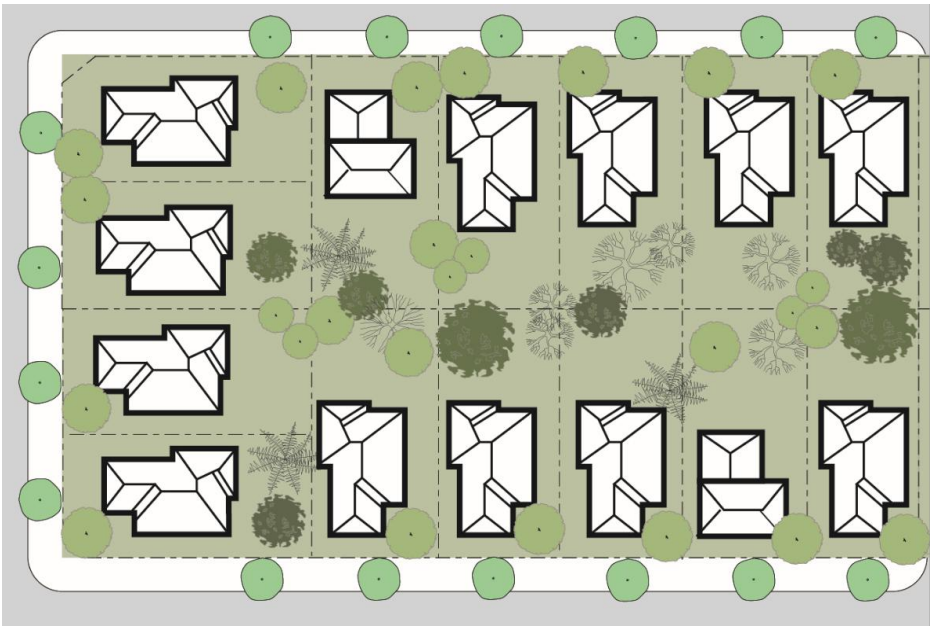
Objective		Control	
General Design and Layout			
O1.	Encourage landscape planning and design in conjunction with planning the layout of buildings, structures, vehicle circulation and ancillary areas on a development site.	**C1.**	Development must comply with Council's Technical Specification – Landscape and documentation is required to be submitted in accordance with Schedules – Chapter 9.3 of this DCP.
O2.	To preserve existing trees as part of future development, to increase canopy cover, particularly medium and large canopy trees and contribute to the urban forest, and character of the area.	**C2.**	For all development the layout and design of driveways, pedestrian entries and services maximises deep soil and retention of existing trees and planting of new trees. The location and use of outbuildings, swimming pools and spa pools should not impact on landscaped area / areas for tree planting and the amenity of adjoining private and public open space.
O3.	The amount of landscaped open space on site is sufficient to cater for the recreation needs of site occupants.	**C3.**	Landscaping is primarily located in larger, useable areas preferably located to the front and / or rear of buildings. (**Note:** council will not support small, narrow, fragmented or otherwise unsuitable areas being counted to achieve minimum landscape requirements).
		C4.	At least 20% of the front setback area of a residential development is to be provided as landscaped area.
		C5.	Side setbacks included in the landscape area shall be maximum 20% of the total landscape area provision.
		C6.	Landscaped areas located between driveways/ pathways and side boundaries have a minimum width of 1.0m at the narrowest dimensions and a minimum of 75% landscaped area must consist of planting, grass and trees, but not gravel/paving.
		C7.	A minimum of one tree in front setback and one tree in the rear open space in scale with the proposed built form shall be included in low and medium density residential developments.
		C8.	For residential accommodation on a site having an area greater than 500sqm, the rear yard must include at least one medium or large canopy tree.
		C9.	When site constraints associated with more urban contexts such as local centres and active frontages do not enable achievement of the minimum landscape area required, the development shall incorporate ecologically sustainable approaches such as extensive or

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td></td><td></td><td>intensive green roofs (with a detention layer), roof gardens, green walls. The extension and quality of the approach shall be evaluated by Council for each development.</td></tr>
<tr><td></td><td></td><td>C10.</td><td>The arrangement of buildings, secondary dwellings, pods, car parks, driveways, ancillary building and paved vehicle/other circulation spaces must consider existing trees and incorporate them into the site layout. Permeable paving surfaces to driveways, car parking bays and paved areas should be priorities over non-permeable.</td></tr>
<tr><td></td><td></td><td>C11.</td><td>Each property should have at least 1 tree (within the property boundary) where practicable. Where this cannot be achieved, compensatory planting bond / fund must be established.</td></tr>
<tr><td></td><td></td><td>C12.</td><td>The minimum amount of landscaped area within the site is as follows:

<table>
<tr><th>Development Type</th><th>Min. landscaped area (of the site area)</th></tr>
<tr><td>Low and medium density residential</td><td>25%</td></tr>
<tr><td>Residential flat buildings</td><td>15%</td></tr>
<tr><td>Mixed use (with shop top housing)</td><td>10%</td></tr>
<tr><td>Highway commercial</td><td>10%</td></tr>
<tr><td>Industrial</td><td>10%</td></tr>
<tr><td>Child care centres</td><td>20%</td></tr>
</table>
Table 7: Minimum Landscaped Area

Note: Further details about the amount of landscaped area for specific development types is provided below.</td></tr>
<tr><td></td><td></td><td>C13.</td><td>If an Arborist Report / Tree Assessment is required, it must comply with the relevant other requirements of this DCP and use an appropriate replacement ratio and appropriate species. Refer to 3.8.2 (C3) for replacement ratio.</td></tr>
<tr><td></td><td></td><td>C14.</td><td>Street trees are to be provided in accordance with Council’s Street Tree Masterplan. Note: Council may require that all street trees be planted at the Site Establishment Phase or during Stage 1 of a staged development so that</td></tr>
</table>

Objective		Control	
			trees become established and soften the development by practical completion.
		C15.	Existing trees, including street trees, and natural formations including rock formations must be preserved where possible. The development proposal must demonstrate all efforts have been done to preserve significant features, like trees or outcrops.
		C16.	Landscaped areas to the rear of a property should adjoin the landscaped area of neighbouring properties and shall assist with provision of privacy between dwellings and provide a contiguous corridor of landscape and vegetation.
		C17.	To ensure aviation safety, the management of vegetation in areas that are close to Sydney Airport needs to be considered. This includes avoiding the planting of tree species that will either attract wildlife or grow to a height that would intrude into Sydney Airport's prescribed airspace. In particular: a. Significant landscaping and/or tree planting which includes large numbers of flowering trees should be avoided within 3 km of Sydney Airport. b. Trees that are likely to eventually grow to a height that would intrude into one or more of Sydney Airport's prescribed airspace surfaces should be avoided. c. Proposals involving large-scale tree-planting that could provide habitat for roosting species – such as the Grey-Headed Flying Fox – should be accompanied by a risk assessment, to be provided to Council and Sydney Airport Corporation, considering the risk of roosting species flying across the Sydney Airport airfield or in the vicinity of the airport's flight paths. ***Note:*** *Sydney Airport Corporation can provide a list of tree species that should be avoided on request.*

Objective		Control	
			
Figure 7: Example landscaped areas			
Amenity and Maintenance			
O4.	High quality landscaping and planting is designed to be integral to the development to provide increased amenity and not to rely on high levels of maintenance.	**C18.**	Landscape screening or buffers with canopy trees are to be included and designed to enhance privacy between properties and softening of walls and facades. Planter beds are to be provided along building façades.
O5.	Landscaping is to be used to define the transition between public and private spaces.	**C19.**	Planting design solutions are to be consistent with the Bayside Landscape Technical Specification and must: a. provide shaded areas in summer, especially to west facing windows and open car parking areas b. provide screening for visually obtrusive land uses or building elements c. provide vegetation and tree cover within large expanse of car parking areas d. provide privacy between dwellings e. not cause overshadowing of solar collectors on rooftops f. rely primarily on plants that have a low water demand and nil or low fertiliser requirements.
		C20.	Where a basement car park protrudes above ground level and is not wrapped in residential or retail uses, the walls are to be screened with appropriate treatments, such as planting.
		C21.	All fencing and wall details will be provided in the Landscape Documentation and comply with the relevant Parts of the DCP.

Objective		Control	
		C22.	A contrast of paving materials is required to break up large sections of paving and to delineate pedestrian areas, entries, car parks, special use areas or transition zones between different uses. Porous paving is to be utilised wherever possible.
Water Sensitive Urban Design			
O6.	To enhance stormwater management and water quality by incorporating Water Sensitive Urban Design (WSUD) principles into the landscape design.	**C23.**	The amount of hard surface area is to be minimised to reduce runoff by: a. directing run-off from the overland flow of rainwater to pervious surfaces such as garden beds, and b. utilising semi-pervious paving materials wherever possible c. other WSUD Such as Rainwater tank for irrigation and/or outdoor taps such as: d. bioswales, e. permeable pavements, f. raingardens.
		C24.	When proposing more than 5 car spaces at grade WSUD principles, including permeable paving, shall be included in the proposal.
Landscaped Areas – Dual Occupancy			
O7.	To ensure landscaped areas for dual occupancy developments are functional and contribute to residential amenity and local character.	**C25.**	The minimum area of landscaped area in the front setback is 25%.
		C26.	Development retains existing canopy trees. A minimum of 2 indigenous canopy trees that will attain a minimum mature height of 5m must be planted within the rear yard.
		C27.	A 1m deep soil landscaped setback to neighbouring properties is to be provided along driveways to basement car parks.
		C28.	Driveway walls adjacent to the entrance of a basement car park are to have a high standard of finish or are to be consistent with the external finish of the building.
		C29.	At grade car parking must not be located within the primary setback to the street.
Landscaped Areas – Medium Density Housing			
O8.	To ensure landscaped areas for medium density housing are functional and contribute to residential amenity and local character.	**C30.**	Development must retain existing canopy trees.
		C31.	The minimum area of landscaped open space in the front setback is 25%.
		C32.	A 1m deep soil landscaped setback to neighbouring properties is to be provided along driveways to basement car parks.

Objective		Control	
		C33.	Driveway walls adjacent to the entrance of a basement car park are to have a high standard of finish or are to be consistent with the external finish of the building.
		C34.	At grade car parking must not be located within the primary setback to the street.
		C35.	A minimum of 2 indigenous canopy trees that will attain a minimum mature height of 5m must be planted within 3m of the front boundary.
		C36.	A minimum of 2 indigenous canopy trees that will attain a minimum mature height of 5m must be planted within 2m of the rear boundary.

3.7.2 Planting Design and Species

Objective		Control	
O1.	To ensure new landscaping is site responsive, retains trees and provides adequate and appropriate plant species.	**C1.**	A minimum of 80% of a planting scheme proposed on deep soil is to consist of native or indigenous plants. Locally indigenous species, are to be incorporated where practical and suit the microclimate conditions.
O2.	To protect existing biodiversity and habitat features within and adjacent to development sites.	**C2.**	For all development other than a single dwelling all tree planting within deep soil areas is native or indigenous, unless sun access is required, and then deciduous ornamental species can be included.
		C3.	A layered landscaping approach incorporating the following is required in large, landscaped areas, setbacks, buffer zones and interface areas: a. canopy trees for upper-level screening and softening of buildings, privacy and shade (a mixture of small to large trees can be used for different purposes but the site must contain large canopy trees b. shrubs for mid-level screening and demarcation of spaces and uses (a mixture of low to tall shrubs are to be used for different purposes) c. groundcovers for low-level screening, soil stabilisation and weed reduction
		C4.	Tree species must be of a suitable scale for the development and size of buildings on a site and soften the ends and corners

Objective		Control	
			of buildings. A list of suitable trees and plants for residential sites can be found in this DCP.
		C5.	Shrubs are to be densely planted and trees spaced and located according to their mature size. Close spacing of certain species of trees may be used for screening.
		C6.	Trees must be planted within properties to maximise tree cover as specified by a qualified landscape architect.
		C7.	To minimise irrigation requirements, native planting of low water requirements is required for all planting in natural soil. Irrigation is required for planting on slab only.
		C8.	Plant species suited to the local soils will be selected to reduce the need for large quantities of soil improvement, fertilisers or pesticides.
		C9.	Landscaping adjoining Endangered Ecological Community (EEC) remnants are to: a. provide an effective buffer to these areas b. not overshadow or compete with the ecological communities c. be low water consumption plants and group plants of similar irrigation requirements (i.e. hydro zoning)
		C10.	To allow adequate lateral root space and soil volume for medium to large canopy trees, the front setback area must be on one level or at a slightly battered grade rather than terraced, stepped or containing narrow planter boxes.
		C11.	Lawns are generally not permitted (except on rear yards of detached dwellings) since they are generally not water efficient or as effective as trees and shrubs in screening, ameliorating buildings and structures and enhancing the streetscape and public domain. Native groundcovers can be used in open areas instead.

3.7.3 Communal and Private Open Space

Communal and private open space is an important part of landscaping. In particular, private open space is a critical component of quality living environments and is to be located and designed as an integral part of development. Council will strictly apply provisions for private opens space in accordance with this DCP and other relevant provisions such as the Apartment Design Guide for residential flat buildings and similar development.

Minimum area requirements for private open space are included in the relevant use part of Chapter 6. For the purposes of this DCP, to be counted as private open space the area must be useable for its intended purpose. In determining useability, council will primarily consider the area (in sqm), shape and dimensions (length and width) of the space. Other considerations will include the location relative to main indoor living areas, access to sunlight, privacy, and other amenity matters. The use of small, narrow, irregular shaped or fragmented areas will generally not be considered as private open space.

Objective		**Control**	
Communal Open Space			
O1.	Communal open space must contribute to quality amenity for residents by providing: a. adequate solar access and privacy b. passive and active recreational opportunities and reduce social isolation c. opportunities for informal social interaction d. a connection between any indoor and outdoor communal spaces.	**C1.**	Communal open space at the rate of 5m² per dwelling is to be provided for multi dwelling housing with 12 or more dwellings.
		C2.	A deep soil landscape area is required for all development within boundary setbacks, communal and private open space, and green corridors.
		C3.	Areas containing trees are to be of suitable dimensions to allow for lateral root growth as well as adequate water penetration and air exchange to the soil substrate.
		C4.	Primary communal open space should be provided at ground level but may be accommodated on a podium or roof in a residential mixed-use building provided it has adequate amenity and convenient access.
		C5.	Communal open space should: a. be generally north facing and have a minimum area of 40% that has sunlight at 1pm on 21 June b. be clearly defined as communal open space c. provide for a range of recreational activities uses and contain communal facilities d. be supplemented with seating and shading e. incorporate semi-pervious paving materials for hard surface areas
		C6.	Internal communal open spaces are to: a. be located adjacent to any outdoor communal open space

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td></td><td></td><td>b. be designed to provide for a range of uses such as meetings, leisure, recreational and sporting activities. In this respect it may be appropriate to incorporate kitchenette and toilet facilities
c. Should be sited in a manner that considers impacts on adjoining future developments, as well as retaining existing significant vegetation and landscape features
d. Be located, where appropriate, adjoining the communal open space of neighbouring development to maximise the benefits of extent of deep soil and canopy cover.</td></tr>
<tr><td colspan="4">Private Open Space – General</td></tr>
<tr><td>O2.</td><td>To ensure an adequate private open space area is available for the principal and secondary dwellings.</td><td>C7.</td><td>Private open space is to:
a. be clearly defined for private use through planting, fencing or landscape features;
b. predominantly face north, east or west to maximise sunlight access;
c. sited and configured to maximise visual and acoustic privacy of its occupants and neighbours;
d. should be located adjacent to the living room, dining room or kitchen to extend the living space.</td></tr>
<tr><td></td><td></td><td>C8.</td><td>A deep soil landscape area is required for all development within boundary setbacks, communal and private open space, and green corridors.</td></tr>
<tr><td></td><td></td><td>C9.</td><td>Areas containing trees are to be of suitable dimensions to allow for lateral root growth as well as adequate water penetration and air exchange to the soil substrate.</td></tr>
<tr><td colspan="4">Private Open Space – Dwelling House, Dual Occupancy, Secondary Dwellings</td></tr>
<tr><td>O3.</td><td>To ensure private open space is functional, attractive, contributes to the local character and will accommodate a range of activities.</td><td>C10.</td><td>The minimum area of private open space required for each dwelling is outlined in the table below.
<table><tr><th>Dwelling Type</th><th>Bedrooms</th><th>Min. Area</th></tr><tr><td>Dwelling House</td><td>-</td><td>50sqm</td></tr><tr><td>Secondary Dwelling</td><td>-</td><td>50sqm</td></tr><tr><td></td><td>1 bedroom</td><td>30sqm</td></tr></table></td></tr>
</table>

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td></td><td></td><td>
<table>
<tr><td rowspan="2">Multi Dwelling Housing</td><td>2 bedroom</td><td>40sqm</td></tr>
<tr><td>3+ bedrooms</td><td>50sqm</td></tr>
<tr><td>Residential Flat Buildings</td><td>-</td><td>As per the Apartment Design Guide</td></tr>
</table>
C11. The minimum width of private open space for each dwelling is outlined in the table below.
<table>
<tr><th>Dwelling Type</th><th>Min. Dimensions</th></tr>
<tr><td>Dwelling House</td><td rowspan="2">Minimum width of 5m</td></tr>
<tr><td>Secondary Dwelling</td></tr>
<tr><td>Multi Dwelling Housing</td><td>Minimum width of 3m for villas and 5.5m for townhouses.</td></tr>
<tr><td>Residential Flat Buildings</td><td>As per the Apartment Design Guide</td></tr>
</table>
C12. Private open space is not to include:
a. non-recreational structures (including garages, tool sheds and such like structures)
b. swimming pools
c. driveways, turning areas and car spaces, drying areas and pathways
C13. The minimum area requirements for private open space for secondary dwellings may be satisfied through the sharing of private open space associated to the principal dwelling.
C14. The private open space for secondary dwellings is to be directly accessible from, and adjacent to the secondary dwelling. (Note: Structures, including fencing, separating the dwelling house from the secondary dwelling is not permitted).
</td></tr>
</table>

3.7.4 Public Open Space Interface Controls

Objective		Control	
O1.	To ensure development balances casual surveillance opportunities to adjoining public open space with the visual and acoustic privacy of residents.	**C1.**	The siting, footprint, form, and design of buildings and associated private open space provides a setback to streets consistent with that prevailing in the streetscape while enabling opportunities for

Objective		Control	
			engagement with any public open space at the side or rear of the site. **Note**: Preference is given to two or more storey dwellings where adjoining public open space as it provides the best balance between property security and activating the park.
		C2.	Where possible, highly used habitable rooms such as living rooms should be located and oriented to overlook adjoining public open space and non-habitable rooms should not be located to face adjoining public open space.
		C3.	Building elevations facing adjoining parkland should locate and orient large or frequent transparent openings such as windows directly onto highly used habitable rooms and their principal private open space in the form of decks, balconies or patios to overlook the parkland.
		C4.	The layout and design of private open space, including the type and nature of structures and vegetation, does not obstruct lines of sight obtained from the dwelling to the park.
		C5.	Fencing adjoining parkland is to be of high quality, durable and low maintenance. (Note: Where possible, it is preferred that fencing be located 1 metre within the property boundary with the side facing the park planted with screening planting that is durable, low maintenance, indigenous and will achieve a height no greater than the fence at maturity.

3.7.5 Landscaping in Carparks

Objective		Control	
O1.	To ensure landscaping is provided in carparks and is to: a. provide shade for vehicles, to reduce the heat island effect of large areas of paved surfaces, to soften the impact of large areas of paving and parking, to improve amenity and to screen car parks from the public domain;	**C1.**	For at-grade car parks 1 tree will be provided for every 5 car spaces so that at least a 50% canopy coverage of the car park at maturity is provided. Car parks will be generously landscaped.
		C2.	Vehicle circulation areas, driveway access and parking will be arranged to maximise the area available for landscaping and the preservation of existing trees. Excess

Objective		Control	
	b. minimise the visual impact of car parks in the streetscape and public domain; and c. provide generous sized planter beds that sustain the growth of trees.		hardstand areas will be minimised. Planting is to be provided to edges, boundaries and internal areas of car parks to screen car parks and circulation areas from the public domain.
O2.	To ensure that land uses requiring at-grade car parking, such as industrial and business park uses, incorporate adequate landscaping and vegetation to improve canopy cover and reduce urban heat island effects.	**C3.**	Contrasting materials and finishes, including permeable paving, must be used to break up large sections of paving and to delineate pedestrian areas/crossings, entries, car parks, special use areas or at transition zones between different uses.
O3.	To ensure landscaping in car parks is consistent with Council's Landscaping Technical Specification.	**C4.**	Small planters 1 metre x 1 metre for trees are not permitted. Planter beds must be of an adequate dimension to cater for tree roots and future tree growth and to provide adequate moisture penetration and aeration of the root zone.
		C5.	The minimum pot size at installation for trees in parking areas is 100 litres.
		C6.	Adequate distances should be provided to trees from sub-surface utilities and lighting are required.
		C7.	All circulation areas must also be accessible for a person with a disability with landscaping incorporated.

3.7.6 Biodiversity

Overview

Biodiversity can be defined as the variety of living animal and plant life from all sources, and includes diversity within and between species and diversity of ecosystems. Biodiversity conservation aims to create a balanced existence between humans and the environment. Biodiversity can be maintained and enhanced by protecting threatened and endangered species, trees and vegetation, planting vegetation using a variety of indigenous species as well as native species and by retaining, enhancing, and providing new habitat and wildlife corridors.

The amount of land that sustains native plants and animals in Bayside has progressively reduced since European settlement. However, despite being heavily urbanised, Bayside has an important network of remnant bushland and wetland areas that sustain a diversity of ecological communities including endangered or vulnerable flora and fauna. Indigenous, native, and cultural vegetation within public and private lands also contributes to Bayside's biodiversity.

Our waterways, remnant bushland, trees and other vegetation in parks, streets and gardens provide habitat for a range of fauna species which are resident (e.g. frogs and possums), migrant (some shorebirds and microbats), and transitory (Grey-headed Flying-fox). Biodiversity exists in our streets, our gardens, in brownfield sites and other unexpected places.

Any development application or modification to an approved development that involves clearing of native vegetation or potential impacts to threatened species or ecological communities, will be subject to the biodiversity assessment requirements of the Biodiversity Conservation Act 2016.

This Part seeks to conserve and enhance Bayside's biodiversity by identifying and appropriately managing key environmentally biodiverse areas not managed in Part 2.1.2: Key Threatened Species Habitat and Endangered Ecological Communities. (Note that specific controls for threatened fauna species habitat and endangered ecological communities are managed in section 1.1.2). All Controls in this Part must also be implemented in accordance with Council's Technical Specifications – Landscape, which provides a list of suitable plants.

Mapping which supports this Part includes:

- Biodiversity Map (Provided in Appendix 1 of the DCP)
- Threatened Species Habitat and Endangered Ecological Communities (Provided in Appendix 2 of the DCP)

Objective		**Control**	
O1.	Protect and enhance biodiversity through the protection and conservation of native flora and fauna, their habitats and ecological functions.	**C1.**	All development to which this Part applies must also comply with **Section 3.8 - Tree Preservation and Vegetation Management** of the DCP.
O2.	Improve the diversity and abundance of locally indigenous flora and fauna species across the local government area (LGA).	**C2.**	For all new residential development, mixed use and non-residential development (including commercial and industrial) that provides landscaped open space, where any part of the lot is located within the Biodiversity Map (Provided in Appendix 1 of the DCP), a landscape plan must be prepared by a suitably qualified professional such as a landscape architect or ecologist.
O3.	Enhance biodiversity corridors to assist existing native plant and animal communities and protect from further fragmentation to ensure there is no net loss of biodiversity values within the Bayside LGA as a result of development.	**C3.**	All development identified above and where any part of the lot is located within the Biodiversity Map (Provided in Appendix 1 of the DCP) are to: a. Incorporate a minimum of 80% indigenous species in the proposed landscaping in accordance with Part 2.3 - Tree Preservation and Vegetation Management of the DCP and Bayside Councils Landscape Technical Guidelines which provides a list of suitable native and indigenous species. b. Maximise the retention of native vegetation. c. Incorporate trees, shrubs and ground covers of indigenous species. d. Consider bushland and riparian corridors that are either adjoining or in proximity of the development. e. Minimise the impacts of the completed development on any adjoining terrestrial or riparian corridors e.g. incorporating measures to minimise the impact of stormwater runoff.
O4.	Protect remnant bushland and areas containing biodiversity value to reduce impacts of the urban heat island effect, and maintain the biodiversity across the LGA.		

Objective		Control	
		C4.	In addition to the minimum landscape area and requirements for the development site, where development is to occur adjacent to areas of biodiversity value as shown on the Biodiversity Map (Appendix 1), must provide either: a. a minimum of a 5m deep continuous vegetated buffer zone of indigenous species of trees, shrubs and ground covers along the most affected adjoining boundary of the Biodiversity area. OR b. a minimum of 10% of the site with a minimum dimension of a 4m vegetated deep planting zone of indigenous species of trees, shrubs and ground covers.

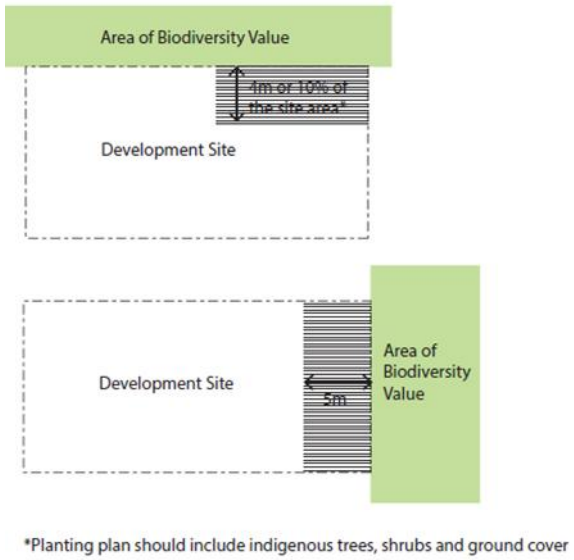


Figure 8: Area of Biodiversity Value

		C5.	For development on land identified on the Biodiversity Map (Provided in Appendix 1 of the DCP) and for which a Biodiversity Development Assessment Report (BDAR) is not required, Council requires the submission of a Flora and Fauna Assessment when: a. a total area of native vegetation greater than 100m^2 is being removed; or

Objective		Control	
			b. when more than three (3) remnant trees are being removed; or c. when a total area of native or exotic vegetation (excluding exotic grasses) greater than 200m^2 is being removed; or d. If required by Council Officers. The Flora and Fauna Assessment is to assess the impact of the development on the native flora and fauna and identify controls to be adopted to minimise any impacts.
		C6.	Development is to respond to habitat features including natural landforms, waterbodies, rock outcrops, trees and vegetation and landscaping which links biodiversity and green corridors. Where council grants consent for the removal of an existing tree on land identified on the Biodiversity Map (Provided in Appendix 1 of the DCP) and Part 3.8 – Tree Preservation and Vegetation Management of the DCP, and for which a BDAR is not required, the replacement of the tree(s) on the subject land or offsite is required at the ratios outlined in Council's Tree Offset Policy. Replacement tree species must be an indigenous species of a type suitable for the site (unless an alternative non-native species is required for solar access) and in accordance with Council's Landscape Technical Guidelines.

3.7.7 Key Threatened Species, Habitat and Endangered Ecological Communities

This Part applies to development which has the potential to impact on any threatened species, habitat or endangered ecological communities as defined in and protected by the Biodiversity Conservation Act 2016 (BC Act), NSW Fisheries Management Act 1994 (Fisheries Act) and the Environmental Protection and Biodiversity Conservation Act 1999 (EPBC Act).

Threatened fauna (animal) species are mobile and Endangered Ecological Communities (EECs) generally transition gradually from one type to another without hard boundaries. To account for this gradual transition in the Bayside Local Government Area (Bayside LGA), a buffer has been adopted around known areas of significant biodiversity or Endangered Ecological Communities. This buffer incorporates developments that have the potential to impact on these areas.

These controls are in addition to the controls outlined above. Threatened species habitat and endangered ecological communities in the Bayside LGA are identified in the Key Threatened Fauna Species Habitat and Endangered Ecological Communities Map (Provided in Appendix 2 of the DCP).

Objective		Control	
O1.	To protect and enhance Endangered Ecological Communities and threatened or vulnerable species and their habitats.	**C1.**	Any development where there is the potential for threatened species, populations or ecological communities, as defined under the following Acts, to occur must consider the requirements of the Biodiversity Conservation Act 2016 (BC Act), the NSW Fisheries Management Act 1994 (Fisheries Act), the Environmental Protection and Biodiversity Conservation Act 1999 (EPBC) and the Environmental Planning and Assessment Act 1979 (EP&A Act).
O2.	To protect and promote the recovery of threatened species, habitat, and endangered ecological communities.	**C2.**	If a proposed development is likely to significantly affect threatened species as defined in Section 7.2 of the BC Act, the application for development consent is to be accompanied by a Biodiversity Development Assessment Report (BDAR) prepared by an accredited assessor. The BDAR is to demonstrate how impacts to biodiversity have been avoided or minimised, with the BAM used to calculate an offset obligation (in biodiversity credits) for any remaining residual impacts.
		C3.	For all new residential development, mixed use and non-residential development (including commercial and industrial) that provides landscaped open space, that is within the mapped area of the Threatened Species Fauna Habitat and Endangered Ecological Communities Map (Provided in Appendix 2 of the DCP) Assessment, must be accompanied by a Flora and Fauna Assessment. The Flora and Fauna Assessment is to assess the impact of the development on the affected native flora and fauna and identify controls to be adopted to minimise any impacts.

3.7.8 Wetlands

General

Wetlands are a critical part of our natural environment. They reduce the impacts of floods, absorb pollutants and improve water quality as well as provide habitat for animals and plants. Wetlands in Bayside, however, have a legacy of significant environmental impacts from urban runoff and spills, invasive weeds as well as being impacted by development.

If not appropriately managed, cumulative impacts from developments can have a significant detrimental short and long-term effect on wetlands such as contributing to high sediment and nutrient loads, water

pollution during and following construction, and by significantly altering the hydrology (flow) of the catchment.

This Part seeks to conserve and enhance Bayside's wetlands by identifying and appropriately managing wetland areas. This Part applies to development which has the potential to impact on any wetland areas of the Bayside LGA.

Mapping which supports this Part includes:

- Key Wetland Areas Map (Provided in Appendix 4 of the DCP)
- General Wetland Areas Map (Provided in Appendix 5 of the DCP)
- Wetlands Catchment Map (Provided in Appendix 5 of the DCP)

Objective		**Control**	
O1.	To ensure the protection of wetlands and associated endangered ecological communities and that all development minimises its impacts on wetlands.	**C1.**	Development Applications for works in areas identified as Key Wetlands within the *Key Wetland Areas* Map (Provided in Appendix 4 of the DCP) must submit the following: a. Plans of the proposed development including a site plan showing all existing and proposed stormwater infrastructure (e.g. culverts, drains, paved surfaces and stormwater control mechanisms); b. A Vegetation Management Plan, prepared by a suitably qualified professional, which identifies the measures proposed to protect and manage the potential impacts of the wetland and riparian land potentially impacted by the development, and control weed invasion; c. A Stormwater Management Plan, complying with the requirements of the Stormwater Management Technical Specifications which addresses measures to minimise impacts on wetlands including: i. The management of erosion and control of pollutants including sediments, nutrients, litter, cement waste, paint, toxins and bacteria; and ii. Details of permanent stormwater management measures at the site including on-site detention requirements, permanent treatment ponds, landscape and urban design treatments, and stormwater reuse. d. Plans and details of any proposed boardwalks, information signs and
O2.	To improve, maintain and restore the quality of water within wetlands and their waterways.		

Objective		Control	
			viewing platforms adjacent to the wetland or their waterways.
		C2.	Development Applications within areas identified as Wetlands Catchment within the Wetlands Catchment Map (provided in Appendix 5 of the DCP) that have the potential to significantly alter the hydrology of the catchment surface and groundwater flows must submit a Wetlands Management Plan. The Wetlands Management Plan must include the following: a. The nature and extent of the hydrological impacts of the proposed development; b. An assessment of the current hydrological regime including water quality testing before development occurs; and c. Commitment to processes for monitoring the actual hydrological impacts of the development such as water quality testing, pre and post development.
		C3.	All development for: a. new dwellings for single dwellings, secondary dwellings, semi-detached, attached dwellings, multi-unit and residential flat buildings; and b. mixed use and non-residential development (including commercial and industrial) that provides landscaped open space. Where any part of the lot is located within General Wetlands Area as shown in the General Wetlands Areas Map (Provided in Appendix 5 of the DCP) must include a landscape plan that has been prepared by a suitably qualified professional such as a landscape architect or ecologist. This landscape plan must: a. Incorporate a minimum of 80% indigenous species in the landscaping that is being undertaken as part of the proposed development. b. Be undertaken in accordance with Section 3.8 - Tree Preservation and Vegetation Management of the

Objective		Control	
			DCP and Bayside Council's Landscape Technical Guidelines which provides a list of suitable native and indigenous species. c. Maximise the retention of native vegetation. d. Incorporate trees, shrubs and ground covers of indigenous species. e. Consider bushland and riparian corridors that are either adjoining or in proximity of the development. f. Minimise the impacts of the completed development on any adjoining terrestrial or riparian corridors e.g. incorporating measures to minimise the impact of stormwater runoff. g. Incorporate water sensitive urban design as per Council's Stormwater Management Technical Specifications.
		C4.	For development on land identified as General Wetlands Area on the *General Wetlands Area* Map (Provided in Appendix 5 of the DCP) and for which a Biodiversity Development Assessment Report (BDAR) is not required, Council requires the submission of a Flora and Fauna Assessment when: a. a total area of native vegetation greater than 100m^2 is being removed; or b. when more than three (3) remnant trees are being removed; or c. when a total area of native or exotic vegetation (excluding exotic grasses) greater than 200m^2 is being removed; or d. If required by Council Officers.
		C5.	Planting of species listed in the Unacceptable Plant Species List contained within Council's Landscape Technical Specifications will not be permitted within any Key Wetlands, General Wetlands or Wetlands Catchment.
		C6.	Infrastructure such as roads, drainage, stormwater structures, services, etc. should be located outside land identified as Key Wetlands.

Objective		Control	
		C7.	For development on land located within the Wetland Catchment Area on the *Wetland Catchment Area* Map (Provided in Appendix 5 of the DCP), culverts, drains and paved surfaces must be designed to minimise changes to the local surface runoff and groundwater flows and ensure that appropriate water flow regimes are maintained to the wetland.
		C8.	For development on land located within the Wetland Catchment Area on the *Wetland Catchment Area* Map (Provided in Appendix 5 of the DCP): a. Development is to be designed to ensure stormwater flows and drainage will mimic natural conditions where possible. This is to ensure a dispersed pattern of flow, avoiding centralised or concentrated discharge points into the waterways and wetlands; and b. Stormwater control mechanisms must be installed where development works discharge directly into wetlands or if the development has the potential to impact on waterway hydrology. (Refer to requirements of Council's Stormwater Management Technical Guidelines).

3.8 Tree Preservation and Vegetation Management

Overview

Vegetation, particularly mature trees, contribute significantly to the established character of Bayside. Bayside Council recognises the importance of trees and their role as a key contributor to a high-quality urban environment. Council acknowledges trees as vital urban infrastructure in our policy and strategic planning documents – emphasising the economic and financial benefits of trees to the broader community.

A person must not clear, prune or remove vegetation without a permit or development consent granted by Council, except as otherwise stated in SEPP (Conservation and Biodiversity) 2021 – Chapter 2 or this Part. Council expects the retention of healthy and/or functional trees on all development sites. Developments are to be designed to incorporate existing trees into the layout and design to ensure that their health is not compromised by siting structures too close to trees, including trees on adjoining properties.

This part builds on Council's tree Management Policy and Chapter 2 of the Biodiversity SEPP, identifying whether Council's approval (i.e. tree removal consent or Development Application, or Complying Development Certificate) is required to clear, prune or remove a tree.

The term ‘clear’ vegetation is defined in the SEPP, and includes: (a) cut down, fell, uproot, kill, poison, ringbark, burn or otherwise destroy the vegetation; or (b) lop or otherwise remove a substantial part of the vegetation.

Where a private property owner wishes to appeal a Council decision denying consent to remove or prune a tree or vegetation on private or public land, the following procedures will take place;

- Trees or vegetation on private property: The property owner is required to engage an Independent Consulting Arborist or other specialist i.e. structural engineer or plumber to provide further detailed advice and assessment of the matter. Council will consider the independent report and re-inspect and/or review its decision if new information is provided or uphold its decision. For minor structural damage, the property owner must investigate alternative measures to rectify the damage and retain the tree. Council will only review its decision if all avenues have been exhausted and evidence provided thereof.

- Trees or vegetation on public property (including street trees): The property owner may write to Council requesting a review of the decision clearly stating the reasons and provide any new or additional information, including photographs. Council may engage a Consulting Arborist to obtain additional independent advice.

Tree works carried out on private land without Council approval or not carried out in accordance with an approval, may attract a Penalty Infringement Notice (PIN) or incur legal action in the Local Court or Land and Environment Court under Sections 125 and 126 of the Environmental Planning and Assessment Act 1979. The Court may also order the repair, remedial pruning or replacement of a damaged or removed tree and impose an order to maintain such replacement to maturity. A PIN may be issued for the injury or removal of trees and vegetation on public land under Section 629 of the Local Government Act 1993. Further penalties apply to the removal or damage to vegetation under the Threatened Species Conservation Act 1995 and the Environment Protection and Biodiversity Conservation Act 1999.

3.8.1 Tree Preservation and Management Controls

Objective		Control	
Tree Permit and DA requirements			
O1.	To provide a guide to the regulatory framework for the preservation of trees and establish a coordinated approach to tree management.	**C1.**	Trees or vegetation may be removed as part of a complying development for residential development if it is: a. within 3m of a building or structure bigger than 25m^2 b. not on Council's register of significant trees c. not higher than 8m if the development is for a new house - as long as the tree is not required to be retained as a condition of consent for the subdivision, and d. not higher than 6m for alterations and additions to a house.
O2.	To permit residents to manage trees on their land.		
O3.	To prescribe trees and other vegetation to be protected in Bayside.		
O4.	To maintain and embellish the visual and environmental amenity of Bayside through the preservation of trees and vegetation.		
O5.	To ensure trees in urban areas are managed in a way that reduces known risks to life and property.	**C2.**	Trees or vegetation may be removed as part of a complying development for new or additions to existing commercial and industrial buildings if it is: a. within 3m of the development, and b. not on Council's register of significant trees, c. or, not higher than 8m.
		C3.	To ensure DAs and CDCs have the required permits to remove street trees that are Council assets, the applicant shall apply for a tree removal permit prior to issuing of a DA or CDC. Clause 1.18(1)(h) of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (the Codes SEPP) requires that in most cases an appropriate permit or development approval be obtained to remove or prune a tree or vegetation from the site prior to the issuing of a CDC.
		C4.	Development consent (development application) is required if the tree in question is in a heritage conservation area or is a heritage item or part thereof. For pruning of a minor nature that will not have any impact on heritage significance or amenity a tree permit is only required. Development Applications for proposed tree works are required to include the following as a minimum: a. A site plan showing the surveyed location of all tree/s or vegetation

Objective		Control	
			on the property and trees within 5 metres of property boundaries (trees adjoining properties and street trees); b. Details of the species and size (height, canopy spread and trunk diameter /girth at ground level) of the surveyed trees or vegetation, whether to be retained or removed; c. Arborist Report for sites with large trees, several trees or as required by Council; d. Full written details and justification for proposed tree or vegetation removal and/or pruning. It is responsibility of the applicant to substantiate applications for tree removal; and e. Owner's consent.
		C5.	Consent is not required when: a. the tree is dying or dead (as determined by a qualified arborist) b. council works c. vegetation that is a risk to human life or property d. pruning of an established hedge e. removal of dead fronds and fruit off palm trees f. exempt species list in Appendix 3. All exempt works must be documented to show due process has been followed and the pruned or removed tree was exempt.
		C6.	Tree works approved with a Development Application lapse if the consent lapses or becomes invalid, void or surrendered. A copy of the Development Consent must be presented on demand to Council's authorised officers and the Arborist engaged to undertake the approved tree works.
		C7.	Tree works approved in a DA must only be undertaken once construction has substantially commenced.
		C8.	The following matters are considered by Council in the assessment of a tree permit application or development application for trees or vegetation on all land (public and privately owned):

Objective		Control	
			a. Whether the tree or vegetation has significance or value (amenity, aesthetic, environmental); b. Whether the tree is heritage listed, located on a site with a heritage item or in a Heritage Conservation Area, on any significant tree list or listed under State or Federal legislation; c. Whether removal will impact on local biodiversity, habitats or the quality and quantity of healthy tree canopy; d. Whether the clearing of vegetation or work near it directly or indirectly impacts on a vegetation community protected by State or Federal legislation; e. The health or condition of the tree or vegetation, whether the tree or its branches are dead, dying, diseased or structurally unsound and the tree's Safe Useful Life Expectancy (SULE); f. Whether the tree is dangerous, hazardous or a public nuisance; g. Proximity to and interference (current and future) with existing or proposed buildings, structures, utilities or vehicle sightlines; h. Impact on the development potential of the land; i. Whether the tree will be adversely impacted by a development proposal (its canopy and/or root system) and whether alternatives have been considered for building or structure layout, design, or siting; and j. Whether the tree forms a valuable component of the streetscape.
		C9.	Council will not support Development Applications for tree removal in the following circumstances: a. the shedding of leaves, bark fruits, flowers, sticks or the like which are part of the normal life cycle of a tree; b. to minimise the inconvenience caused by animals and insects, including the dropping of fruit and bird droppings;

Objective		Control	
			c. to improve views, visibility of signage (unless essential road signage) or reduce shading of solar receptors; d. to reduce the height of a tree (topping) which is not in accordance with the relevant Australian Standards; e. to facilitate the construction of a driveway or structures, including swimming pools, outbuildings or fences. Alternative locations of such structure must be sought; f. lifting pavements. Tree removal is the final option when all other avenues for management have been investigated; g. Sewer chokes where an aged/faulty sewer system has not been replaced with PVC to the mains supply.
		C10.	Council requires an Arborist Report, prepared by a suitably qualified and experienced consulting Arborist within a minimum qualification of Australian Qualification Framework Level 5, for development applications that affect trees or vegetation in the following circumstances: a. heritage listed or located on a site with a heritage item or within a Heritage Conservation Area b. considered to be locally significant (as determined by Council) c. is within 5 metres of a proposed development d. potential for the tree to be impacted on by development e. Council determines additional or more detailed information is deemed necessary
		C11.	An Arborist Report, if required, must address the following: a. company details, qualifications and experience of the Arborist/s b. person or company for whom the report is prepared c. date of inspection d. aims of the report e. address of the site and site plan

Objective		Control	
			f. methods and techniques used in the inspection g. whether the tree is heritage item or on a site containing a heritage item h. the tree/s size, age, condition/health, estimate of longevity, critical and primary and structural root zones and other pertinent information relating to tree root structure or distribution, significance value/rating, amenity value, previous pruning, structural defects or damage and any other relevant considerations such as wildlife, habitats, soil, drainage etc. i. potential impacts on the tree/s as a result of the proposed development or construction work j. tree retention and protection options, including construction techniques involving footing design, excavation and scaffolding, and building or structural modifications k. recommendations for future of trees to be retained, including branch or root pruning l. recommend mitigation or compensatory measures where there is a loss of amenity with tree removal or proving m. demonstrate how the proposal complies with AS4970-2009 – protection of Trees on Development Sites for trees to be removed and retained and AS4373-2007 – Pruning of Amenity Trees n. supporting evidence such as photographs, testing, root mapping and aerial inspection findings. **Note**: arborist recommendations for tree removal must be objective and based on the arboricultural findings only. An Arborist is qualified to report on tree health and structure but not on the significance of vegetation. An ecologist is required for this. **Note**: council may also require a detailed report or root mapping for trees on the property or on adjoining properties that may be impacted by construction work.

Objective		Control	
		C12.	A Flora and Fauna Impact Assessment prepared by an ecologist may be required for development work on or near remnant vegetation forming part of a locally endangered ecological community. The flora and Fauna Impact Assessment should include an assessment of significance in accordance with section 5A of the Environmental planning and Assessment Act 1979 comprising a full description of its extent, makeup and condition and potential direct and indirect impacts expected with the proposed development. A vegetation management plan should also be submitted fulfilling the property owner's responsibilities under the Threatened Species Conservation Act 1995 and any other relevant legislation.
		C13.	Structural engineering and licensed plumbers' reports may be required for alleged damage/blockage to sewer or stormwater lines or damage to fences and other structure.
		C14.	Council will only prune or remove street trees or trees on public land for essential tree maintenance. All works will be scheduled into the works program of Council's Tree Management Team.
		C15.	Applications for moving street trees for driveways are unlikely to be successful.
		C16.	New or widened driveway crossovers are required to be located a minimum distance of 3 metres from the trunk of an existing street tree. Advice should be sought from Council for large street trees as an offset of up to 5 metres may be required.
		C17.	For trees on public land that may be impacted by a DA, council may impose conditions of consent or a tree preservation bond.
Tree Preservation Requirements			
O6.	To address the low percentage of healthy tree canopy throughout Bayside.	**C18.**	Tree pruning and removal should consider the Bayside Planning Priority 20 to increase urban tree canopy and enhance green grid connections.
O7.	To ensure the protection of trees and vegetation by ensuring new developments consider and incorporate existing trees into the site layout and design and ensure vegetation is protected during	**C19.**	A tree requiring approval is not permitted to be removed on a site in which subdivision or demolition has been granted by Council unless consent for removal has been

Objective		Control	
	construction and the ongoing operation of the site.		obtained prior to issue of the through the Development consent.
		C20.	Council may impose a Tree Preservation Bond on significant or heritage tree or trees with a high potential to be damaged or impacted upon during construction. Council will calculate the bond amount using the Thyer Tree Valuation Method. Tree Bonds are paid to Council in the form of a refundable deposit prior to issuing any Construction Certificate. Tree Preservation Bonds are refunded if there is no damage incurred to the tree (both above and below ground) and may be in force for any length of time after construction has ceased to monitor tree health or structural soundness. If the tree is damaged or dies during construction or in the monitoring period, or if conditional tree protection requirements are not adhered to during construction, the bond may be partially or fully forfeited.
		C21.	If consent is granted for the removal or pruning of a tree, suitable replacement tree/s will be required to be planted on the subject property by the property owner or applicant. Council will stipulate the minimum acceptable replacement tree/s pot size and number of trees and may recommend suitable species. Replacement trees are to be planted with consideration of the location of boundary fences, walls, pipes and buildings.

3.8.2 Tree and Vegetation Offset Controls

Objective		Control	
O1.	To ensure the retention and protection of trees and bushland vegetation that are important to the biodiversity and health of the local ecosystem and for the maintenance of the scenic quality and tree character.	**C1.**	Council will not accept tree offsetting if: a. An applicant has not demonstrated that all alternatives to a development proposal and all measures to mitigate impacts have been considered; b. The need for an offset has not been justified and the offset has not been

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td>O2.</td><td>To ensure trees in urban areas are managed in a way that reduces known risks to life and property.</td><td></td><td>shown to address and satisfy the principles of this policy;
c. A development has enough soil and space to include new canopy trees within a site as part of the development proposal;
d. The impacts of a development are considered to be minor in nature or could reasonably be avoided or mitigated.</td></tr>
<tr><td>O3.</td><td>To permit residents to manage trees on their land.</td><td></td><td></td></tr>
<tr><td>O4.</td><td>To address the low percentage of healthy tree canopy throughout Bayside.</td><td></td><td></td></tr>
<tr><td>O5.</td><td>To ensure effective bushland regeneration.</td><td>C2.</td><td>Council reserves its right to assess each offset proposal on a case-by-case basis in accordance with this Policy.</td></tr>
<tr><td></td><td></td><td>C3.</td><td>The following tree replacement ratios are to be used for tree replacements within the site bounds (on-site).

Table 8: On-site tree replacement ratio

<table><tr><th>Type of proposal</th><th>Ratio</th></tr><tr><td>Alterations and additions</td><td>2:1</td></tr><tr><td>New single dwelling or dual occupancy</td><td>3:1</td></tr><tr><td>New medium density development</td><td>5:1</td></tr><tr><td>New high-density development</td><td>8:1</td></tr><tr><td>Application to remove a tree only (no proposed development)</td><td>2:1</td></tr><tr><td>Application to remove a tree only (due to safety or risk to infrastructure)</td><td>1:1</td></tr></table></td></tr>
<tr><td></td><td></td><td>C4.</td><td>Where Council determines that on-site replacement is not appropriate there is an opportunity for off-site replacement subject to a Deed of Agreement and monetary contribution (as outlined in Council’s Fees & Changes) with the Council to facilitate replacement planting on public land. Any tree offsets occurring off-site and/or on public land must comply with the below:

Table 9: Off-site and/or Public land tree replacement ratio</td></tr>
</table>

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td></td><td></td><td>
<table>
<tr><th>Type of proposal</th><th>Ratio</th></tr>
<tr><td>Alterations and additions
(on public land by Deed of Agreement)</td><td>2:1</td></tr>
<tr><td>New single dwelling or dual occupancy</td><td>3:1</td></tr>
<tr><td>New medium density development</td><td>5:1</td></tr>
<tr><td>New high-density development</td><td>8:1</td></tr>
<tr><td>Application to remove a tree only
(no proposed development)</td><td>2:1</td></tr>
<tr><td>Application to remove a tree only
(due to safety or risk to infrastructure)</td><td>1:1</td></tr>
</table>
C5. All replacement trees must be consistent with the tree list requirements in Council’s Landscape Technical Specification.</td></tr>
</table>

3.9 Stormwater Management and Water Sensitive Urban Design

All controls are outlined within Bayside Technical Specification Stormwater Management. All development within the Bayside LGA must comply with the drainage requirements of this Technical Specification. Additional provisions related to Water Sensitive Urban Design are also contained within Section 3.7 of this DCP.

Objective		Control	
O1.	To outline the technical requirements in relation to the design of stormwater management systems within the Bayside Local Government Area (LGA).	**C1.**	All development is to be consistent with Bayside Technical Specification Stormwater Management relating to stormwater management and WSUD.
O2.	To implement and incorporate WSUD principles into the design of the stormwater drainage system.	**C2.**	Development must comply with the WSUD provisions outlined in Section 3.7 of this DCP (Landscaping and Biodiversity).
O3.	To minimise run-off volumes and allow replenishment and recharge of groundwater.	**C3.**	Certain developments are to provide stormwater systems that minimise stormwater run-off from the site as detailed in the technical specification.
O4.	To protect existing public stormwater drainage assets and provide drainage systems that integrates into Councils existing drainage network with minimal impact on existing users.	**C4.**	Any building proposed over or near Council’s stormwater assets requires approval by council.

3.10 Flood Prone Land

3.10.1 Context and Objectives

In 1984, the State Government introduced the flood-prone land policy applicable to New South Wales. The first Floodplain Development Manual (FDM) was published in 1986, providing guidelines for the implementation of the government's flood-prone land policy and the merit approach that underpins its application.

In 2005, the State Government released revised guidelines under the FDM to support the Flood Prone Land Policy, the primary objective of which is:

"To reduce the impact of flooding and flood liability on individual owners and occupiers of flood-prone property, and to reduce private and public losses resulting from floods, utilising ecologically positive methods wherever possible."

In response to this objective, Bayside Council has undertaken a number of floodplain risk management studies to identify mitigation measures for flood risks. These studies identify planning as a very important aspect of floodplain risk management.

3.10.2 Abbreviations

- AEP - Annual Exceedance Probability
- DA - Development Application
- DCP - Development Control Plan
- DPE - Department of Planning and Environment
- FDM - Floodplain Development Manual
- FRMP - Floodplain Risk Management Plan
- FRMS - Floodplain Risk Management Study
- LEP - Local Environmental Plan
- LGA - Local Government Area
- PMF - The largest flood that could conceivably be expected to occur at a particular location, usually estimated from probable maximum precipitation.
- SES - State Emergency Service

3.10.3 Background

The local Government is the primary authority responsible for both flood risk management and land use planning in New South Wales. Both Local Government and State Government (principally through the State Emergency Service (SES)) are responsible for managing floodplain risk.

The State Government's flood policy provides a flexible merit-based approach to be followed by local government when dealing with planning, development and building matters on flood-prone land. For Council to fully carry out its responsibilities for the management of flood-prone land, it is necessary to prepare a local flood risk management plan for all developments.

The FDM requires that Councils prepare Floodplain Risk Management Studies (FRMS) as a prelude to the formulation of a Floodplain Risk Management Plan (FRMP) that, among other things, would control development and other activity within the floodplain. The process for preparing the FRMS and FRMP is depicted below in **Figure 9**.



Figure 9: Floodplain Risk Management Process (FDM, 2005)

The FDM describes floodplain risk modification measures in three broad categories identified in **Figure 10** below.

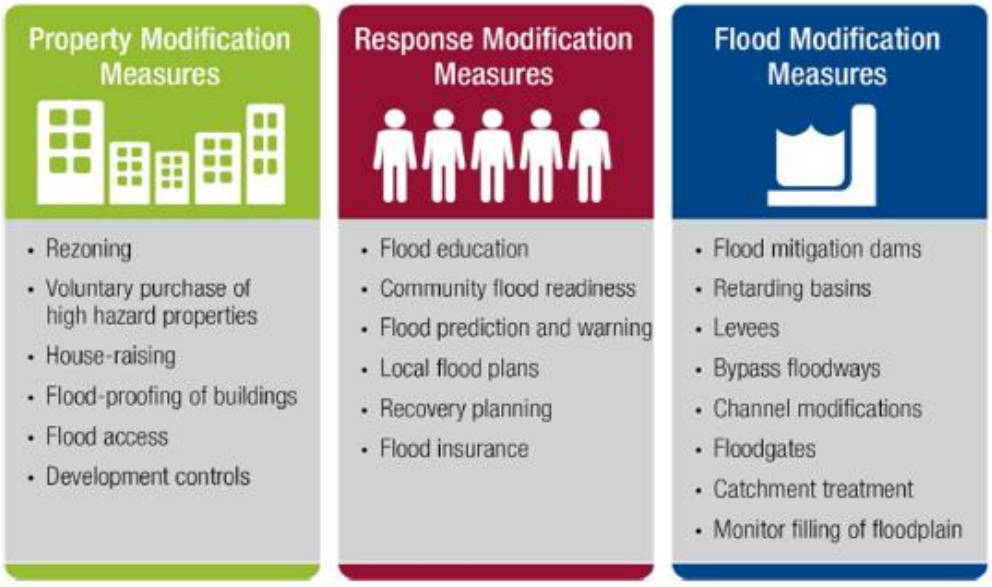


Figure 10: Typical Flood Risk Modification Measures

Prevention of flood risk, through property and response modification measures, is the option most feasible with the least impact on natural flood flows and is primarily reliant on land use planning and development controls for implementation. Flood modification measures are the least preferred option, being costly, prone to failure and most likely to adversely affect the natural environment.

The controls identified in this chapter represent an application of the State Government's "Flood Prone Land Policy" are consistent with the FDM, and reflect local circumstances identified through FRMS and FRMP.

3.10.4 Land to Which This Chapter Applies

This chapter of the DCP applies to all flood-prone land within Bayside Council, being all land potentially inundated by floods up to and including a probable maximum flood (PMF).

Flood prone land is mapped for the following:

- 1% AEP plus 0.5m freeboard affected land
- PMF affected land

  (both available at: https://maps.bayside.nsw.gov.au/Intramaps98/?module=Flood)

Council can provide a site specific flood advice letter or identify the need to obtain further information from a qualified civil engineer.

3.10.5 Objectives

- To ensure that flood risk is considered as early as possible in the planning and development process and is based on the best available flood information.
- To establish guidelines for the use and development of flood prone land that are consistent with the NSW Flood Policy and the FDM.
- To minimise the risk to human life and damage to property by controlling development on flood prone land, taking into account projected changes as a result of climate change.
- To ensure that all land uses and essential services are appropriately sited and designed in recognition of potential floods.
- To provide detailed controls for the assessment of applications lodged in accordance with the Environmental Planning and Assessment Act 1979 on flood-prone lands.
- To ensure that the development or use of floodplains does not adversely impact flood behaviour which creates a detrimental increase in flood affectation on other properties or developments.
- To ensure that the development incorporates measures to minimise the risk of life and ensure the safe occupation and efficient evacuation of people in the flood event.
- To apply a merit-based approach to development decisions that consider flood risk, social, economic and ecological considerations.
- To control development and other activity within all the stormwater catchments within the LGA having regard to the characteristics and level of information available for each of the catchments, in particular the FRMS and FRMP.

3.10.6 Relationship to Other Legislation and Regulations

This document should be read in conjunction with the relevant provisions of the NSW Government Flood Prone Lands Policy and FDM, the Environmental Planning and Assessment Act, 1979, and Regulations thereto, applicable Environmental Planning Instruments in particular Bayside Local Environmental Plan (LEP) 2020 and other relevant controls of this DCP and policies adopted by Council.

3.10.7 Development Provisions

The controls for development in the floodplain contain objectives, performance criteria and prescriptive controls, with the following purpose:

a. **The objectives** represent the outcomes that the Council wishes to achieve from each control.
b. **The performance criteria** represent a means of assessing whether the desired outcomes will be achieved.
c. **The prescriptive controls** are the preferred ways of achieving the outcome. While adherence to the prescriptive controls may be important, it is paramount that the objectives and the performance criteria are clearly satisfied.

3.10.8 Objectives and Performance Criteria

The following development issues are to be considered in the assessment of the proposed development on flood-prone land.

Table 10: Issues to be considered for a development in a flood-prone land

Development Aspect	Objective	Performance Criteria
Floor Levels	• To minimise the damage to properties from flooding. • To minimise risk to life from the inundation of properties. • To minimise the economic cost to the community resulting from flooding.	• Proposed building must be free from flooding up to and including the flood planning level (FPL) requirement. • Proposed building should not increase the likelihood of flooding on other developments, properties or infrastructure.
Car parking	• To minimise risk to life from the inundation of the basement and other car parking areas. • To minimise the damage to motor vehicles from flooding. • To ensure that vehicles do not become moving debris during floods.	• The proposed garage or car park should not increase the risk of vehicle damage by flooding. • The proposed garage or car park should not increase the likelihood of flooding on other developments, properties or infrastructure. • The proposed garage or car park must meet the Flood Planning Level Requirements. • Open car parking - The minimum surface level of open space car parking subject to flooding should be designed giving regard to vehicle stability in terms of depths and velocity during flooding.
Building components and method	• To minimise the damage to building and structures during a flood event.	• Buildings are to be designed and constructed to a standard that is compatible with the flood risk and will not result in significant structural or material damage during or after a flood event.
Fencing	• To ensure that fencing does not result in any significant	• Fencing is to be designed and constructed in such a manner that

Development Aspect	Objective	Performance Criteria
	obstruction to the free flow of floodwaters. • To ensure that fencing will remain safe during floods and not become moving debris.	it will not modify the flow of floodwaters and cause damage to surrounding properties.
Evacuation	• To ensure that there is no increase in risk to life to people in a flood event.	• To ensure that there is a plan in place for people to follow during a flood event that will not increase the risk to life of people on site or result in an increased reliance on the SES or emergency services personnel.
Earthworks and building on flood prone land	• To ensure that the natural function of floodplains and overland flow paths to convey and store floodwater is not compromised.	• Any earthworks or development proposal must be supported by a flood impact assessment report (refer to Sub-section 9.5.4) from a qualified civil engineer.
Storage of hazardous substances	• To prevent the potential spread of pollution from hazardous substances.	• The storage of products which, may be hazardous or pollute floodwaters, must be placed above the 1% AEP flood level plus 0.5m freeboard or placed within an area protected by bunds or levels such that no floodwaters can enter the bunded area.

3.10.9 Prescriptive Controls

Prescriptive controls are set out in the flood planning controls listed in **Table 11** and **Table 12** and the corresponding index of prescriptive controls can be found in **Table 13.**

3.10.10 Criteria for Determining Development Applications

The criteria for determining development applications (DA) potentially affected by flooding is structured in recognition that different controls are applicable to different land use categories and levels of potential flood inundation and hazard. Flood hazard maps are available online via Council's website and land use categories can be found in Sub-section 9.5.1.

The following steps should be taken to determine the relevant flood development controls.

a. Determine whether the site is within the 1% AEP Flood Level plus 0.5m freeboard affected Land, refer to the 1% AEP Flood Level plus 0.5m freeboard affected Land maps, available at: https://maps.bayside.nsw.gov.au/Intramaps98/?module=Flood

   Flood maps are available in Councils' online mapping system.

b. If the land use category is either a critical uses & facilities or sensitive uses & facilities (Schedules – Chapter 9.5.1), determine whether the site is impacted by the PMF, refer to the PMF flood affected land maps, available at: https://maps.bayside.nsw.gov.au/Intramaps98/?module=Flood

c. If a site is identified as flood affected land in both (a) and (b), obtain a flood advice letter from Council and follow the steps specified in (f) to (j).

d. If a site is identified as flood affected land in (b) and the proposed development or land use is categorised as a critical and sensitive facility, obtain a flood advice letter from Council and follow the steps specified in (f) to (j). If the land use is not categorised as a critical and sensitive development, a flood advice letter is not required.

e. If a site is not identified as flood affected land in both (a) and (b), a flood advice letter is not required.

f. Determine the flood hazard category that applies to the land (refer to the flood advice letter provided by Council, see (c) above).

g. Determine which of the land use categories the proposal falls under (refer Schedules – Chapter 9.5.1). Note that the land use categories refer to the development type not the zoning map identified in the LEP.

h. Based on the land use category and flood hazard category apply the prescriptive controls specified in Tables 2 to 4.

i. Where a first use/change of use DA is proposed an economic analysis of flood losses shall be prepared to identify the cost of business loss against the cost of floodproofing. A copy of the template can be provided with the flood advice letter (see (c) above) to the applicant. A suitably qualified engineer must analyse the optimum solution and provide a recommendation. The minimum floor levels shall be merit-based and shall consider flood risk and intensification of the existing use.

j. Assess and document how the development proposal will satisfy each of the applicable development controls and their objectives.

3.10.11 Land Use Categories

The criteria for proposals potentially affected by flooding are structured in recognition that different controls are applicable to different land uses and flood hazards.

The major land use categories that have been adopted are listed in Schedules – Sub-section 9.5.1. The specific uses, as defined by the applicable Environmental Planning Instruments, have been grouped within each of these categories based on a similar level of potential vulnerability to flooding hazards.

3.10.12 Flood Hazard Categories

Flood hazard refers to the potential loss of life, injury and economic loss caused by future flood events. The degree of hazard varies with the severity of flooding and is affected by flood behaviour (extent, depth, velocity, isolation, rate of rising of floodwaters, duration), topography and emergency management.

- A Flood Hazard Map has been prepared for all flood prone land based on the flood behaviour derived by flood modelling prepared by Council for each catchment. These hazard categories have been grouped into high and low hazards as follows. Details of the Flood Hazard Category is provided in Schedules – Sub-section 9.5.2.

  The Flood Hazard Map is available at:
  https://maps.bayside.nsw.gov.au/Intramaps98/?module=Flood

- **High Flood Hazard** - This is defined as the area of land affected by the 1% AEP flood that is subject to hazard category H3 to H6.

  An area identified as high flood hazard is likely to have high flood damages and high risk to life or evacuation difficulties. In this area, there would be a significant risk of flood damage without strict compliance with flood-related development controls.

- **Low Flood Hazard** - This has been defined as the area of land affected by the 1% AEP flood that is categorised as having H1 or H2 hazard category. In this area, the risk to life and flood damage to the building is low, however it is unsafe for small vehicles and can cause damage to the

building contents and services.

3.10.13 Flood Planning Prescriptive Controls

The flood planning prescriptive controls consider the land use type or development type (not land use zoning map) and the flood hazard category (illustrated in the Flood Hazard Map) from which the suitability of development and ability to intensify an existing use can be assessed. Where a property is affected by more than one Flood Hazard Category across it, the assessment must consider the controls relevant at each location on the property.

A table has been prepared for each flood hazard category

- Low Flood Hazard (Hazard category H1 & H2) **Table 11**
- High Flood Hazard (Hazard Category H3, H4, H5 & H6) **Table 12**

These tables identify which prescriptive controls are applicable for each land use category. The prescriptive controls have been established to meet the objectives and performance criteria. The references in **Table 11** and **Table 12** relate to prescriptive controls specified in **Table 13.**

Table 11: Low Flood Hazard - Prescriptive Controls for Development

Planning Consideration	**Land Use Category (Development Type)**					
	Critical & Sensitive Uses & Facilities	Subdivision	Residential	Commercial & Industrial	Recreation and non urban	Concessional Development
A. Floor level	A2, A3	G3	A1, A3	A1, A3	A4	A5
B. Building Components	B2, B3, B4		B1, B3, B4	B1, B3, B4	B1, B3, B4	B1, B3, B4
C. Structural Soundness	C2		C1	C1	C1	C1
D. Flood Effects	D1		D1	D1	D1	D1
E. Car Parking & Driveway Access	E1, E2, E4		E1, E2, E3	E1, E2, E3	E1, E2, E3	E1, E2, E3
F. Evacuation	F2		F1	F1	F1	F1
G. Management and Design	G2, G4, G5		G2, G4, G5	G2, G4, G5	G2, G4, G5	G2, G4, G5

Table 12: High Flood Hazard - Prescriptive Controls for Development

Planning Consideration	**Land Use Category (Development Type)**					
	Critical & Sensitive Uses & Facilities **(see note)**	Subdivision	Residential	Commercial & Industrial	Recreation and non urban	Concessional Development
A. Floor level	A2, A3	G1, G3	A1, A3	A1, A3	A4	A5
B. Building Components	B2, B3, B4		B2, B3, B4	B2, B3, B4	B1, B3, B4	B1, B3, B4
C. Structural Soundness	C2		C2	C2	C1	C1
D. Flood Effects	D1		D1	D1	D1	D1
E. Car Parking & Driveway Access	E1, E2, E4		E1, E2, E3	E1, E2, E3	E1, E2, E3	E1, E2, E3
F. Evacuation	F2		F1	F1	F1	F1
G. Management and Design	G1, G2, G4, G5		G1, G2, G4, G5	G1, G2, G4, G5	G1, G2, G4, G5	G1, G2, G4, G5

Note: *Developments (including any intensification of existing development) for Critical and Sensitive uses and facilities are unsuitable within a site that is categorised as a High Flood Hazard (H3 and H6).*

Table 13: Index of Prescriptive Planning Controls

Floor Level	
A1	Habitable floor levels to be no lower than the 1% AEP flood level plus 0.5m freeboard.
A2	Habitable floor level shall be at or above the PMF level or 1% AEP flood level plus 0.5m freeboard, whichever is higher.
A3	Non-habitable floor levels to be no lower than 1% AEP flood level.
A4	All floor levels to be at least 300mm above the existing ground level.
A5	All floor levels to be no lower than the existing floor level of the building or a minimum of 200mm above the existing ground level (whichever is higher).
Building Components & Method	
B1	All structures to have flood compatible building materials (Schedules – Chapter 9.5.3) below the 1% AEP flood level plus 0.5m freeboard. Any part of the building that is erected at or below the 1% AEP flood level + 0.5m freeboard shall be constructed of flood compatible material.
B2	All structures to have flood compatible building components below the PMF level.
B3	Flow-through open form fencing (louvres or pool fencing) is required for all new fencing and all new gates up to the 1% AEP flood level to allow floodwaters to flow through.
B4	All new electrical equipment, power points, wiring, fuel lines, sewerage systems or any other service pipes and connections must be waterproofed and/or located above the 1% AEP flood level plus 0.5m freeboard. All existing electrical equipment and power points located below the 1% AEP flood level plus 0.5m freeboard within the subject structure must have residual current devices installed that turn off all electricity supply to the property when floodwaters are detected.

Floor Level	
Structural Soundness	
C1	All new development must be designed and constructed to ensure structural integrity up to the 1% AEP flood level plus 0.5m freeboard, taking into account the forces of floodwater, wave action, flowing water with debris, buoyancy and immersion. Structural certification shall be provided confirming the above. Where shelter-in-place refuge is required, the structural integrity for the refuge is to be up to the PMF level. Structural certification shall be provided confirming the above.
C2	An engineer's report shall be provided to certify that the structure can withstand the forces of floodwater, debris and buoyancy up to the PMF Level.
Flood Effects Caused by Development	
D1	The development must not result in increased flooding elsewhere in the floodplain. A flood assessment report (refer to Schedules – Chapter 9.5.4) shall be provided to demonstrate that the development: • does not divert floodwaters to the detriment of elsewhere on the floodplain. • does not increase flood level or velocity elsewhere on the floodplain. • does not result in a detrimental loss of flood storage. • reduces the existing flood hazard, where possible. A flood impact assessment for a site is not required where the flood storage and floodway capacity are retained. For example, a building can be elevated to retain the existing floodway and flood storage to permit the free flow of water under the building.
Car Parking and Driveway Access	
E1	The minimum finished floor level of open car parking spaces or carports shall be at or above natural ground level. A flow-through roller door (or horizontal louvers) is permitted for a carport structure. Carports must be of open design, with at least 2 sides completely open such that flow is not obstructed up to the 1% AEP flood level. Otherwise, it will be considered to be enclosed. Open car parking areas shall not be located within a floodway.
E2	For above ground level garages, the minimum surface level shall be no lower than the 1% AEP flood level.
E3	Basement garages/storage/car parking, low-level driveways must be physically protected from inundation by floods equal to or greater than the 1% AEP flood level plus 0.5m freeboard. The crest of the driveway shall be located within the property boundary. All access, ventilation, driveway crests and any other potential water entry points to any enclosed car parking shall be above the 1% AEP flood level plus 0.5m freeboard level. Council will not accept any options that rely on the electrical, mechanical or manual exclusion of the floodwaters from entering the enclosed carpark for new development. Flood barriers may be accepted for an existing development to improve flood protection.
E4	Basement garages/storage/car parking, low-level driveways must be physically protected from inundation by floods equal to or greater than the1% AEP flood level plus 0.5m freeboard or PMF flood level, whichever is higher. The crest of the driveway shall be located within the property boundary. Council will not accept any options that rely on the electrical, mechanical or manual exclusion of the floodwaters from entering the enclosed carpark for new development. Flood barriers may be accepted for an existing development to improve flood protection.
Emergency Response	
F1	A qualified civil engineer shall be engaged to prepare an onsite emergency response flood plan is required to detail whether evacuation procedures are required and if so, how they will be initiated, warning signs and preservation of flood awareness as owners and/or occupants change through time. Adequate flood warning systems (such as water level sensors, and alarm stations), signage and exits shall be available to allow safe and orderly evacuation without increased reliance upon the SES or other authorised emergency services personnel. The evacuation plan shall be easily accessible to current and future occupants.

Floor Level	
	If safe evacuation cannot be achieved within a sufficient response time then a shelter-in-place refuge is required, together with a plan for self-sufficiency for up to 12 hours. This plan must consider as a minimum: sufficient area for all the occupants, adequate clean water for all occupants; portable radio with spare batteries; torch with spare batteries; first-aid kits; emergency power; and a practical means of medical evacuation. Note that in the event of a flood, occupants would be required to evacuate if ordered by Emergency Services personnel regardless of the availability of a shelter-in-place refuge.
F2	Provide a shelter in place refuge area within the development above the PMF. On-site shelter place refuges shall be designed with a plan for self-sufficiency to cater for the maximum number of people reasonably expected on the development site. This plan must include a storage area for food, torch, batteries, first aid kit, generator, and self-directing signs. An engineer's report shall be provided to certify that an area of refuge is available and able to withstand the effects of flooding. Provide design certification by a practising structural engineer that the building is able to withstand the hydraulic loading due to the flooding event up to the PMF. Note that in the event of a flood, occupants would be required to evacuate if ordered by Emergency Services personnel regardless of the availability of a shelter-in-place refuge.
Management and Design	
G1	If a site or part of the site is affected by a Flood Hazard Category of H5 and H6, buildings and structures can be exposed to significant structural damage with a high risk to life. Intensification of existing land use in the affected area is not permitted unless it can be demonstrated to the satisfaction of the consent authority that the risk level on the property is or can be reduced.
G2	Storage of materials that may cause pollution or are potentially hazardous during any flood is not permitted below the 1% AEP plus 0.5m freeboard.
G3	Subdivision of the land must not create a parcel with unreliable access, evacuation route and increased reliance on SES. Opportunities shall be investigated to amalgamate the development site with the adjacent site to provide safe and reliable access during the flood.
G4	Where a building is elevated to retain the existing floodway, overland flow path and flood storage, the undercroft area is to remain open to permit the free flow of water under the building. A positive covenant is required.
G5	Pools located within the 1% AEP flood extent are to be in-ground, with coping flush with natural ground level. Where it is not possible to have pool coping flush with natural ground level, it must be demonstrated that the development will result in no net loss of flood storage and no impact on flood conveyance on or from the site. All electrical equipment associated with the pool (including pool pumps) is to be waterproofed and/or located at or above the 1% AEP plus 0.5m freeboard level. All chemicals associated with the pool are to be stored at or above the 1% AEP plus 0.5m freeboard level.

Note: Low level driveway refers to a garage floor where depth of ponding is equal to or above 200mm in a 1% AEP flood event.

3.10.14 Unsuitable for Intensification

Intensification of the land use in high hazard areas may result in increased risk to life and property and unsustainable social and economic costs to the community as a consequence of flooding. As such:

- Developments (including any intensification of existing development) for Critical and Sensitive uses and facilities are unsuitable within a site that is categorised as a High Flood Hazard (H3 to H6); and
- Intensification of any residential, commercial or industrial use is identified as unsuitable within the flood-affected part of the land where Flood Hazard is classified as H5 to H6.

However, Council may allow the development where flood hazard can be reduced by appropriate flood mitigation such as trunk drainage upgrade, diversion of stormwater asset etc to reduce flood risk in the development site. Consolidation with an adjoining lot may provide flood free access to the site and a safe evacuation route.

3.10.15 Concessional Development

Concessional development is any development or redevelopment that would normally not be permitted in a flood-prone land, but may be permitted as a concession provided it:

a. Is kept clear of any floodway and
b. involves an acceptably small (see below for limits) addition or alteration to an existing development that will not cause a significant increase in potential flood losses, risks or have an adverse impact on adjoining properties.

In the case of residential development:

a. a once-only addition or alteration to an existing dwelling of not more than 10% or 20m^2 (whichever is the lesser) of the habitable floor area which existed at the date of commencement of this DCP policy or plan.
b. The construction of an outbuilding with a maximum floor area of 20m^2.

In the case of other development:

a. A once-only addition to existing buildings of not more than an additional 10% or 50m^2 (whichever is the lesser) of the floor area which existed at the date of commencement of this DCP policy or plan.

3.11 Contamination

Overview

Consideration needs to be given to the possibility that a previous or current land use has led to the contamination of soil and/or groundwater at the site and the potential health and environment risks of any contamination. Sites must be evaluated to determine if the proposed development is on land affected by soil or groundwater contamination and determine the remediation and controls required to make the land suitable for the proposed development.

This Section is to be read in conjunction with the State Environmental Planning Policy (Resilience and Hazards) 2021 Chapter 4 – Remediation of Land, the Contaminated Land Management Act 1997 (CLM Act), the Environmental Planning and Assessment Act 1979 (EP&A Act), the Department of Urban Affairs and Planning – Managing Land Contamination: Planning Guidelines (Managing Land Contamination Guidelines), and the NSW Environment Protection Authority Consultants Reporting on Contaminated Land: Contaminated Land Guidelines 2020 or as amended. In the event of an inconsistency between the DCP, SEPP (Resilience and Hazards), and the Acts, the DCP is overridden.

Definitions of the terms used in this Part are contained within the SEPP (Resilience and Hazards), the NSW Environment Protection Authority Consultants Reporting on Contaminated Land: Contaminated Land Guidelines 2020 and the CLM Act.

3.11.1 Contamination – General

Objective		Control	
Contamination			
O1.	To ensure that the development of contaminated or potentially contaminated land does not pose a risk to human health or the environment.	**C1.**	All sites must be evaluated to determine if the proposed development is on land suspected to have been used for a potentially contaminating activity or is potentially contaminated.
		C2.	If any information suggests that contamination is, or may be, present, or there is a lack of historical knowledge of potentially contaminating uses on the site, the site must be investigated in accordance with the NSW EPA adopted Guidelines under the Contaminated Land Management Act, all Nationally relevant guidelines and current industry best practice.
		C3.	If assessment of the site is required, information about the nature, extent and degree of contamination must be provided to Council prior to determination of the application in accordance with the NSW Consultants Reporting on Contaminated Land – Contaminated Land Guidelines (2020) and the National Environment Protection (Assessment of Site Contamination) Measure 1999 (ASC NEPM) Schedule B.
		C4.	The following stages, as outlined in the NSW Consultants Reporting on Contaminated Land – Contaminated Land Guidelines (2020) and the National Environment Protection (Assessment of Site Contamination) Measure 1999 (ASC NEPM) Schedule B, must be followed: a. Provide a Preliminary Site Investigation (PSI) to assess whether contamination is or has the potential to exist on the site and whether further investigation is needed or if the information provided is determined by Council to be insufficient to assess the proposal. b. Provide a Sampling and Analysis Quality Plan (SAQP) when a Detailed Site Investigation (DSI) is required as the results of a Preliminary Site Investigation. c. Provide a Detailed Site Investigation (DSI) when the results of a Preliminary Site Investigation (PSI) indicate the site has been or may have been used for a potentially contaminating activity (see Table 1 of the *Managing Land Contamination: Planning Guidelines SEPP 55 – Remediation of Land*), may be contaminated beyond appropriate guidelines for the proposed land use, or the risk of exposure to contamination may increase due to a change in land use or due to the proposed development. The detailed site

Objective		Control	
			investigation must include a statement which describes whether the site is suitable for the proposed use, or if remediation is necessary. d. Where appropriate, provide a Site Specific Risk Assessment if concentrations of contaminants exceed Tier 1 assessment criteria and indicate that further investigation or evaluation is required, if assessment criteria are not available for certain contaminants, or where further assessment is required to reduce uncertainties and consider site-specific conditions. e. Provide a Remedial Action Plan (RAP) if the Detailed Site Investigation (DSI) indicates that contamination has the potential to pose an unacceptable risk to human health or the environment (on- or off-site), under the proposed land-use or proposed development, and remediation of soil or groundwater is required. The RAP must clearly state remediation objectives and document the process to remediate the contaminated site. f. Provide a Site Remediation and Validation Report, when remediation or management of contaminated soil or groundwater is required, to detail the site work undertaken and demonstrate compliance with contaminated land guidelines made or approved by the EPA under section 105 of the *Contaminated Land Management Act 1997* and all other applicable regulatory requirements. The site remedial work must be validated to ensure the objectives stated in the RAP have been achieved including whether the site is suitable for the proposed use. g. Provide an Environmental Management Plan (EMP) when required by an RAP and approved by Council when full clean-up is not feasible or when there is on-site containment of the contamination. Council must be consulted before any EMP is issued and the feasibility of implementing the plan over the long-term must be clearly shown. Reports may be presented separately or, where appropriate, combined (e.g. preliminary and detailed site investigations).
		C5.	Each Stage must be prepared in accordance with the Guidelines adopted or set out by the NSW EPA including the NSW Consultants Reporting on Contaminated Land – Contaminated Land Guidelines

Objective		Control	
			(2020), the National Environment Protection (Assessment of Site Contamination) Measure 1999 (ASC NEPM), the SEPP (Resilience and Hazards) and Managing Land Contamination Guidelines (as amended).

3.11.2 Site Audit Statements

Objective		Control	
O2.	To ensure site conditions of land, once investigated or remediated, will be suitable for its proposed land use or development.	**C6.**	Council may require that a site audit be undertaken by a Site Auditor accredited under the NSW Site Auditor Scheme (Accredited Site Auditor) at any or all of the contamination investigation and remediation stages. A site audit is necessary when Council: a. believes on reasonable grounds that the information provided by the applicant is incorrect or incomplete; b. wishes to verify that the information provided adheres to appropriate standards, procedures and guidelines; or c. does not have the internal resources to conduct a technical review.
		C7.	If a Site Audit Statement (SAS) is requested, the applicant must provide Council with a clear and legible copy of both the Site Audit Statement and the Site Audit Report. The Accredited Site Auditor must discuss any proposed conditions with Council prior to issuing the SAS.
		C8.	Council's preference is for a Section A1 SAS, however in circumstances where this is not possible, a section A2 SAS with conditions may be submitted. Council will not accept a SAS where the site's suitability relies on conditions which Council is of the opinion are unworkable, unwieldy, un-enforceable or require constant supervision by Council.
		C9.	If Council requires a SAS in order to make its planning decision the cost will be borne by the applicant and not Council.

3.11.3 Containment or capping of contaminated material

Objective		Control	
O3.	To minimise the risk to human and environmental health on land contaminated	**C10.**	The preferred hierarchy of options for site clean-up and/or management outlined in the NEPM (Assessment of Site Contamination) is:

Objective		Control	
	by past uses through capping or containment.		a. On-site treatment of the contamination so that it is destroyed or the associated risk is reduced to an acceptable level; and b. Offsite treatment of excavated soil, so that the contamination is destroyed or the associated risk is reduced to an acceptable level, after which soil is returned to the site; or if the above are not practicable, c. Consolidation and isolation of the soil on-site by containment within a properly designed barrier; and d. Removal of contaminated material to an approved site or facility, followed, where necessary, by replacement with appropriate material; or e. Where the assessment indicates remediation would have no net environmental benefit or would have a net adverse environmental effect, implementation of an appropriate management strategy.
		C11.	For the use of C10c) - consolidation and isolation of soil on-site, or C10e) – implementation of a management strategy, Council must be satisfied the strategy: a. Maximises the long-term stability of the capping and containment system(s) and any proposed structures above it (from an engineering perspective) and, where applicable, minimises the potential for leachate formation and/or volatilisation; and b. Does not result in a risk of harm to human health or the environment; and c. Recommends a notification mechanism to ensure that the capped or contained areas are protected from any unintentional or uncontrolled disturbance that could breach the integrity of the physical barrier; and d. Does not involve containment of contaminated material on riparian land as the containment of contaminated material on riparian land may conflict with the establishment of native vegetation, and tree roots may penetrate the containment area and result in the release of contaminants to surface water and the ground water system.
		C12.	If containment or capping of contaminated material is approved a restriction is required to be placed on the Certificate of Title to advise future owners of the land of any on-going site management requirements or restrictions on future land uses. Only Council can release, vary or modify the restriction/s.

3.11.4 Landscaping within the Development – Contaminated Sites

Objective		Control	
O4.	To ensure landscaping of contaminated sites is suitable and responds to contamination mitigation measures, including the provision of deep soil areas.	**C13.**	All soil used in landscaping must meet the applicable NSW EPA Guidelines and National Environment Protection (Assessment of Site Contamination) Measure (NEPM) 1999 (amended 2013).
		C14.	Where sites are to be capped or contained to manage contamination, the required minimum deep soil zones are to still be provided for the development site and capping or containment shall not limit the deep soil planting and species selection.
		C15.	Deep soil zones must be remediated to provide a planting substrate suitable for the growth of plants.
		C16.	The use of mounded areas or planter boxes in sites with capping or containment in lieu of deep soil zones is prohibited.
		C17.	A landscape plan identifying deep soil zones and any proposed capping and containment areas is to be submitted when consolidation and isolation of the soil on-site by containment within a properly designed barrier, or when an appropriate management strategy is used.

3.12 Waste Minimisation and Site Facilities

This Part applies to all works requiring a development application (DA) and is to be read in conjunction with Council's relevant policies and guidelines.

This Part should also be read in conjunction with the provisions outlined in **Sub-section 3.5.7** (Waste Collection) and comply with these provisions.

Objective		Control	
General			
O1.	Waste is managed effectively to: a. maximise the reuse and recycling of construction materials and minimise demolition waste by promoting reuse of existing structures, adaptable building design and adaptable design for end-of-life deconstruction b. encourage building design, demolition and construction techniques that help to avoid waste being generated c. maximise waste avoidance, and reuse and recycling of household and commercial waste	**C1.**	Development is to be consistent with Council's Waste Management DCP Technical Specification 2022 and all development applications are required to submit a Waste Management Plan consistent with this Technical Specification.
		C2.	New development must also comply with the provisions related to Waste Collection in accordance with Sub-section 3.5.7 of this DCP.

Objective		Control	
	d. ensure there are appropriate on-site waste separation systems to assist council and private sector waste management staff to collect and recover waste materials e. ensure the amenity of the building and local area is maintained or enhanced		

3.12.1 Demolition and Construction

Objective		Control	
O1.	a. To minimise the amount of construction waste that is sent to landfill b. To minimise waste generated during demolition and construction. c. To increase efficiency of development and encourage sustainable practices. d. To maximise the re-use of clean excavated material, concrete, bricks and timber. e. To ensure the safe removal and disposal of hazardous building materials.	**C1.**	a. A construction waste storage area is to be located within the property boundary and is to be identified on the site plans as part of the Site Waste Recycling Management Plan (SWRMP). b. Separate construction waste collection bins or construction waste storage areas are to be provided giving consideration to slope, drainage, vegetation, access and handling requirements and may include: i. Landfill waste; ii. Recyclable waste; iii. Materials to be re-used on-site; and / or iv. Excavation materials. c. Records are to be retained on-site demonstrating lawful disposal of waste. d. Easy vehicular access to waste and recycling material storage areas must be provided and detailed in the SWRMP. e. Construction materials are to be stored away from waste and recycling materials to enable easy access for waste collectors. Skip bins are to be utilised and located in accordance with Council's building waste and hoardings policy. f. All materials are to be stored in way that: i. Prevents damage from the elements, and reduces odour, health risks and windborne litter; and ii. Prevents impacts to the environment under State Government Legislation (including stormwater pollution and runoff).
		C2.	All sandstone must be re-used on site or reclaimed through an appropriate contractor.

Objective		Control	
		C3.	Asbestos and other hazardous material is to be managed under the Protection of the Environment Operations Act 1997, in accordance with the provisions of Safe Work NSW, and Council's Asbestos Policy.

3.12.2 On-going management

Objective		Control	
O1.	To ensure new developments and changes to existing developments are designed to minimise waste generation and maximise resource recovery.	**C1.**	Development for the purposes of any of the following: • Dwelling houses; • Dual occupancies; • Secondary dwellings; • Semi-detached dwellings; • Attached dwellings; • Multi-dwelling housing. Must comply with Sub-section 3.5.7
O2.	To encourage waste storage facilities that are designed to enable source separation for recovery.		
O3.	To ensure waste and recycling systems are easy to use and complement Council's waste and recycling services.	**C2.**	Development for the purposes of any of the following: • All other residential accommodation not listed in C1 above; • Tourist and visitor accommodation; • Commercial development; and • Any other development not listed in C1. Must comply with Sub-section 3.5.7
O4.	To promote safe practices for storage, handling and collection of waste and recycling.		
O5.	To prevent stormwater pollution that may result from poor waste and recycling storage and management practices.		
O6.	To minimise amenity impacts during the storage, use and collection of waste and recyclables.		
O7.	To prevent impacts to the environment that may result from litter, excess waste and illegal dumping.		
O8.	To minimise interference of waste collection on pedestrian access, safety and amenity.		
O9.	To minimise interference of waste collection on local traffic.		

3.12.3 Low-density residential development

Objective		Control	
O1.	Development is to be in accordance with the Objectives outlined in Sub-section 3.5.7.	**C1.**	A waste and recycling storage area for each dwelling must be located on the relevant lot in a position convenient for both users and waste collection personnel.
		C2.	Sufficient space must be provided to accommodate the storage of waste and recycling likely to be generated on the premises between collections and any associated equipment.
		C3.	Waste and recycling receptacles must be stored at all times within the boundary of the site and screened from the public and commercial domains unless otherwise approved by Council under Section 68 of the Local Government Act 1993.
		C4.	All waste and recycling must be inside Council approved bins or skips, with lids closed to reduce littering, stormwater pollution, odour and vermin. Waste and recycling not presented in the correct manner will not be collected.
		C5.	Waste and recycling storage areas must be visually and physically integrated into the design of the development.
		C6.	Waste and recycling storage areas must be designed and located to avoid adverse impacts on the amenity of adjoining sites including noise, odour, and visual impacts.
		C7.	All waste and recycling receptacles must be put out for kerb-side collection no earlier than the previous evening.
		C8.	All waste and recycling receptacles must be removed from the kerb-side or laneway as soon as possible on the same day as the collection service.

3.12.4 All other residential development

Objective		Control	
O1.	Development is to be in accordance with the Objectives outlined in Sub-section 3.5.7.	**C1.**	Sufficient space must be provided to accommodate the storage of waste and recycling likely to be generated on the premises between collections and any associated equipment.
		C2.	Waste storage rooms or areas are to be located a maximum 10m from pick up point.

Objective		Control	
			Waste rooms are not to be used for any purpose other than the storage of waste.
		C3.	Waste and recycling receptacles must be stored at all times within the boundary of the site and concealed from the public and commercial domains unless otherwise approved by Council under Section 68 of the Local Government Act 1993.
		C4.	All waste and recycling must be inside Council approved bins or skips, with lids closed to reduce littering, stormwater pollution, odour and vermin. Waste and recycling not presented in the correct manner will not be collected.
		C5.	Waste and recycling storage rooms must be: a. Enclosed to prevent noise, odour and visual impacts; b. Designed to store the entire fleet of bins plus 0.2m between bins to allow adequate manoeuvrability room; c. Designed with a 1.8m unobstructed clearance zone between the stored bins and the entrance for access and manoeuvrability; d. Designed with suitable door and corridor access to enable bin movement; e. Constructed of concrete or other approved materials at least 75mm thick; f. Finished with a smooth even surface to be easily cleaned; g. Coved at the intersection with walls and plinths with a ramp to the doorway where necessary; h. Graded and drained to the sewerage system and approved by Sydney Water; i. Fitted with a close fitting and self-closing door that can be opened from within the room; j. Designed with adequate lighting and naturally/mechanical ventilation to meet Building Code of Australia requirements; k. Fitted with smoke detectors in accordance with the relevant Australian Standards;

Objective		Control	
			l. Equipped taps supplying hot and cold water, mixed through a centralised mixing valve with a hose cock and fitted with an aerator to increase water efficiency; m. Designed to include a clear and easy-to-read “NO STOPPING” sign and “DANGER” sign on the external face of waste storage rooms where appropriate; n. Designed to ensure waste-water from the cleaning of the waste storage area and bins, is not to drain into the stormwater system; and o. Fitted with childproof compacters or mechanical devices where used in the storage of waste.
		C6.	A room or caged area with a minimum floor space of 4m^2 must be provided for the storage of discarded bulky items and problem waste, awaiting collection. The doorway of this storage area must be at least 1.5m. The following minimum floor space requirements apply: a. Between 6 and 20 units: 4m^2 b. Between 21 and 40 units: 4m^2 +1m^2 for every 10 additional units above 20 units c. Between 41 and 100 units: 8m^2 + 1m^2 per 20 additional units above 40 units d. Over 101 units: 12m^2 +1m^2 per 50 additional units above 100 units e. Additional space is required for recycling problem waste such as textiles or electronic waste. The floor space required is 1 m^2 per 50 units to a maximum 2m^2. This space should be in or attached to the storage area.
		C7.	Developments containing more than 3 habitable storeys must: a. Provide a system for convenient transportation of waste and recyclable material to the communal waste and recycling storage area; and b. Provide a waste and recycling compartment/area on each floor with sufficient capacity to store at

Objective		Control	
			least 1 day volume of waste and recycling likely to be generated on that floor.
		C8.	Both waste and recycling bins/crates must be stored together in the allocated waste storage room.
		C9.	Waste, recycling and garden organics receptacles must be stored at all times within a building. Exceptions can be made: a. Where storage space is available at the side or back of the building, away from public accessibility, and the area can be screened from public and commercial domains; or b. Where the storage area at the front of the property is completely enclosed with no risk of public accessibility.
		C10.	If a waste storage area is visible from the public domain, the design must complement the primary building.

3.12.5 All other development

Objective		Control	
O1.	Development is to be in accordance with the Objectives outlined in Sub-section 3.5.7.	**C1.**	Sufficient space must be provided to accommodate the storage of waste and recycling likely to be generated on the premises between collections and any associated equipment.
		C2.	Waste storage rooms or areas are to be located a maximum 10m from pick up point. Waste rooms are not to be used for any purpose other than the storage of waste.
		C3.	Waste and recycling receptacles must be stored at all times within the boundary of the site and concealed from the public and commercial domains unless otherwise approved by Council under Section 68 of the Local Government Act 1993.
		C4.	All waste and recycling must be inside Council approved bins or skips, with lids closed to reduce littering, stormwater pollution, odour and vermin. Waste and recycling not presented in the correct manner will not be collected.
		C5.	Waste and recycling storage rooms must be:

Objective		Control	
			a. Enclosed to prevent noise, odour and visual impacts; b. Designed to store the entire fleet of bins plus 0.2m between bins to allow adequate manoeuvrability room; c. Designed with a 1.8m unobstructed clearance zone between the stored bins and the entrance for access and manoeuvrability; d. Designed with suitable door and corridor access to enable bin movement; e. Constructed of concrete or other approved materials at least 75mm thick; f. Finished with a smooth even surface to be easily cleaned; g. Coved at the intersection with walls and plinths with a ramp to the doorway where necessary; h. Graded and drained to the sewerage system and approved by Sydney Water; i. Fitted with a close fitting and self-closing door that can be opened from within the room; j. Designed with adequate lighting and naturally/mechanical ventilation to meet Building Code of Australia requirements; k. Fitted with smoke detectors in accordance with the relevant Australian Standards; l. Equipped taps supplying hot and cold water, mixed through a centralised mixing valve with a hose cock and fitted with an aerator to increase water efficiency; m. Designed to include a clear and easy-to-read “NO STOPPING” sign and “DANGER” sign on the external face of waste storage rooms where appropriate; n. Designed to ensure waste-water from the cleaning of the waste storage area and bins, is not to drain into the stormwater system; and o. Fitted with childproof compacters or mechanical devices where used in the storage of waste.

Objective		Control	
		C6.	All new developments are to provide adequate storage for waste to accommodate future change of use, including increased waste generation rates and grease traps.
		C7.	Kitchens, office tea rooms, and the like are to be designed with sufficient space for the interim storage of recyclable, organic and regular waste in separate receptacles.
		C8.	A waste service compartment (waste and recycling area) is to be provided on each floor of the building and have sufficient capacity to store at least 1 day's volume of waste and recycling likely to be generated on that floor.
		C9.	Sufficient space must be allocated within the building for the storage of reusable items such as crates and pallets.
		C10.	Separate space must be allocated for the storage of liquid wastes and oils etc. The liquid waste storage areas must be undercover, bunded and drained to a grease trap. The area is preferably to be within the building, however if circumstances do not permit, an area that is screened from the public and commercial domains may be negotiated with Council.
		C11.	Liquid waste from grease traps must only be removed by licensed contractors approved by Sydney Water and NSW EPA.
		C12.	For commercial premises whose waste contains 20% or more food waste, or other waste which is considered by Council to have potential amenity impacts, a daily waste collection is required, unless an alternative is agreed upon with Council.

3.13 Development in areas subject to aircraft noise and affected by Sydney Airport's prescribed airspace

Overview

This Part of the DCP provides a means of assessing the effect of aircraft noise on development proposals by utilising an appropriately endorsed Australian Noise Exposure Forecast (ANEF) chart that takes into account long-term operating procedures and air traffic forecasts at Sydney (Kingsford-Smith) Airport. This Part also provides potential applicants with an understanding of the predicted level of the potential height limits due to prescribed airspace on proposed development sites and the potential for proposed developments to cause mechanical windshear.

The aircraft noise controls apply to all development in Bayside LGA within the 20 ANEF and above contour on the ANEF chart. The ANEF chart for Sydney Airport will be the ANEF chart adopted by Council based on the most up-to-date information on operating procedures and air traffic forecasts at Sydney (Kingsford Smith) Airport. The potential height limit controls, due to prescribed airspace for Sydney (Kingsford Smith) Airport, apply to all land within the Bayside LGA.

Objective		Control	
O1.	To ensure development does not adversely affect air safety of Sydney Airport.	**C1.**	Where council considers a proposal has the potential for an adverse impact on the air safety of Sydney Airport it may not grant consent. Council will consider the following matters as part of its assessment: a. building height impact on the OLS and PANS-OPS; b. emission of light; c. reflection of sunlight (e.g. from solar panels); d. emissions from smoke, dust or any other airborne particulate; e. creation of air turbulence; and f. storage and handling of dangerous goods.
O2.	Development is located and designed: a. to prevent certain noise sensitive developments from being located near the Sydney (Kingsford-Smith) Airport and its flight paths, b. to assist in minimising the impact of aircraft noise from the airport and its flight paths by requiring appropriate noise attenuation measures in noise sensitive buildings, and c. to ensure that development in the vicinity of that airport does not hinder or have any other adverse impact on the ongoing, safe and efficient operation of the airport.	**C2.**	Development on land within an ANEF affected area (ANEF 20+) must be designed and constructed in accordance with the relevant Australian Standard and other guidelines issued by relevant agencies and authorities.
O3.	To provide guidance to applicants of the approval process required in areas impacted by Sydney (Kingsford Smith) Airport prescribed airspace.	**C3.**	Development on land within an ANEF affected area (ANEF 20+) is to be supported by a Noise Impact Assessment demonstrating indoor design sound levels in AS 2021—2000 can be achieved.
O4.	To ensure that developments do not adversely impact on the prescribed airspace for Sydney (Kingsford Smith) Airport.	**C4.**	Aircraft noise sensitive uses, such as but not limited to, residential development, educational establishments, hospitals, nursing homes are not to be located within the 30+ ANEF contour. Child care centres are also discouraged from being located
O5.	To determine whether or not an assessment for mechanical windshear		

Objective		Control	
	impacts is needed for any proposed development.		within 30+ ANEF contours and must demonstrate appropriate noise attenuation measures.
		C5.	Where a building site is considered by Council to be located on or immediately adjacent to an ANEF contour, and could be affected by aircraft noise, the subject development will be assessed as if it was located within the relevant ANEF contour.
		C6.	For residential development located within the 25+ ANEF contour, the external environment (i.e. deck and pergola) to the dwelling must be considered for aircraft noise impacts. The Noise Impact Assessment must consider the external environment in accordance with AS 2021-2015.
		C7.	If a building is located within a specific area identified on the OLS map or seeks to exceed the height limit specified in the map, notice of the proposal must be given to Sydney Airport Corporation. **Note**: Any development over 7.62 metres from existing ground level in the area bounded by Hollingshed Street, Sutherland Street, Sparks Street, Wentworth Avenue, Myrtle Street, Lord Street and Botany Road is required to be referred to Sydney Airport Corporation for consideration on height grounds. **Note**: Development outside the area detailed in Note 1 above, which is 15.24 metres or over in height is required to be referred to Sydney Airport Corporation for consideration on height grounds.
		C8.	Development must consider the operating heights of all construction cranes or machinery (short term controlled activities) that may penetrate prescribed airspace. Consideration should be given to the timing and location for the proposed control activity on site for referral to Sydney Airport Corporation. **Note**: Refer to Clause 6.7 of Bayside LEP 2021 for provisions relating to development that may project above the OLS.

Objective		Control	
		C9.	Approval to operate construction equipment (i.e. cranes) must be obtained by the relevant authorities prior to any commencement of construction, where the prescribed airspace is affected. **Note**: Please contact Council for advice as to whether or not your Development Application is required to be referred to Sydney Airport Corporation Limited (SACL).
		C10.	An assessment for mechanical windshear is required where: a) the proposed development is located within the blue shaded area identified in the below figure; or b) as recommended by National Airports Safeguarding Framework (NASF) Guideline B 'Managing the Risk of Building Generated Windshear and Turbulence at Airports', available to view at: https://www.infrastructure.gov.au/infrastructure-transport-vehicles/aviation/aviation-safety/aviation-environmental-issues/national-airports-safeguarding-framework/national-airports-safeguarding-framework-principles-and-guidelines
		C11.	Where an assessment for mechanical windshear is required, the development application is to be forwarded to SACL for its assessment.
		C12.	Development in proximity to Sydney Airport is to be undertaken in accordance with the relevant NASF.

Objective	Control

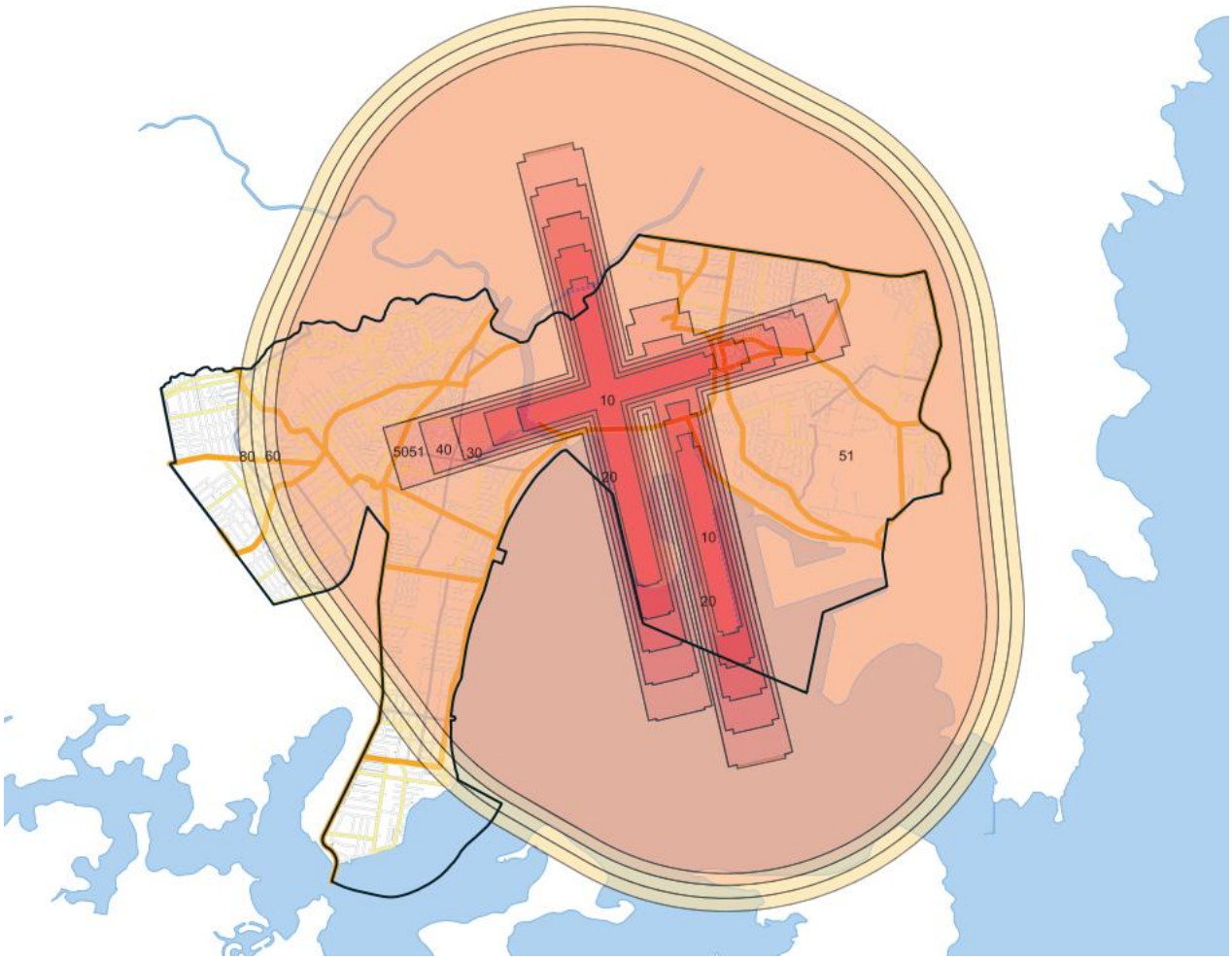


Figure 11: Obstacle Limitation Surfaces Map

Objective	Control

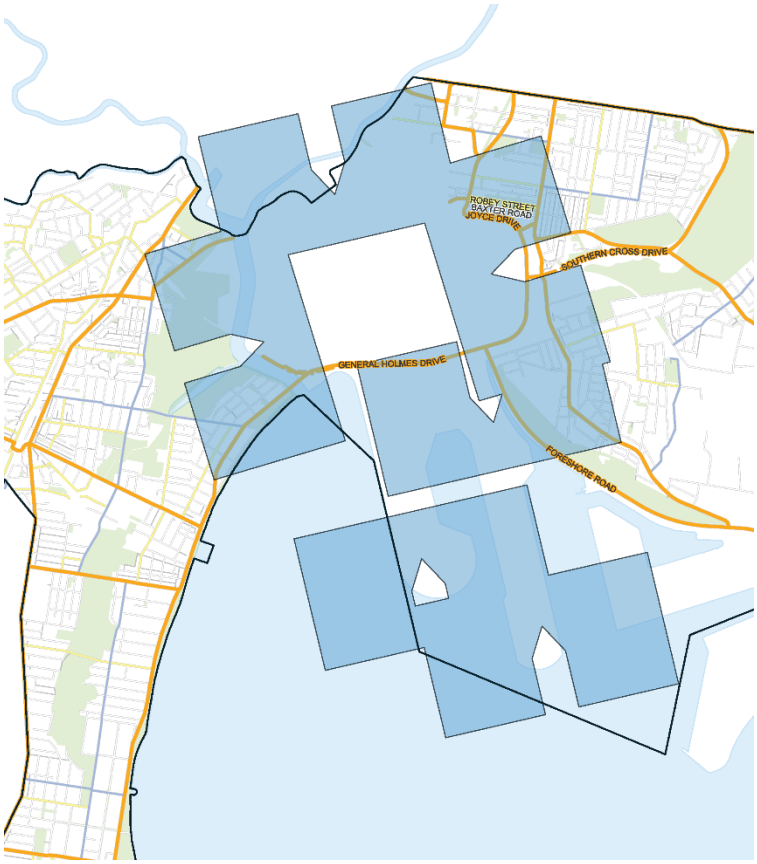


Figure 12: Map showing shaded blue area in which proposed development may require assessment for mechanical wind shear

3.14 Noise, Wind, Vibration and Air Quality

3.14.1 Noise and Vibration – General

Objective		Control	
O1.	Development: a. ensures appropriate noise and vibration attenuation measures are incorporated into building design and site layout b. ensures that any noise generated from the operation of the development is minimised and maintained at acceptable levels c. ensures that hours of operation are appropriate for the site and the interface between industrial/business park areas and residential areas d. avoids conflicts with existing and future land uses.	**C1.**	The location of driveways, open space and recreation areas and ancillary facilities external to the development must be carefully planned to ensure minimal noise impact on adjoining residential properties.
		C2.	Where development is in a location that is exposed to high levels of external noise, an acoustic report that demonstrates compliance with these objectives and controls, must be prepared by a suitably qualified and experienced professional and be submitted as part of a development application. Locations exposed to high levels of external noise include sites subject to: • aircraft noise from Sydney Airport;

Objective		Control	
	Note: Refer to Clause 6.8 of Bayside LEP 2021 for provisions relating to development in areas subject to aircraft noise.		• rail noise and road noise from main roads such as Princes Highway, Botany Road and The Grand Parade; or • adjoining land uses such as industrial, Port Botany port land and port related infrastructure (i.e. Port Botany Rail Line and Foreshore Road). **Note**: this requirement is particularly relevant to sensitive uses such as child care centres, schools and nursing homes. Refer to the following sections for particular noise controls related to residential and non-residential development.
		C3.	Sources of noise such as garbage collection, deliveries, machinery, motors, parking areas and air conditioning plants are: a. to be sited away from adjoining properties; b. Generally to be located away from proposed residential units within the development, with details of attenuation and mitigation measures to be provided in the DA otherwise; and c. to be screened by walls or other acoustical treatments.

3.14.2 Acoustic Privacy – Residential

Objective		Control	
O1.	Development: a. ensures appropriate noise and vibration attenuation measures are incorporated into building design and site layout; b. ensures that any noise generated from the operation of the development is minimised and maintained at acceptable levels; c. ensures that hours of operation are appropriate for the site and the interface between industrial/business park areas and residential areas; and d. avoids conflicts with existing and future land uses.	**C1.**	The location of driveways, open space and recreation areas and ancillary facilities external to the development must be carefully planned to ensure minimal noise impact on adjoining residential properties.
		C2.	Bedrooms in a residential dwelling may share walls with living rooms of adjacent dwellings provided appropriate acoustic measures are considered for the proposed development and submitted to Council with the application.
		C3.	Where party walls are provided, they must be carried to the underside of the roof.
O2.	To minimise the possibility of noise transmission to the occupants of adjoining or neighbouring properties.	**C4.**	All residential development (except dwelling houses) is to be insulated and to have an Impact Isolation between floors to achieve an Acoustical Star Rating in accordance with the standards prescribed by the Association of Australian Acoustical Consultants (AAAC) with a minimum:

Objective		Control	
			a. 3 Star for tiled areas within kitchens, balconies, bathrooms and laundries. Tiled areas within corridors, living areas and bedrooms is not permitted except at lowest habitable residential level; b. 4 star for timber flooring in any area; and c. 5 star for carpet in any area.
		C5.	An Acoustic Report demonstrating compliance with relevant acoustic standards is to be submitted as part of a development application for new residential developments in locations that are exposed to high levels of external noise, including (but not limited to): a. Aircraft noise from Sydney Airport; b. Road noise from main roads such as Princes Highway, Botany Road and The Grand Parade; or c. Adjoining land uses such as industrial, Port Botany port land and port related infrastructure (i.e. Port Botany Rail Line and Foreshore Road). The Acoustic Report must be prepared by a suitably qualified acoustic consultant and also demonstrate the proposal's compliance with relevant controls and standards within state planning policies and NSW EPA guidelines (e.g. EPA Noise Policy for Industry 2017).
		C6.	Residential development in or adjacent to a rail corridor is to: a. consider the impacts of associated rail noise or vibration on the structure and users of the development b. demonstrate its consistency with Division 15, Subdivision 2 of State Environmental Planning Policy (Transport and Infrastructure) 2021.
		C7.	Residential development in or adjacent to a road corridor of a freeway, a toll way, a transit way or any other road with an annual average daily traffic volume of more than 20,000 vehicles is to: a. consider the impacts of associated road noise or vibration on the structure and users of the development b. demonstrate its consistency with Division 17, Subdivision 2 of State Environmental Planning Policy (Transport and Infrastructure) 2021.

Objective		Control	
		C8.	For residential developments adjacent to classified roads, developers are to address the requirements of the Environmental Protection Authority's Criteria for Road Traffic Noise in relation to noise attenuation measures as part of an acoustic report to be submitted with the application. **Note**: refer to http://www.epa.nsw.gov.au/noise/traffic.htm
		C9.	Buildings that are exposed to high levels of external noise are designed and constructed in accordance with AS3671 – Acoustics – Road Traffic Noise Intrusion, AS2107 – Recommended Design Sound Levels and Reverberation Times for Building Interiors, and AS 2021-2000 – Acoustics- Aircraft noise intrusion – Building siting and construction.
		C10.	New residential development, within proximity to Port Botany port land and, port related infrastructure (i.e. Port Botany Rail Line and Foreshore Road) and land zoned for industrial uses (irrespective of current use of the land), is to take noise attenuation for building interiors into consideration.
		C11.	For attached dwellings and multi-unit development, the internal layout should position circulation spaces and non-habitable rooms adjacent to party walls.
		C12.	Sources of noise such as garbage collection, deliveries, machinery, motors, parking areas and air conditioning plants are: a. to be sited away from adjoining properties b. not to be located immediately adjacent to a proposed residential units within the development c. to be screened by walls or other acoustical treatment.

3.14.3 Acoustic Privacy – Non - Residential

Objective		Control	
O1.	Non-residential development is designed to ensure that the noise impact to the surrounding properties is minimised.	**C1.**	A development application for a new building or for a change of use of an existing building, for a non-residential use that is likely to generate external noise, must be accompanied by a Noise Impact Assessment.

Objective		Control	
			This report must be prepared by a suitably qualified acoustic consultant that demonstrates compliance with relevant controls and standards within state planning policies and NSW EPA guidelines (e.g. EPA Noise Policy for Industry 2017).
		C2.	Where a Noise Impact Assessment is required, it is to identify: a. relevant noise criteria based on the POEO (Noise Control) Regulations 2017 guidelines & Council's Noise Criteria; b. all sources of noise; and c. noise emission levels. It must then outline proposed measures to mitigate the impacts of noise generated by the new development on other activities in the vicinity. It should take into account Approved Methods for measurement and Analysis of Environmental Noise in NSW (EPA 2022).
		C3.	Sources of noise such as garbage collection, deliveries, ventilation systems, parking areas and air-conditioning plants are to be sited away from adjoining properties, where practicable, and be screened by walls or other acoustic treatment if necessary.
		C4.	Vibration transmitted must be within the acceptable limits based on the Protection of the Environment Operations Act 2017 and the POEO (Noise Control) Regulations 2008 guidelines.
		C5.	For noise sensitive land uses, an Acoustic Report, including recommended noise attenuation measures and any separation distances, must be prepared by a suitably qualified acoustic consultant and submitted with the development application to demonstrate that the relevant acoustic standards can be achieved. Noise sensitive non-residential land uses include, but are not limited to, child care centres, educational establishments, nursing homes and hospitals.
		C6.	Development for the purpose of a place of public worship, a hospital, an educational establishment or a child care centre in or adjacent to a rail corridors is to: a. consider the impacts of associated rail noise or vibration on the structure and users of the development b. demonstrate its consistency with Division 15, Subdivision 2 of State Environmental

Objective		Control	
			Planning Policy (Transport and Infrastructure) 2021.
		C7.	Development for the purpose of a place of public worship, a hospital, an educational establishment or a child care centre, in or adjacent to a road corridor of a freeway, a toll way, a transit way or any other road with an annual average daily traffic volume of more than 20,000 vehicles is to: a. consider the impacts of associated road noise or vibration on the structure and users of the development b. demonstrate its consistency with Division 17, Subdivision 2 of State Environmental Planning Policy (Transport and Infrastructure) 2021.
		C8.	Buildings that are exposed to high levels of external noise are designed and constructed in accordance with AS3671 – Acoustics – Road Traffic Noise Intrusion, AS2107 – Recommended Design Sound Levels and Reverberation Times for Building Interiors, and AS 2021-2000 – Acoustics- Aircraft noise intrusion – Building siting and construction.

3.14.4 Wind Effects

Objective		Control	
O1.	Ensure that new developments satisfy nominated wind standards so as to maintain comfortable conditions for pedestrians and stationery long-exposure activities.	**C1.**	Buildings must be designed and proportioned to consider the wind generation effects.
		C2.	Buildings of 5 or more storeys in height (or over 16 m) require wind tunnel testing, irrespective of whether they are built to the street frontage or not, at the discretion of the consent authority. Any relevant development application is to be accompanied by a wind report, prepared by a suitably qualified engineer, which demonstrates the following: a. in open areas to which people have access, the annual maximum gust speed should not exceed 23 metres per second, which is the speed at which people begin to be blown over; b. in walkways, pedestrian transit areas, streets where pedestrians do not generally stop, sit, stand, window shop and the like, annual maximum gust speed should not exceed 16 metres per second;

Objective		Control	
			c. in areas where pedestrians are involved in stationary short exposure activities such as window shopping, standing or sitting (including areas such as bus stops, public open space and private open space), the annual maximum gust speed should not exceed 13 metres per second; and d. in areas for stationary long-exposure activity, such as outdoor dining, the annual maximum gust speed should not exceed 10 metres per second.
		C3	Wind amelioration measures concluded by 'wind reports' shall be detailed upon architectural plans.

3.15 Late Night Trading

This section of the DCP provides a clear set of objectives and requirements for local businesses, operators, venues, and the community, that balances the growth of a vibrant night time economy in the Bayside LGA with the need to meet community expectations regarding residential amenity and Bayside being a liveable place. This section should be read in conjunction with Sub-section 6.2.1 Outdoor Dining.

Bayside Council aims to *"foster healthy, creative, culturally rich and socially connected communities"*. A diverse night time economy is an important part of Bayside being a city for people that provides a "healthy and vibrant urban life". The night time economy includes venues and activities such as restaurants, cafes, take-away food shops, retail shops, small bars, bars, pubs, clubs, community facilities, food trucks + temporary activations, performance and exhibition venues, and spaces for cultural, social and sporting events.

Bayside Council, together with the community and local businesses support the grow of the late night economy providing for a diversity of inclusive, safe and vibrant activities, both permanent and temporary. This is achieved through the demonstration of responsible management of late night trading venues over time, both at the initial application stage and with the operation of the premise. Bayside Council encourages careful planning and management of appropriate activities, contributing to the effective functioning and enjoyment of the city, both day and night for all residents, including children and families, students, businesses, workers and visitors.

Application of this section

The provisions of this section apply to various types of development. A late-night premises is defined as any commercial premises or community facility associated with the night time economy providing entertainment, cultural and social activities that have any of the following attributes or proposed activities:

- Hours of operation between 10pm and 7am
- Outdoor trading beyond 8pm.
- Activities that may impact on the amenity and safety of a neighbourhood resulting from its operation at night.
- Refurbishments, additions or extensions that will result in an intensification of an existing use which has a Council consent for hours of operation between 10pm and 7am.
- An extension or renewal of trial hours of operation as prescribed in this DCP.

The regulation of late-night trading also applies to licensed premises under Liquor Act 2007.

Premise Categories

The following premise categories enable Council to define the requirements and potential impact from specific activities and uses, such as the nature and capacity of the individual venue, proximity to sensitive uses such as residential accommodation, the intent of the zone and local area and geographic concentration of late-night trading premises and to determine appropriate base and extended hours of operation.

The determination of the category and impact of a specific proposal is at the discretion of council in consideration of the above factors. It is strongly recommended that a potential applicant seek council's opinion on whether a proposal constitutes a high or low impact premises through pre-lodgement discussions. As a general guide, council will consider the following broad parameters when deciding on this matter.

High impact premises

- a hotel within the meaning of the Liquor Act 2007 that is not designated as a general bar licence
- a hotel within the meaning of the Liquor Act 2007 that has a capacity of more than 120 patrons and is designated as a general bar licence
- an on-premises licence within the meaning of the Liquor Act 2007 where the primary business or activity carried out on the premises is that of a nightclub with a capacity of more than 120 patrons
- a club within the meaning of the Liquor Act 2007
- a premises that has a capacity of more than 120 patrons where the primary purpose is the sale or supply of liquor for consumption on the premises
- premises that are used as an entertainment facility or venue where the owner or occupier sells or supplies liquor for consumption on the premises. This may include a performance venue, theatre, cinema, music, concert, dance venue or other spaces that are primarily uses for a performance, creative and/or cultural use with the capacity for more than 250 patrons
- premises that are used as a karaoke venue where the owner or occupier sells or supplies liquor for consumption on the premise.

Low impact premises

- a hotel within the meaning of the Liquor Act 2007 that has a capacity of 120 patrons or less and is designated as a general bar licence or a small bar licence.
- premises that have a capacity of 120 patrons or less where the primary purpose is the sale or supply of liquor for consumption on the premises
- an on-premises licence within the meaning of the Liquor Act 2007
- any premises where the owner or occupier sells or supplies liquor for consumption on the premises that is not categorised as a High Impact Premises
- a premised with a micro-brewery and small distillery licence with a capacity of 120 patrons or less.
- premises that are used as an entertainment facility or venue which may be licensed and includes a performance venue, theatre, cinema, music, concert, dance venue or other spaces that are primarily uses for a performance, creative and/or cultural use with the capacity 250 patrons or less but does not include a pub, bar, karaoke bar, small bar, nightclub, adult entertainment, or registered club.
- any other commercial premises which in the opinion of the Council may impact on the amenity and safety of a neighbourhood resulting from its operation at night. This may include, but not limited to premises such as restaurants, 'BYO' premises, cafes, theatres, karaoke venues,

entertainment facility, convenience stores, takeaway food shops, gyms in buildings with residential accommodation and the like.

Non-licensed premises

Any retail premises or business premises which does not sell, supply, or allow the consumption of liquor on or off the premises or hold any license under the Liquor Act 2007. This may include premises selling groceries, personal care products, clothing, books/stationery, music, homewares, electrical goods and the like, or businesses such as drycleaners, banks, hairdressers, standalone gyms located within commercial or industrial only buildings and the like. It does not include convenience stores, food and drink premises, takeaway food and drink premises, gyms in buildings with residential accommodation, or adult entertainment venue or sex services premises.

Note: all the above Late night trading premise categories do not include sex services premise. Refer to **Section 6.5** for controls relating to sex services premises.

3.15.1 General Provisions

Objective		Control	
General			
O1.	Encourage a diversity of late-night trading premises that contribute to vibrancy throughout different times of the night (early evening, twilight, night time and late night), including retail, performance, creative and cultural uses that are appropriate to the place context within which it is located.	**C1.**	Development Applications be accompanied by sufficient information so that proposals for late night trading premises can be appropriately assessed including a Place Context report that outlines the wider social and place context as well as identifies, maps and describes all surrounding existing and approved Late Night Trading Premises within a 400m radius.
O2.	Encourage suitable intensity and growth of late night trading premises in appropriate locations and avoid over concentration of licensed & late-night trading premises within an area.	**C2.**	Licensed & late-night trading premises shall be located in close proximity to public transport and in high pedestrian and traffic flow areas.
Well managed late night premises			
O3.	To ensure operators of premises adopt good management practices to promote a safe and welcoming night time economy for all ages and comfort of patrons at and outside the premise.	**C3.**	A development application for Late Night Trading is to be accompanied by a Plan of Management that demonstrates the design and operation of the licensed and late-night trading premises avoids and manages potential impacts. The Plan of Management should address the requirements outlined in Schedules Section 9.4.
O4.	Identify standards, responsibilities, and management approaches to avoid potential impacts to nearby residential developments or other sensitive uses from sound, noise, and patron behaviour.	**C4.**	Clear venue identification (i.e. street number and venue name) is to be provided at the front premises. ***Note:*** *Council approval may be required for signage and advertising structures.*

Objective		Control	
		C5.	Security or crowd controllers are required at entry and exit points of clubs and pubs to monitor the behaviour of patrons and number of patrons entering and exiting the premises. ***Note:*** *As a general guide, one approved security or crowd controller per 100 patrons.*
		C6.	Where possible, queuing area shall be provided within the premises. Queuing and waiting areas within the public footpath area are to be clearly identified and must not interfere with the pedestrian movement along a public footpath (e.g. the use of removable bollards or use of paving materials and colour). ***Note:*** *The queuing and waiting areas of the premises must be clearly identified on the development application and plans and must be approved by Council.*
		C8.	Signs shall be placed at the entry and exit point of the premises to communicate standards of behaviour to patrons (e.g. minimise noise whilst leaving the premises).
		C9.	Clear glazed windows shall be installed along the frontages and entry/exit points of the premises. ***Note:*** *This control does not apply to entry/exit points that provide direct access to areas of a premises that are used for gambling, betting, or poker machines.*
		C10.	For all late night trading venues, the entry and exit points as well as pedestrian routes to and from the venue (i.e., to car parking areas) should be well lit and provide clear sight lines for passive surveillance and where appropriate surveillance cameras are to be installed.
		C11.	External furniture and equipment (i.e. bollards, tables and chairs) must be removed at the end of the approved trading hours and stored inside the premises.

Objective		Control	
Acoustic Management			
O5.	To balance the growth of night time economy activities within the Bayside LGA and the reasonable expectations of amenity for other uses and sensitive uses.	**C12.**	A Noise Impact Assessment prepared by a suitably qualified acoustic consultant is required when submitting a development application for a new or modified night time venue.
O6.	To identify the types of noise sources of various late night uses and activities and approaches to appropriately manage potential impacts on the adjoining uses and public spaces.	**C13.**	The Plan of Management should detail all noise management measures to reduce adverse noise impacts on adjoining uses and public spaces. The Plan of Management will be used both in the development assessment and to monitor the operation in compliance with the conditions of consent.
		C14.	Where a new development for residential, mixed use and other sensitive uses is proposed to adjoin an existing late night trading premises, an Acoustic Report must be submitted with the sensitive use DA that considers and quantifies emissions from the venue for the purpose of assessment and incorporate appropriate noise attenuation measures in the future sensitive use to minimise future conflict and impacts on amenity.
		C15.	For mixed used development, where future night time economy uses may be included, a Noise Impact Assessment must identify noise mitigation measures to minimise future impacts on the amenity of future tenants and residents.
		C16.	All windows and doors must be kept closed during late night trading and loud speaker and noise generating devices are not permitted to be located near windows and doors.
Hours of Operation			
O7.	To support a dynamic night time economy and diverse late night trading activities within appropriate locations across Bayside LGA.	**C17.**	The hours of operation for licensed and late-night trading premises are limited to the times, as applicable, below: **For Low Impact premises:** Indoor hours of operation: a. Base hours: 8AM – 10PM b. Extended hours: 7AM – 12AM - Outdoor hours of operation:
O8.	To ensure that amenity of surrounding areas is reasonably protected and adverse impacts on nearby residents are minimised.		

Objective		Control	
O9.	Provide opportunities to licensed & late-night trading premises to extend trading hours where they have demonstrated good management during the trial periods and encourage activities that operate both day and night.		c. Base hours: 9AM – 9PM d. Extended hours: 8AM – 10PM **For High Impact premises:** Indoor hours of operation: a. Base hours: 10AM – 10PM b. Extended hours: 9AM – 11PM - Outdoor hours of operation: a. Base hours: 10AM – 8PM b. Extended hours: 10AM – 9PM
		C18.	The hours of operation for non licenced late night trading activities are limited to the times as outlined below: For indoor hours of operation: a. within strategic centres: 24 hours b. within local centres: 24hours c. all other areas: merit assessed For outdoor hours of operation: a. within strategic centres: 24 hours b. within local centres: 7AM-12AM c. all other areas: merit assessed
		C19.	Licensed & late-night trading premises which propose to operate outside the allocated time above or which are located in close proximity to residential premises must be accompanied by sufficient documentation to demonstrate the proposed hours of operation will not impact the surrounding areas with regard to, but not limited to: a. Amenity (noise and light) b. Safety and security c. Traffic d. Other social impacts ***Note:*** *High Impact Premises will have restricted operation hours to reduce the impacts on the amenity of the area.*
Extended Trading Hours Trial Periods			
O10.	To encourage good management of licensed and late-night premises and give venue operators the opportunity to demonstrate the extended hours will have unreasonable impacts on surrounding land uses and public spaces.	**C20.**	Council will only grant consent to the renewal or extension of the hours of operation following the completion of a satisfactory trial period and if the licensed and late-night trading premises demonstrates the following: a. Good management performance

Objective		Control	
O11.	To enable Council to assess the ongoing management performance of a premises and flexibility to review the conditions on development consents to respond to changes in management, night character of the surrounding area and other relevant matters.		b. Compliance with the approved Plan of Management c. A satisfactory response to unforeseeable matters that arise during the operation of the premises ***Note:*** *For development involving liquor or gaming, to demonstrate compliance with 6.1(c), an incident register is required to be prepared and maintained as per the requirements set out in the Liquor Act 2007.*
		C21.	Trial periods may be permitted up to the following durations: a. First trial - 1 year. b. Second trial - 2 years. c. Third and subsequent trial - 5 years.
		C22.	After the successful completion of the third trial period, a development application must be lodged every 5 years to renew the hours of operation.
		C23.	If the Council determines that a trial period has been unsatisfactory then trading hours will revert to the base hours of operation, or whatever hours have been approved as the maximum trading hours.
		C24.	Applications for a renewal or extension of trial trading hours should be lodged 30 days prior to the expiry period and applicants will be allowed a period of grace from the termination of the trial period until the new application has been determined. During this period, the premises many continue to trade to the existing approved trial hours. If an application is not lodge 30 days prior to the expiry of the trial period, then approved trading hours will revert to base trading hours.

3.16 Signs and Advertising

These provisions encourage signs and advertisements (signage) that contribute positively to the public domain by achieving high design quality. The provisions promote signage that is appropriately located and will protect the significant characteristics of buildings, streetscapes, vistas and also protect the amenity of residents, workers and visitors, and ensure the safety of all road users.

These provisions are to be applied in conjunction with an assessment of any proposed signage under *State Environmental Planning Policy (Industry and Employment) 2021.*

3.16.1 General

Objective		Control	
O1.	To ensure signage does not detract from a high-quality pedestrian experience of streets and other public spaces.	**C1.**	The erection of the following types of signs is not permitted: a. flashing, moving or video signs b. signs other than building identification signs above the awning in a business zone c. a sign erected on or above the parapet of a building, other than a building identification sign d. a sign attached to a building and capable of movement e. projecting wall sign (attached to a wall and projecting horizontally more than 300mm) f. any signage not permanently fixed to the premises
O2.	To promote signage that improves pedestrian amenity and provides clear and concise directions for the community.	**C2.**	Any signage proposed within an open space or infrastructure zone will be assessed on its merit.
O3.	To protect the amenity of residential uses adjoining commercial areas.	**C3.**	The front façades of the building between the first floor and the parapet of the upmost level is to remain free from signage.
O4.	To ensure that signage does not adversely impact on the safety and security of pedestrians, motorists and the general public.	**C4.**	Advertising in business zones is not permitted on walls or structures facing adjoining residential zones.
O5.	To ensure signage integrates with the building design.	**C5.**	Electrical conduits to illuminated signs are to be taken directly into the building or otherwise screened to the satisfaction of Council.
O6.	To ensure the colour scheme does not detract from its surrounds.	**C6.**	LED under-awning signs and LED signs adjacent to traffic lights are not permitted. **Note**: All signage is to comply with the relevant Australian Standards, including AS/NZS 1170.0.2002 (Structural design actions), AS/NZS 1170.2:2011 (Structural design actions), AS 4282 – 1997 (Control of the obtrusive effects of outdoor lighting).
O7.	To ensure that all signage containing corporate logos, colours and figures, address the architecture of the built form and respond in a sympathetic design that is highly compatible with the building.	**C7.**	Signage is not permitted on the roof of buildings.
O8.	To avoid impacts to the natural environment.	**C8.**	Signage should not be attached to other advertising structures or signage.
O9.	To prevent signage cluttering along the streetscape.	**C9.**	The colours used in the design of an advertising sign or structure must

Objective		Control	
			complement the colour finish of the building to which it will be attached.
		C10.	Corporate colours should be limited to the advertising sign or structure, and should not be applied to the painted surface of the building.
		C11.	Advertising should not impact upon natural features and any trimming or lopping of significant trees should be avoided, where possible.
		C12.	Creating separate lots for signage via stratum or strata subdivision is not permitted.
Size			
O10.	The size and proportion of signage: a. contributes positively to active street frontages and public domain b. complements the scale and proportion of the existing façade, as well as surrounding buildings and signs	**C13.**	The maximum advertising display area for: a. commercial zones is 0.5m² of advertising area per 1m of shopfront b. enterprise Corridor and Industrial zone is 1m² of advertising area per 3m of street frontage
		C14.	Health Consulting Rooms in a residential zone are permitted one (1) advertisement provided it: a. is located wholly within the boundary of the subject property b. has a maximum advertising display area of 0.75 m²
Design			
O11.	To promote well designed signage that: a. is thoughtfully located b. is of a high-quality design c. is sympathetic to the architectural style of the building and surrounding built form d. addresses the local streetscape e. complements the design of the building f. does not adversely impact the streetscape g. does not adversely compound the visual clutter of the surrounding buildings and streetscape h. does not adversely impact on residential amenity	**C15.**	A signage strategy is to be submitted with a development application for any building that requires advertising or signage and must include details of the location, type, construction and total number and size of signs on the building/site. **Note**: All future signs on the building or site must be consistent with the approved signage strategy.
		C16.	The design of signage should consider: a. the architectural design of the building that the sign will be erected upon b. the scale of the building c. the effect on neighbouring buildings, streets and existing signs to ensure they do not create or add to undesirable visual clutter

Objective		Control	
			d. the visual impact of the signage on the skyline and surrounding buildings
		C17.	Signage should not obscure architectural elements of the building or adjoining buildings.
		C18.	Where a building or site contains multiple tenancies or uses, a coordinated approach for all signs is required.
		C19.	All advertisements in a foreign language must contain a legible English equivalent.
		C20.	Advertising structures are to form an integrated part of the façade of buildings and must reinforce architectural elements and design.
		C21.	Signage should minimise the visibility of the supporting signage structures, and any associated cabling, conduit or aerials.
		C22.	Signage must not obscure decorative forms or mouldings and must observe a reasonable separation distance from the lines of windows, doors, parapets, piers, and the like.
		C23.	Materials used must be durable, fade and corrosion proof and of a high aesthetic quality.
Safety			
O12.	To ensure that signage does not adversely impact on the safety and security of pedestrians, motorists, and the general public.	**C24.**	Advertising signs and their supporting structures are not to be: a. hazardous to passers-by b. located so as to be hazardous for traffic safety and must not obscure a driver's or pedestrian's view of road or rail vehicles, pedestrians or features of the road, railway or footpath (e.g. junctions, bends, changes in width) c. so highly illuminated that they cause discomfort to, or inhibit vision of drivers or pedestrians d. mistaken as an official traffic sign and must not distract a driver's attention or be confused with instructions given by traffic signals **Note**: Advertisements located near traffic signals or on roads subject to high traffic volumes will be considered on the basis of

Objective		Control	
			likely effect upon road safety. The views of the Police Traffic Branch and Roads and Traffic Authority may be sought.

3.16.2 Illuminated and Animated Signage

Objective		Control	
O1.	To preserve the character of an area through high quality and appropriate illuminated signage.	**C1.**	Lighting intensity must not unreasonably impact on any residential properties adjoining the sign or that is within its locality.
O2.	To encourage the use of renewable energy sources to illuminate signage where possible.	**C2.**	Illuminated signage is to be switched off between 10pm and 6am daily, where the illuminated signage: a. has an advertising signage area larger than 1m² and/or b. is located adjacent to or in the vicinity of residential dwellings
O3.	To ensure that illuminated signage does not adversely impact on the safety and security of pedestrians, motorists and the general public.	**C3.**	Electric wiring to illuminated signage is to be concealed.
		C4.	Illumination of a sign (with the exception of floodlit signs) must not be external to the sign i.e. surrounding the sign. Illumination must be part of the sign.
		C5.	Illuminated signage is encouraged to be powered by solar power.
		C6.	Illuminated signage must minimise the spill effects or escape of light beyond the subject sign.

3.16.3 Signage Types

Objective		Control	
O1.	To provide for appropriate outcomes based on the type of sign being proposed, which minimise visual clutter, ensure signage compliments the building form, and minimises impacts on the surrounding area. See **Figure 13**.		
Under Awning Signage			
		C1.	Awning signage is to be contained entirely within the dimension of the awning and tenancy on which it is located.
		C2.	The content of awning signage must only contain the name and logo of the tenant.

Objective		Control	
		C3.	Signage that is suspended under awnings must have a high standard of design and materials.
		C4.	The maximum dimensions of an under-awning sign are to be 2.5 m in width, 0.5 m in height and 0.15 m in depth.
		C5.	Under awning signs must be separated by a minimum of 3 m.
Top Hamper Signage			
		C6.	Top hamper signs are to be attached to the transom of a doorway or display window of a building.
		C7.	A maximum of one (1) top hamper sign per premises is permitted.
		C8.	A maximum projection of 100mm from the building façade is permitted.
		C9.	Top hamper signs are to provide a minimum clearance of 2.13m above ground level.
		C10.	The dimensions of a top hamper sign are to be proportionate to the size of the top hamper fascia.
		C11.	Top hamper signs are not to exceed: a. 600mm in vertical height b. 4m in length
		C12.	Top hamper sign should not obscure the top hamper, by allowing a proportion of the wall surface area of the top hamper to be exposed.
		C13.	Top hamper signage should not extend beyond any wall/boundary or below the top of the door/window head.
		C14.	The content of top hamper signage is to be first party signage only.
Above Awning Signage			
		C15.	Above awning signage is not permitted.
Wall Signage			
		C16.	Projecting flush wall signage, including flags, banners, placards, posters, permanent or temporary are not permitted between the footpath and awning of any building.
		C17.	Non-projecting ground level flush wall signage must:

Objective		Control	
			a. be located directly above the main pedestrian entry to a shop/business b. be located above the main shopfront window next to the pedestrian entry at the street level c. be located only on frontages that have a public entrance d. be restricted to one (1) sign per shopfront or business e. not exceed a maximum advertising display area of 1m² with no more than 600mm in height f. be designed to relate to the horizontal proportions of the shopfront or business doorway or window above where it is to be located g. not protrude more than 150mm from the shopfront or business frontage to the outside edge of the sign
		C18.	Wall signs above the ground level must not project more than 300mm from the wall.
		C19.	A small wall plaque is permitted directly next to the shop or business entry, in addition to the above.
		C20.	The maximum area of a plaque is 0.1m².
		C21.	Projecting wall signs between the first floor and parapet are not permitted.
		C22.	Painted wall signs are permitted on side elevations where it can be demonstrated that it will contribute to improving the public domain.
Awning Fascia Signage			
		C23.	Awning facia signs should: a. be attached to the fascia or return of an awning b. form part of the awning c. not be illuminated d. not project above or below the awning fascia e. contain sign writing that is limited to the street number, name and general nature of the business f. not include product identification

Objective		Control	
Directory Boards			
		C24.	Directory boards should: a. be designed and constructed of high-quality material and incorporated into the architecture of the site b. be of a size proportionate to that of the site on which it is located c. not dominate landscaped areas
Pole or Pylon Signs			
		C25.	Pole or pylon signs should: a. be erected on a pole or pylon independent of any building or other structure b. have a maximum height of 6m c. be set back from the street alignment d. be limited to one pole sign erected on each street frontage of the site
Portable Signs (Including A-Frames)			
		C26.	Portable signs should: a. be a portable, freestanding sign consisting of one or two boards b. have a maximum height of 1m and length and width of 500mm Portable signs displayed on public land should be in accordance with Council's Commercial Use of Footways policy.
Retractable Blind Signs			
		C27.	A retractable blind sign must be used for business identification purposes only.
Window Sign			
		C28.	A window sign attached to, or displayed on, the shop window must not exceed 40% coverage of that window.

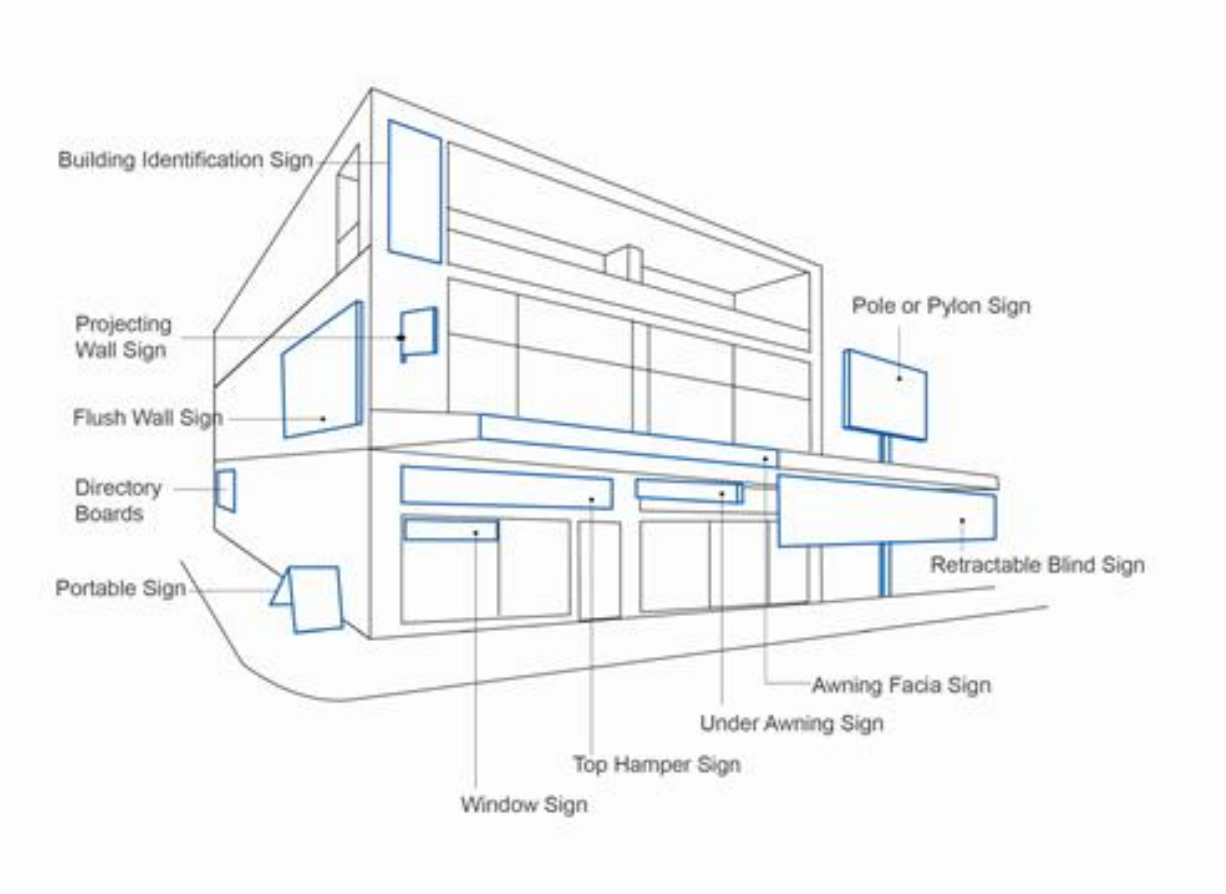


Figure 13: Types of Signage

3.16.4 Signage in Residential Zones

Objective		Control	
O1.	To ensure signage in residential zones: a. is suitable for the proposed use b. does not dominate or detract from the amenity of an area	**C1.**	Signage for non-residential uses in a residential zone: a. is to have a maximum advertising display area of 1.2m x 0.6m b. is affixed to the front ground level facade of the dwelling or to the front boundary wall or fence c. may be in the form of a pole sign having a height not greater than 2.8m, under the following circumstances: - there is no front fence, or where an existing fence does not have sufficient height to display a sign - the dwelling has a significant setback from the street front

Objective		Control	
		C2.	Signage for the purposes of shops or commercial and industrial premises in a residential zone: a. contain only one (1) sign and/or one (1) under awning sign may be displayed on the premises b. is to have a maximum advertising display area of 1m² for every 20 m of street frontage **Note**: The advertising display area of an advertising structure that contains advertising on two or more sides is to be calculated separately for each side and is not the sum of the display areas on all sides.
		C3.	Any signage within a residential zone must relate only to premises situated on the subject land, and is to specify: a. the purpose for which the land is used b. the identification and description of a person carrying on an occupation or business on the premises c. particulars of the goods or services dealt with or provided on the premises
		C4.	The illumination of signs is not permitted in residential zones.
		C5.	Signage at the top of mixed-use buildings may be allowed to advertise the name of the premises or service provided at the discretion of council where it will not detract from the character or amenity of the local area, considering relevant matters such as location, size, form, colour, level of illumination and visual impact.

3.16.5 Signage on Industrial Sites, Business Parks, and Specialised Retail Premises

Objective		Control	
O1.	To ensure signage in industrial and business zones is suitable for the proposed use and does not dominate or detract from the amenity of an area.	**C1.**	One (1) business identification sign is permitted per industrial unit.
		C2.	Development applications for new industrial complexes shall include the location and dimensions of one advertising panel for each unit.

Objective		Control	
		C3.	One (1) freestanding common tenancy sign is allowed per street frontage. A freestanding common tenancy sign is to: a. have a maximum advertising display area of 10m² per face b. be integrated into the landscape design c. be located within the property boundary with a minimum setback of 2 m from the road alignment and clear of any footpath or designated pedestrian paths d. be no higher than five (5) m above the natural ground level e. present only information related to the use of the individual units, like a tenancy directory f. be clear of any vehicular crossings and not compromise the safety of pedestrian and vehicular movement g. be illuminated where the illumination does not adversely impact upon the environment, safety or amenity of the area
		C4.	A freestanding common tenancy sign should not result in the removal of significant trees or vegetation.

3.16.6 Building Identification Signage

Objective		Control	
O1.	To ensure the location of building identification signs do not obscure significant elements of the architectural design of buildings.	**C1.**	Buildings are permitted to have signs for identification purposes in the following locations: a. on the building parapet or against the walls of the rooftop plant structure but only when the signage does not obstruct or obscure any parts of the building that are considered by the Consent Authority to be significant elements of the architectural design of the building b. above the main pedestrian entry, in a suitable part of the façade
O2.	To ensure building identification signs: a. reflect the size of the building to which it relates b. avoid visually dominating a location	**C2.**	Building identification signs are required to: a. be of adequate scale that is consistent with the size and architectural design of the building
O3.	To ensure building identification signs are not used for commercial advertising purposes.		

Objective		Control	
			b. relate to a significant tenant or owner of the building. The sign must be associated with a business which owns or leases the largest portion of building floor space compared to the other owners/tenants c. have no affect the heritage significance of a Heritage Item
		C3.	Logos which are incorporated into the fenestration of a building identification sign is encouraged. Attention should be given to the proportions, materials and the finishes and colours to ensure there is a significant degree of compatibility.
		C4.	Buildings that are primarily residential shall not be permitted to be named after commercial names or advertising products.
		C5.	Building identification signs are not permitted to have any other text or logo except for the name of the building, the major tenant, or the building owner.
		C6.	A maximum of three (3) signs associated with a building is permitted.
		C7.	One (1) sign is permitted per elevation with a total maximum of two signs plus one additional sign located at or near the main entry.
		C8.	A maximum of one (1) sign per ground floor tenancy located under the awning and on the street, frontage is permitted.
		C9.	The signs are to be located at least three (3)m apart. **Note**: If there are multiple ground floor tenancies then the number of signs will be restricted by the number of signs that can be installed at least three (3) m apart with a total maximum of one (1) sign per tenancy.
		C10.	Ground floor tenants are permitted to erect an additional sign in the form of a top hamper sign if located above the entry to the business on the street frontage only.

3.16.7 Signage in Heritage Conservation Areas and Heritage Items

Objective		Control	
Signage on Heritage Items			
O1.	To ensure that advertisements and signage does not adversely impact on the heritage significance of Heritage Items or obscure the view of Heritage Items and Heritage Conservation Areas.	**C1.**	Signage on heritage items is to: a. be designed to reflect the architectural style of the built form to which the sign is intended to be attached b. be designed and installed in a sensitive manner to any existing signs or prominent feature on the heritage item c. be sympathetically located on the building d. not obscure any significant aspects or distinctive features of the Heritage Item e. be of a high standard of materials, design and construction f. be of a sympathetic design and architectural style g. be designed with appropriate heritage colours, materials, images and lettering
O2.	To ensure signage installation avoids irreversible damage to a heritage item.	**C2.**	The location of signage between the parapet and the first floor is not permitted unless it can be demonstrated that the sign and location are both suitable given the heritage significance of the heritage item.
O3.	To ensure illumination of signage does not detract from the heritage significance of heritage items.	**C3.**	The existing or prior name of the Heritage Item and its significance is to be considered before a change to a building identification sign is permitted.
O4.	To ensure signage is compatible with the existing and 'Desired Future Character' of the area in which it is proposed to be located.	**C4.**	Where there is existing signage of heritage value on Heritage Items they are required to be retained, preferably in their original location.
		C5.	Colour schemes including corporate colours are required to be modified to complement the heritage nature of the building. Note: Refer to **Section 3.4 – Heritage**
		C6.	Signage that is internally illuminated are only permitted where they are a reconstruction or restoration of any original heritage significant sign or if it can be established that the proposed signage is a significant aspect of the Heritage Item.

Objective		Control	
		C7.	Signage that is externally illuminated is only permitted where they are designed to be sympathetic and to the Heritage Item.
		C8.	Lighting and works associated with a sign on a Heritage Item must not damage or intrude in any way to the heritage significance of the Heritage Item.
		C9.	The installation of signage on Heritage Items must be performed in such a way that it is completely reversible, without leaving damage to the building. If the signage is intended to be affixed to stone or brick walls, then they must be attached so that any insertions are placed into the mortar joints and not into the stone or brick.
		C10.	Signs on buildings of heritage significance must not by their size, design or colour detract from the character or significant qualities of individual buildings, their immediate context or the wider streetscape context of the area.
Signage in Heritage Conservation Areas			
O5.	To ensure that advertisements and signage does not adversely impact on the heritage significance of Heritage Conservation Areas.	**C11.**	Signage in a Heritage Conservation Area is to be sympathetic to the heritage significance of that Heritage Conservation Area.
		C12.	Signage in a Heritage Conservation Area should: a. be designed to reflect the architectural style of the built form to which the sign is intended to be attached b. be designed and installed in a sensitive manner to any existing signs or prominent features on the building or place c. be sympathetically located on the building or place d. not obscure any significant aspects or distinctive features of the building or place e. be of a high standard of materials, design and construction f. be of a sympathetic design and architectural style g. be designed with appropriate heritage colours, materials, images and lettering

Objective		Control	
		C13.	The existing or prior name of the building or place its significance is to be considered before permitting a change to a building identification sign.
		C14.	Where there is existing signage of heritage value in a Heritage Conservation Area they are required to be retained, preferable in their original location.
		C15.	Advertising signage for retail and commercial buildings are to be restricted to the following types: a. flush wall sign b. awning fascia sign c. under-awning sign d. top hamper sign
		C16.	The erection of roof signs, above-awning projecting wall signs, pylon or pole signs is not permitted.
		C17.	Where a building contains more than two tenants, a directory of tenants should be provided at ground-floor level in order to minimise the amount of advertising on the building.
		C18.	Where appropriate wall surfaces or other areas for advertising are not available, unobtrusive painted signs to upper-storey windows may be permitted.
Signage in Heritage Conservation Areas – Materials and finishes			
O6.	To ensure signage materials and finishes: a. are harmonious with the heritage significance of the area b. use traditional materials c. do not dominate the architectural character of the building or adjoining buildings d. responds appropriately to the physical context and historical background of the streetscape, and HCA as a whole	**C19.**	High quality materials such as brass, copper, bronze and/or stainless steel are required to be used and should not include significant amounts of plastics like clear or coloured acrylic materials.
		C20.	Materials are to be those which were traditionally used for signs, such as painted timber or board, engraved metal plaque or painted masonry and are typically characterised by their non-reflectivity.
		C21.	Colour schemes including corporate colours are required to be modified to complement the heritage nature of the building.
		C22.	Corporate colours schemes may appear as part of advertising signs but are not to be used as the principal or dominant colour scheme for buildings.
		C23.	Hamper signs, whether painted or internally illuminated, shall be flush to the external

Objective		Control	
			face of the shopfront where practicable, but in any case shall not project more than 100mm.
		C24.	Under awning illuminated or painted signs are to be limited to a maximum depth of 300mm, a maximum length of 2600mm (or two thirds width of the footpath) whichever is the lesser.
		C25.	Under awning illuminated or painted signs are erected at a uniform height to match, as far as possible, the adjoining signs and is to be no lower than 2600mm from the level of the footpath.
		C26.	The style of lettering used in signs is to be suitable for the architectural period of the building and the historic character of the area.
		C27.	Flashing, pulsing or moving signs are not permitted.
		C28.	Where a number of tenancies occupy the same building or row of properties, consistency of sign shape, background colour, size, fixing methods and lighting is required. Consistency of fonts and graphics is preferred.
		C29.	Consistency in signs between neighbouring buildings which have a common architectural style, whether traditional or contemporary, is also encouraged.
		C30.	Size and positioning of text and graphics must consider persons with disabilities, especially those with vision or mobility impairment (refer to Australian Standard 1428.2 - 1992, section 6.1.1 – Universal, Accessible and Adaptable Design).
		C31.	Painted signage on shopfront windows must not dominate or clutter the window.
Signage in Heritage Conservation Areas – Lighting			
O7.	To ensure lighting of signage: a. is harmonious with the heritage significance of the area b. does not impact on the heritage fabric or presentation of the place c. is sympathetic and complementary to the Heritage Conservation Area	**C32.**	The lighting of signage in a Heritage Conservation Area must be discreet and be from a concealed source.
		C33.	Minimal low-voltage lighting designed into the signage bracket, awning or shopfront structure may be acceptable.
		C34.	All transformers associated with low-voltage lighting must be concealed.

Objective		Control	
		C35.	Signage that is internally illuminated is only permitted where they are a reconstruction or restoration of any original heritage significant sign or if it can be established that the proposed signage is a significant aspect of the Heritage Conservation Area.
		C36.	Lighting and works associated with it must not damage or intrude in any way to the heritage significance of the Heritage Conservation Area.

3.16.8 Advertising and Advertising Structures

Advertising structure means a structure or vessel that is principally designed for, or that is used for, the display of an advertisement. This part deals with third party Advertising Structures with an advertising display area of 45m² or less.

Objective		Control	
O1.	To minimise visual clutter and improve the aesthetic appeal of the Bayside LGA by minimising the extent of additional advertising.	**C1.**	Third party advertising on public infrastructure is not permitted.
O2.	To ensure advertising structure and advertising is integrated into the built form.	**C2.**	Advertising or advertising structures: a. are to be integrated into new building forms and designed in a manner that complements the architectural quality of the building b. are to sit flush with the building façade c. are to be of a scale that complements the size of the building d. should not project above the predominant parapet line of the building
O3.	To ensure advertising structures and advertising does not dominate or detract from the host building.	**C3.**	No more than one (1) advertisement is permitted per building.
		C4.	The number of existing signs on the site and in the vicinity of proposed advertising signs is to be considered in determining the appropriateness of a location for new signage. New proposals should not cumulatively create unacceptable visual clutter.

3.16.8.1 Specific Controls for Hensley Athletic Field

Objective		Control	
O1.	To restrict new free-standing advertising structures only to Hensley Athletic Field.	**C1.**	No new free-standing advertising structures are permitted with the expectation of free-standing advertising structures at Hensley Athletic Field.
		C2.	New free-standing advertising structures at Hensley Athletic Field shall minimise unnecessary supporting structures to minimise visual clutter.
		C3.	A Master Landscape Plan shall be submitted and must consider: a. the surrounding context (land uses, sight lines, existing landscaping etc.) b. other localised signage and its landscaping c. screening opportunities and visual amelioration
		C4.	Multiple signs are to be separated and placed at appropriate intervals to allow adequate space for landscaping.
		C5.	A layered (three tiers) of landscaping treatment is required in all planted areas. Canopy trees for upper-level softening, and scale reduction, shrubs for mid-level screening, softening and colour and groundcovers for low level screening, colour, soil stabilisation and weed reduction is required.
		C6.	A minimum of 70% of the landscaping is to comprise of natives suitable to the local conditions.
		C7.	New landscaping shall provide a consistent green backdrop and frame to the advertising structure. Where opportunities for in ground landscaping is limited, landscaping structures such as green walls on existing and or new structures should be used to achieve the landscape requirements. **Note**: Achieving success with green walls must be demonstrated and a maintenance plan must be submitted.
		C8.	Canopy trees and landscaping shall be provided at the ends and behind of structure/s. Mature tree height shall be in

Objective		Control	
			scale with the height of the sign and should soften the ends and corners of structures.
		C9.	All landscaped area shall have a fully automatic irrigation system installed.

3.17 Telecommunications Facilities

3.17.1 Location

Objective		Control	
O1.	To ensure site selection for telecommunication infrastructure minimises electromagnetic radiation exposures to sensitive receptors.	**C1.**	In selecting a site for the deployment of telecommunication infrastructure, applicants are to adopt a precautionary approach, particularly in regard to minimising electromagnetic radiation exposures and avoiding community sensitive locations, consistent with Section 5.1 of the ACIF Code. Preferred areas for the siting of telecommunications facilities include: a. industrial areas b. commercial areas
O2.	To encourage the co-location of telecommunication infrastructure.	**C2.**	An Electromagnetic Radiation assessment, prepared in accordance with the Australian Radiation Protection and Nuclear Safety Agency (ARPANSA) electromagnetic radiation prediction methodology and report format, as described in Appendix B of the ACIF Code, is to be submitted with the development application.
		C3.	Wherever possible, telecommunication infrastructure should be co-located with other existing telecommunications facilities or similar structures.
		C4.	Where co-location is proposed, the applicant is to provide documentation to demonstrate consideration has been given to the cumulative impacts of all co-located facilities, with respect to electromagnetic radiation exposure, visual amenity, and structural safety.
		C5.	If telecommunication infrastructure is not to be co-located with existing facilities, details of the process employed in identifying opportunities for co-location and the reasons why this was unsuitable or

Objective		Control	
			inappropriate must be included with the development application.

3.17.2 Design and construction

Objective		Control	
O1.	To minimise unnecessary or incidental electromagnetic radiation emissions and exposure.	**C1.**	Proposals must consider provision for the range of available alternate infrastructure including new technologies, to minimise unnecessary or incidental electromagnetic radiation emissions and exposures, as required under Section 5.2.3 of the ACIF Code.
O2.	To minimise or reduce the visual impact of telecommunication facilities from the public domain and adjacent areas.	**C2.**	The design and construction of a facility must include measures to restrict public access to the facility.
		C3.	Approaches to the structure must contain appropriate signs warning of electromagnetic radiation exposure and providing contact details for the facility owner/manager.
		C4.	Telecommunication facilities are to: a. be designed in consideration of the local context b. be integrated with the existing building structure c. have concealed cables where practical and appropriate d. be unobtrusive where possible e. be consistent with the character of the surrounding area
		O5.	Where a telecommunication facility is located at ground level, suitable landscaping/screening is to be provided.

3.18 Utilities and Mechanical Plant

3.18.1 Site facilities

Objective		Control	
O1.	To minimise the visual impact of site facilities and storage areas from the public domain and adjacent areas.	**C1.**	Any electrical kiosk, fire booster assembly or similar utilities will be: a. in a location that is visible from the main entrance of the development b. unable to be obstructed

Objective		Control	
O2.	To ensure site facilities are incorporated as part of the overall development.		c. readily accessible to vehicles and service staff
O3.	To avoid conflicts between pathways and utilities maintenance.	**C2.**	Fire booster assemblies are to be a minimum of 10m distance to an electrical kiosk and housed within the external face of the building structure or in a built enclosure with screen doors.
		C3.	Any built enclosure is to be integrated with the architectural design of the development and compliant with AS2419.
		C4.	New site facilities such as mail boxes and electricity sub-stations and utilities such as fire hydrant booster valves, substations, water storage tanks shall be designed and/or sited so that they enhance the development.
		C5.	New site facilities shall be situated so that there is satisfactory vehicular access by service personnel and vehicles.
		C6.	The existing above ground electricity and telecommunication cables within the road reserve and within the site is to be replaced, at the applicant's expense, by underground cable and appropriate street light standards, in accordance with the Energy Providers guidelines. The applicant shall bear the cost of the new installation and the first 12 months of additional street light charges.
		C7.	Any open storage areas shall be delineated in area, screened effectively, and harmonise with existing or proposed landscaping.
		C8.	Specific details of the materials to be stored external to the facility shall be lodged with the Application. The storage areas are not to be located within the landscaped area.
		C9.	New footpaths are to be appropriately located within the street with consideration for obstruction cause by electrical pillar associated with the undergrounding of mains power.